



JAMAICA CONSTABULARY FORCE

Criminal Investigation Branch Manual on Criminal Investigation

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JAMAICA CONSTABULARY FORCE

CIB MANUAL

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JCF Criminal Investigation Branch Manual of Standard Operating Procedures on Criminal Investigation

JCF/CIB-HQ/Man/SSs/0005/2021

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Part 1

CRIME AND ITS DIFFERENT DEGREES

DEFINITION OF CRIME

“An act of disobedience of the law forbidden under pain of punishment”.

ELEMENTS OF CRIME

A general principle of the criminal law is that a person is not criminally liable for his conduct unless the prescribed state of mind is also present. This is frequently stated in the form of a Latin maxim “**Actus non facit reus nisi mens sit rea.**” Properly translated this means “an act does not make a man guilty of a crime unless his mind be also guilty.”

A crime for the purposes of analysis may be divided into two elements: -

ACTUS REUS - *The Guilty Act (the elements of the crime other than the mental element).*

MENS REA - *The Blameworthy State of Mind*

Before a person can be convicted of a crime, with certain exceptions discussed later, it is usually necessary for the prosecution to prove both these elements beyond all reasonable doubt. See Woolmington vs. DPP [1935].

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However, there are certain offences where the onus of proof is upon the defence. This is usually expressed in the statute creating the offence by saying, “that the proof whereof shall be upon the accused” or “that certain facts shall be deemed to exist until the contrary is proved”. For Example: -

- (i) When not at his place of abode, he has with him without lawful excuse any article for use in the course of or in connection with any burglary, or any such felony. **Section 42 of the Larceny Act**
- (ii) When being “a Suspected Person”, he is found in possession of any article believed to be stolen or unlawfully obtained. **Section 5, Unlawful Possession of Property Act.**

R vs. CARR BRYANT (1943) 2 A I ER 156.

Where such onus of proof is on the defence, it may be discharged by evidence satisfying the Court of the probability of that which the accused is called upon to prove. (He does not need to prove it beyond reasonable doubt).

ACTUS REUS

The Actus Reus of crime may be broken down as follows: -

1. **AN ACT**
2. **CONSENT**
3. **LAWFUL EXCUSE**
4. **CAUSATION**
5. **MISSIONS**

AN ACT

If the Actus Reus of an offence requires an act to be done then that act must be voluntary on the part of the offender.

If a man is unable to control a movement of his limbs, it seems obvious he should not be held criminally

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liable for that movement or any of its consequences.

Example: -

(D) is holding a knife, (E) seizes (D)'s hand and, against (D)'s will, plunges the knife still held by (D) into (P).

CONSENT

For certain offences consent by the victim is an essential ingredient of the actus reus; for example, the offence of rape.

If a person is prosecuted for this offence, the prosecution must show that the female did not consent to the act of sexual intercourse.

For most crime the consent of the victim is irrelevant. It would be no defence to a person charged with murder for him to show that the victim had 'asked' to be killed.

Likewise, in the case of unlawful sexual intercourse with girls under 16 years, it is no defence to show that the girl consented to the act, because the offence particularly states that such girls cannot by law give such consent. It can be said therefore that there are two types of consent: -

- (1) *RELEVANT* - As in the case of rape
- (2) *IRRELEVANT* - As in the case of unlawful sexual intercourse
 with a girl under 16 years

LAWFUL EXCUSE

If there is a lawful excuse for doing an act there is no actus reus and therefore no crime. For example: -
It is an offence to procure the abortion of a woman under the Offences Against the Person Act, 1861.

A lawful excuse is now provided for this offence by the Abortion act, 1967, provided that certain conditions are satisfied.

Lawful excuse is now provided for certain minor offences. It is an offence to exceed the speed limit but under certain conditions not for Police, fire and ambulance vehicles.

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CAUSATION

When the definition of an actus reus requires occurrences or happenings of certain consequences, it is necessary to prove that it was the conduct of the accused, which caused those consequences to occur.

In murder or manslaughter, it is necessary to prove that the act of the accused caused the death. If the death came about through some other cause, then the crime is not committed even though all other elements of the actus reus and mens rea are present.

For example: -

R vs. WHITE (1910) A 1 ER 340.

WHITE put potassium cyanide into a drink with intent to murder his mother. She was found dead shortly afterwards with the glass, three parts filled, beside her. The medical evidence showed that she had died not of poison but of heart failure.

Although the consequences, which **WHITE** intended, occurred, he did not cause it to occur and therefore there was no actus reus of murder. He was acquitted and convicted of attempted murder.

R vs. JORDAN (1956) 40 CR APP R152

The deceased, who had been stabbed by the accused, died in hospital from bronchial-pneumonia. Medical evidence showed death was caused not by the stab wound but by mistaken medical treatment. Held that the conviction must be quashed.

OMMISSIONS

An omission: - *failure to take action where that action is required by law.*

In general, criminal liability can arise only from positive acts and not from the omission to act. So a strong swimmer who stands idly by while a child drowns commits no offence.

In some cases, which are exceptional, however, the law imposes a duty to act and in such cases an omission may give rise to criminal responsibility. The following examples are such cases of the

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imposition of a duty: -

Parents are under a duty at common law to provide for their children and to protect them from harm. This duty was confirmed, and extended to some degree, by the Children and Young Person Act, 1933.

R vs. MARRIATT (1838)

Similarly, a person who undertakes (whether for reward or otherwise) to care of another who is unable to take care of himself, through age or infirmity, has a duty to take all reasonable care to safeguard his charge.

R.v. GIBBINS AND PROCTOR (1918) 82 JP 287

A man and a woman, with whom he was living, were held guilty of murder of the man's child, where the woman, with the man's concurrence, withheld food from the child. By living with the man and receiving money from him for food, the woman assumed a duty towards the child.

Every citizen is under a duty to assist a Police officer in the execution of his duty when called upon provided that he is reasonably able to do so.

Anyone who engages upon some tasks or employment (whether for reward or otherwise) must perform the task with reasonable care and diligence and will be criminally liable if he abandons it without giving proper warning.

R.v. PITT WOOD (1902)

A keeper of a railway level crossing forgot to close the gate before going to dinner as a result of which a man was killed. The keeper was held liable for manslaughter.

In all the above cases a criminal conviction can result only if the prosecution can satisfy, and this may be difficult other than in the case of a positive act.

The court must also be satisfied that the harm did in fact result from the omission and this may be more difficult than in the case of a positive act.

MENS REA

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Now consider the other element of a crime – mens rea. This is more than a guilty mind, it is a mental attitude. The element can be broken down as follows: -

- (i) INTENTION
- (ii) NEGLIGENCE
- (iii) RECKLESS
- (iv) BLAMELESS INADVERTENCE

INTENTION

For a crime to be committed the accused must normally do or abstain from doing a particular act or acts with the intention that certain consequences shall follow.

This requirement is not as straightforward as it first appears. For example: -

‘A’ takes ‘B’s’ watches. Before he can be convicted of theft he must be shown to have had two forms of intent.

First, he must have intended to take another’s watch for there is a defence open to him to show that he mistook the watch for his own.

Secondly, he must have intended to deprive the owner of the watch permanently.

There is also the concept known as ‘oblique’ intention. A man will be regarded as having intended certain consequences, even if he did not aim at achieving them and even if he hoped they would occur, provided he knew that his act was likely to have such consequences; example;-

R.v. SERNE AND GOLDFINCH (1887)

To quote Stephen J:- “If a person chose, for some wicked purpose of his own to sink a boat at sea and thereby cause the death of the occupants, it matters nothing whether, at the time of committing the act, he hoped that the people would be picked up by a passing vessel. He is as much guilty of murder, if the people are drowned, as if he had flung every person into the water with his own hand.

Some crimes require “SPECIFIC INTENT” – that is, further intent or the desire to produce a specified result. For example: -

Grievous Bodily Harm - Section 18, Offences Against the Person Act, 1861, must be done with intent to cause grievous bodily harm.

EVIDENCE OF PARTICULAR INTENTION

Where a particular intention is the Mens Rea with regard to a crime (e.g. Burglary, grievous bodily harm as above) the legal presumption that a person intended, the nature and probable consequences of his action, does not apply and consideration must be given to proof of guilt intent.

NEGLIGENCE

A man is negligent with respect to a consequence of his act when he does not foresee the possibility of it occurring, when, as a reasonable man, he ought to have foreseen it.

Negligence plays a very small part in criminal law. The two most important instances when it arises are in manslaughter and traffic offences.

- (i) Manslaughter may be committed by a person who causes death through failing to comply with a standard of care, even though he does not foresee (far less intend) that death should be caused.
- (ii) Many motoring offences may be committed by persons who fail to comply with a standard of care, even though they do not intend to commit any breach of the law.

RECKLESSNESS

R.v. CALDWELL (1982) AC 341

“D” formed a grievance against (P), the proprietor of a residential hotel. “D” got very drunk and decided to revenge himself by setting fire to the hotel. The fire was discovered and extinguished before any serious harm was done. Lord Diplock stated that a person is reckless whether any property would be destroyed or damaged if –

1. He does an act which, in fact, created an obvious risk that property would be destroyed or damaged and
2. When he does the act he either has not given any thought to the possibility of there being any such risk or had recognized that there was some risk involved and has nonetheless gone on to do it.

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Held, that the meaning of “reckless” was that which it bore in ordinary speech, including not only deciding to ignore a risk of harmful consequences resulting from one’s acts that one has recognized as existing, but also failing to give any thought to whether or not there was any such risk in circumstances where, if any thought were given to the matter, it would be obvious that there was.

For example: -

- (i) A person, who makes a statement on oath in judicial proceedings, not knowing whether they are true or false, is as guilty of perjury as if he had made the statement knowing it to be false.
- (ii) A person may commit the crime of criminal deception whether deception is deliberate or reckless. Recklessness can also be pertinent to the offence of manslaughter; for example where a person is doing a lawful act but with such utter recklessness as to make the act unlawful as a result of which someone is killed.

As such it now appears that the test for recklessness is an objective one.

The prosecution must always prove both these elements except in the case of those statutory crimes where the definition does not include requirement as to “Mens Rea”.

BLAMELESS INADVERTENCE

A person may reasonably fail to foresee a consequence that follows from his act or reasonably fail to consider the possibility of the existence of a circumstance.

For example:

- 1. (D) gently slaps “P”, an apparently healthy person. “P” dies.
- 2. (D) buys goods in the normal course of business from a trader of high repute. The goods are in fact stolen.

OFFENCES WHERE THERE IS NO NEED TO SHOW MENS REA

Where the statute simply states that this or that shall be done, or not done, without reference to any Mens Rea. In other words, absolute offences. Examples: -

- (1) Illegal Possession of Firearm
- (2) Possession Of Cocaine
- (3) Possession of Ganja
- (4) Exceeding the Speed Limit.

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VICARIOUS OFFENCES

These are offences where one person has by law to accept responsibility for the acts of another, for example: - when the act done is “within the scope of employment”, or “delegated authority” where there is liability of a master for servant, principal for agent, etc.

BAKER vs. LEVINSTON (1951)

Lord Goddard: - The principal that underlines the cases concerning criminal responsibility of a master for the act of his servants can be stated thus: - If a master chooses to delegate the conduct of his business to a servant, who does an act during the course of conducting the business which is absolutely prohibited, the master is liable.

For another offence at criminal law a master can only be liable for the action of his servants, where he is a participant in the crime or where he has aided and abetted the crime.

There are usually four circumstances which the prosecution is not bound to prove but which, if proved, will strengthen the prosecution’s case. These are: -

- (i) **Motive**
- (ii) **Opportunity**
- (iii) **Preparation**
- (iv) **Subsequent Conduct**

CLASSIFICATION OF CRIME (LEGAL PERSPECTIVE)

A crime may be classified as follows: -

- (i) **Treason** – a group of crimes against allegiance to the crown.
- (ii) **Felony** – crimes generally of a more serious nature for which a wide power of arrest without warrant is given at common Law.
- (iii) **Misdemeanor** – less serious crimes for which there is no such power of arrest.

A crime may again be classified according to the jurisdiction of the Courts to try, viz –

- (i) **Indictable Offences** – Those for which there is originally provided either
 - (a) trial on indictment only, or
 - (b) both trial on indictment and trial before a Magistrates’ Court.

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- (ii) **Summary Offences** – those for which there is originally provided either (a) trial before a Magistrate’s Court only, or both trial before a Magistrates’ and trial on indictment.

Note: Item (b) is identical under each heading and crime to which item (b) applies are, therefore to be included in both terms.

EXEMPTIONS FROM CRIMINAL LIABILITY

THE SOVEREIGN – complete exemption. Cannot be tried by a criminal court.

AMBASSADORS – Ambassadors of foreign countries and their suites are exempt from liability while resident in this country, but diplomatic action would follow any serious misbehaviour.

NOTE: If a person who has been reported for an offence and claims diplomatic or similar privilege, or gives a foreign Embassy or Legation as his address, or for any other reasons it is thought that he may be entitled to the above mentioned immunities, NO APPLICATION FOR A SUMMONS OR WARRANT IN RESPECT OF THE OFFENCE SHOULD BE MADE, but a report in duplicate, giving the facts of the case, should be sent to the Home Office or the Commonwealth Immunity, in which case any further action would be taken by those departments. In the case of urgency, a person’s claim can be checked by reference to the lists maintained by the Metropolitan Police.

CORPORATION AND COMPANIES

Corporate bodies (including companies) are liable for their corporate acts and may be fined. A practical limitation exists as regards imprisonment, but to overcome this, individual members can be convicted and punished if a crime is committed by the orders of a corporation.

INFANTS

- (i) Under 10 years - completion exemption
- (ii) 10 – 14 years - must prove mischievous discretion
- (iii) Boys under 14 years - presumed to be incapable of committing offences involving sexual intercourse

DEFENCES TO CRIME

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AUTOMATISM

“An act which is done by the muscles without any control by the mind...” *Bratty vs. Att. Gen. for Northern Ireland (1961) 3 All ER 523*, per Lord Denning.

It is a defence which these days is commonly called “Automatism” to show that the act was done involuntarily and can be described as “the sudden loss of control over mind or movement of limbs, or a sudden attack of illness producing limb movement which are involuntary and not consciously willed”.

EXAMPLES

R. v. CHARLSON (1955)

CHARLSON, a devoted and indulgent father, made a sudden and savage attack on his son, striking him on the head with a mallet and throwing him from a window. He was charged with three counts contrary to the Offences against the person Act.

At his trial evidence was given to the effect that there was a possibility that he was suffering from a cerebral tumor.

According to the medical evidence a person who was so afflicted would be liable to an outburst of impulsive violence over which he would have no control at all.

The jury was directed: -

- (i) If CHARLSON was acting as an automaton without any real knowledge of what he was doing, if his actions were purely automatic and his mind had no control over the movement of his limbs, he should be acquitted on all counts.
- (ii) If the jury were left in doubt upon the matter and thought he might well have been acting as automaton, then too, they should acquit.

BRATTY Vs Att. Gen. For Northern Ireland (1961) 3 All ER 523.

In this case the accused, who had strangled a girl, claimed he had done so when suffering from a blackout.

Held: When automatism is set up as a defence, the accused must call some evidence

(for example, medical evidence as above) to form the basis of the defence. Bratty’s own statement was

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insufficient to establish the defence of involuntary conduct. However, once the accused has set up such a defence the onus rests upon the prosecution to disprove it beyond all reasonable doubt.

R vs Quick [1973] Crim. LR 434

A case where a mental nurse, charged with aggravated assault, raised a defence of automatism by reason of an imbalance of insulin. The trial judge, purporting to follow Bratty (above), ruled that this amounted to insanity, whereupon the appellant pleaded guilty.

Held: that the alternative of automatism should have been left to the jury.

Attorney General's Reference (No. 2 of 1992) (1993) 99 Cr App. R 429

The defence of automatism requires that there was a total destruction of voluntary control on the defendant's part. Impaired, reduced or partial control is not enough.

MISTAKE AND IGNORANCE

For a mistake to be a defence it must be: -

- (i) A reasonable one
- (ii) Be of fact not law.
- (iii) Be such that on the mistaken facts the act would have been an innocent one.

R.V. TOLSON (1889)

A woman was deserted by her husband and was informed by reliable person who might reasonably be expected to know the fact, that he had last been seen on a ship bound for America. More than 5 years later, believing herself to be a widow, she married again, and her husband re-appeared – not guilty of bigamy.

Ignorance of a fact would amount to mistake as above. *Ignorance of the law will never be an excuse for anyone*, but may act in mitigation of penalty.

DRUNKENNESS (INTOXICATION)

The rules relating to the defence of drunkenness were reviewed in DPP v. BEARD (1920) and may be summarized as follows: -

- (i) It is no defence for the accused to show that his self-control was lessened by intoxication (e.g. a person charged with murder and bringing the defence of

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provocation.

- (ii) If intoxication produces insanity within the McNAGHTEN rules (below) it will have the same effect as insanity due to any other cause.
- (iii) Intoxication may negative the Mens rea required for particular offences, and if so, will provide a defence to a charge of committing that offence (e.g. murder and Section 18 wounding with intent) but (would still be liable for manslaughter or Section 20 wounding for which no specific intent is necessary).

COERCION (i.e. compulsion by :-)

OBEDIENCE TO ORDER

No defence in law unless legal duty to obey. If there is a legal duty to obey, then this will only be an excuse if the order is not manifestly illegal.

MARITAL COERCION

Before 1925 there was a presumption that a woman who committed certain crimes in the presence of her husband did so under his coercion.

This presumption was abolished by the Criminal Justice Act, 1925, which however makes it a defence, except in cases of treason and murder for a wife to prove that she committed the crime in her husband's presence and under her coercion.

DURESS

R.v. STEANE (1947)

Is the threat of violence to the person of another or to his family to compel him to commit crime.

Duress is a matter of defence where the prisoner is forced by fear of violence to do a criminal act.

It has been said that this defence does not apply to treason or murder. However, as a result of the following case the situation may have changed.

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DPP v. LYNCH (1975)

The decision in this case was that a re-trial should be ordered where the appellant had not been given the facilities of submitting duress as a defence to murder where he was charged with aiding and abetting the murder of a Police Officer.

R. v. GILL (1963)

Fear of danger to accused's property will not excuse the commission of crime- duress implies a threat of personal violence. To establish a plea of duress, the accused must have resisted or fled from the wrongdoer if that was possible.

NECESSITY

Cases in which necessity might be raised as a defence fall into three groups: -

1. **SELF-DEFENCE**

In which the accused does the prohibited act in the defence of himself or his property or in order to prevent the commission of a crime of violence against himself or a third party.

R. v. JULIEN (1969)

"Before a man may use reasonable force in self defence there is an obligation on him to retreat whether there is an assault occasioning actual bodily harm or whether death has in fact resulted".

R. v. ABRAHAM (1973)

Lord Widgery said, that although the textbook did not say that a preliminary retreat was a necessary pre-requisite to the use of force in self defence, they did not state the contrary. The common practice for judges directing juries, where the issue of self defence was raised in any case whether homicide or not, was to **INDICATE THAT A DUTY TO RETREAT AROSE.**

PRIESTNALL v. CORNISH (1979)

The defendant, who was driving his car, was involved in an incident with a Hillman Imp containing three men. The only other person in the defendant's car was his girlfriend. The Hillman pursued the

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defendants' car, overtook it and slowed down. This happened twice. After a further chase the defendant stopped his car and the Hillman stopped behind. Both drivers got out. The defendant was holding a 'Krooklock' and on seeing this, the other driver retreated into his car but was hit several times and his windscreen was broken by the defendant. The justice upheld the defendant's contention that he acted in self-defence and dismissed the information. The prosecutor appealed by way of case stated.

Held: Allowing the appeal, the victim had retreated into his car and had ceased to be a threat. The defendant had every means of retreat open to him and could not rely on self-defence.

2. **SELF PRESERVATION**

R.v. DUDLEY AND STEPHENS (1884)

The two accused were seamen who had been adrift in an open raft with a cabin boy for 20 days after a shipwreck. Believing it to be their only method of survival, they killed and ate the boy. They survived and were rescued from the boat 4 days later. Despite the plea of necessity, both were convicted and sentenced to six months imprisonment.

This case is the authority for the proposition that, "The necessity of saving one's own life does not justify taking that of another.

PRESERVATION OF OTHERS

This can be illustrated by the case of a doctor who sacrifices the life of a baby in order to preserve the life of a mother. This situation is expressly provided for by the Infant Life Preservation Act, 1949, which provides that a person shall not be convicted of child destruction. "Unless it is proved that the act which causes the death of the child was not done in good faith, for the purpose only of preserving the life of the mother".

3. **INSANITY**

The rules governing the defence of sanity are still those laid down in McNAGHTENS CASE (1843) which may be summarized as follows: -

- (a) Everyone is presumed sane until the contrary is proved.
- (b) To establish a defence in a criminal prosecution on the grounds of insanity, the accused must show that he was labouring under such a defect of reason, due to disease of the mind, that either he did not know the nature and quality of the act, or if he did know it, that he did not know it was wrong.
- (c) In cases of partial delusion, the accused is under the same degree of responsibility as he would have been on the fact as he imagined them to be.

To explain (c) the judges who formulated the rules said that if a lunatic under the influence of delusions, suppose another man to be in the act of attempting to take away his life, and kills that man as he supposes in self-defence, he would be exempt from punishment. If the delusion was that the deceased had inflicted a serious injury to his character and he killed him in revenge for such suppose injury, he would be liable to punishment.

DEGREES OF CRIMINAL LIABILITY

FELONIES

At Common Law there are varying degrees of liability for a felony depending on the nature of participation in the crime. These are discussed below.

Principal in the First Degree

A principal in the first degree is one who actually commits the crime. It is not necessary that he should be actually present at the time the offence was committed or that the act should be committed by him. For example, if a person puts poison in a drink or in food intending that some other person should consume it, and the person did do and died, he would be guilty of murder even if at the time the drink or food was consumed the offender was miles away. Again, if the crime is committed through an innocent agent e.g. a child, the offender is liable as a principal in the first degree although absent when the act was actually committed by the child. If the agent is of the age of Criminal liability and is aware of what he is doing, however, he is a principal in the first degree and the person who incited him to do the act become a principal in the second degree, if present, and an accessory before the fact, if absent.

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Principal in the Second Degree

Principals in the second degree are those who are present at the commission of the crime, and aid and abet its commission. A person may be a principal in the second degree even if from age or sex he is incapable of being a principal in the first degree.

It is not necessary that the party should be actually present at exact spot the crime is being committed. Presence may be actual or constructive. He is in constructive presence if, with intention of giving assistance, he is near enough to afford it, should the occasion arise. However, if, for example, A and B broke and entered a warehouse and stole goods there from and C assisted them in carrying away the goods, C is not a principal unless when the crime was being committed he was near enough to offer assistance. If not, he is an accessory after the fact. But if it is not necessary to prove that the party actually took part in the commission of the offence. If, for example, he watched for his companions in order to prevent surprise, or remain at a convenient distant to assist their escape, or was in such a situation as to be able readily to come to their assistance, he is in construction of law, present aiding and abetting.

Accessory Before the Fact

An accessory before the fact is one who, though absent at the time when the felony is committed, procures, counsels, commands or abets to commit the felony.

It should be noted that an accessory must be absent when the felony is committed. If he is present and aids and abets its commission, he is a principal in the second degree.

There is no accessory in treason or misdemeanor. All participants are principals.

Accessory after the Fact

An accessory after the fact is one who, knowing a felony to have been committed by another, receive, relieves, comforts or assists the felon.

There must be some active assistance given to the felon such as assistance in order to hinder his apprehension, trial or punishment. It is not accessory after the fact merely to fail to take action to prevent the escape of a felon.

Mis-prison of Felony

Mis-prison of a felony is concealing or procuring the concealment of a felony known to have been committed. It is merely necessary to prove that the person knows that the felony has been committed and that he concealed such knowledge. It is a common law misdemeanour.

MISDEMEANOURS

At Common Law, no distinction was made between principals and accessories for misdemeanours. All were tried and punished as principals.

At Common Law, in relation to misdemeanours, there is no crime akin to accessory after the fact or mis-prison, in felonies. There is crime akin to accessory before the fact, but as stated above, the offender was tried and punished as principal.

STATUTORY EFFECT ON DEGREES OF LIABILITY

The distinction, which obtained at Common Law in relation to felonies have been retained as far as terminology is concerned, such distinctions have been rendered insignificant by statutory provisions.

In relation to misdemeanors, legislation has merely enacted the Common Law situation. That is, an accessory before the fact is tried and punished as principal.

Some of the relevant statutory provisions are set out below:

CRIMINAL JUSTICE (ADMINISTRATION ACT)

Felonies

Section 34

As to Accessories Before the Fact

Whosoever shall become an accessory before the fact to any felony, whether the same be a felony at common law, or by virtue of any statute or law passed or to be passed, may be indicated, tried, convicted, and punished in all respect as if he were a principal felon.

Section 35

Whosoever shall counsel, procure, or command any other person to commit any felony, whether the same be a felony at common law, or by virtue of any Statute passed or to be passed, shall be guilty of

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felony, and may be indicted and convicted either as an accessory before the fact to principal felony, together with the principal felon, or after the conviction of the principal felon, or may be indicted and convicted as a substantive felony, whether the principal felon shall or shall not have previously convicted, or shall or shall not be amenable to justice, and may there upon be punished in the same manner as any accessory before the fact to the same felony, if convicted, as an accessory, may be punished.

Section 36

Whosoever shall become an accessory after the fact to any felony, whether the same be a felony at common law or by virtue of any Statute passed or to be passed, may be indicted and convicted either as an accessory after the fact to the principal felony, together with the principal felon, or maybe indicated and convicted of a substantive felony whether the principal felon, shall or shall not have been previously convicted, or shall or shall not be amenable to justice, and may thereupon be punished in like manner as any accessory after the fact to the same felony, if convicted, as an accessory may be punished.

Section 37

Every accessory after the fact to any felony (except where it is otherwise specially enacted), whether the same be a felony at common law, or virtue of any Statute passed or to be passed, shall be liable, at the discretion of the Court, to be imprisoned for a term not exceeding two years, with or without hard labour; and it shall be lawful for the Court, if it shall think fit, to require the offender to enter into his own recognizance, and to find sureties, both or either, for keeping the peace in addition to such punishment.

Provide that no person shall be imprisoned under clause for not finding sureties for any period exceeding one year.

As to Accessories generally

Section 38

If any principal offender shall be in anywise convicted of any felony, it shall be lawful to proceed against any accessory, either before or after the fact, in the same manner as if such principal felon had

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been attained thereof, notwithstanding such principal felon shall die, or be pardoned, or otherwise delivered before attainder; and every such accessory shall, upon conviction, suffer the same punishment as he would have suffered if the principal had been attained.

Misdemeanors

As to Abettors in Misdemeanors

Section 41

Whosoever shall aid, abet, counsel, or procure the commission of any misdemeanor, whether the same be misdemeanor at common law, or by virtue of any Statute passed or to be passed, shall be liable to be tried, indicted and punished as a principal offender.

OTHER PROVISIONS

Larceny Act Sec. 57

Every person who knowingly and willfully aids, abets, counsels, procures or commands the commission of an offence punishable under this Act shall be liable to be dealt with, indicted, tried, and punished as a principal offender.

PARTICIPANTS TO CRIME

The Criminal Law Act, 1967, abolished the term “Felony” in relation to offence. Consequently principals in first and second degree, and accessory before the facts, were abolished.

Conduct that would formerly have constituted guilt under one of those heads (the decided rules under the old law still being applicable) now renders the party liable, simply as a principal in the offence. By virtue of: -

THE ACCESSORIES AND ABETTORS ACT, 1861, SECTION 8 which reads: -

“Whoever shall aid, abet, counsel or procures the commission of any indictable offence, either at common law, or by virtue of any act passed or to be passed, is liable to be tried, indicted and punished as a principal”.

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MAGISTRATES' COURTS ACT, 1980, SECTION 44

A person who aids, abets, counsels or procures the commission of a summary offence shall be guilty of alike offence.

MENS REA IN ATTEMPTS

The Mens Rea of an attempt is essentially that of the complete crime.

R. v. WHYBOW (1951)

By a device, which he constructed, administered an electric shock to his wife whilst she was in the bath. *Held* that the Mens Rea must be as a charge of a murder, the intent in the attempt becomes the principal ingredient of the crime.

For example: -

A person intending to commit murder buys a gun and ammunition does target practice, studies the habits of his victim, finds a suitable place to lie in ambush.

THESE ARE ALL ACTS OF PREPARATION BUT COULD NOT BE PROPERLY BE DESCRIBED AS ATTEMPTED MURDER.

To continue, the person takes up his position, loads the gun, sees his victim approaching, raises the gun, takes aim, puts his finger on the trigger and squeezes it.

CERTAINLY NOW HE HAS COMMITTED ATTEMPTED MURDER.

He might have been interrupted at any one of the stages, but at which stage had he gone far enough for his conduct to be described as an attempt?

ATTEMPTS TO COMMIT CRIME

Definition – An attempt to commit a crime is any act, or series of acts which if not interrupted would result in the commission of the crime.

Part 2

THE JUDGES RULES

- Function
- The Preamble
- Breaches of the Preamble
- The Judge Rules
- Improper and Illegally Obtained Evidence
 - a. Tainted evidence
 - b. Improper searches

1. Function

Where a statement is obtained voluntarily and without oppression, the judge may be asked nevertheless to exercise his discretion to exclude it where it is obtained in breach of the provisions of the Judges Rules.

“The Judges Rules are not rules of law, their non-observance may, and at time does, lead to the exclusion of an alleged confession, but ultimately all turns on the judge’s decision whether breach or no breach it has been shown to have been made voluntarily”. (per Edmund Davies)

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It is completely within the discretion of the judge as to whether a breach of the Rules will result in exclusion. There is no rule of law, which renders a statement inadmissible because it was obtained in breach of the provisions of the Rules.

In **Conway v Hatton** (1976) 2 All E.R. 213) the police were in breach of Rule 3 of the judges rules by continuing to question a suspect after preferring charges. Nevertheless, the confession was admitted as there is no rule of law required to re-evaluate the exercise of the judge's discretion they should be reluctant to overturn the lower court unless satisfied that they assess the evidence badly applied or the wrong principles, because the appellate court lacks the advantage of seeing the personnel involved.

The over-riding circumstances to be considered by a judge are the requirements of voluntaries and non-oppression. In the words of the preamble to the Judges Rules:

“The requirements of voluntariness and oppression are over-riding and applicable in all cases. Within those principles the Judges Rules are put forward as a guide to police officers conducting investigations. Non-conformity with these rules may render answers and statements liable to be excluded from evidence in subsequent criminal proceedings”.

Nevertheless, the fact that there is no rule of law excluding such confessions does not therefore mean that the police can breach the Rules with impunity, and without fear of consequence.

In **R. v. McIntosh** (Times October 8, 1982) the Court of Appeal emphasized the importance of police adherence to the Rules, since if they are not from evidence. However, a more forceful sanction lies in the fact that breach of the Rules may itself frequently provide evidence of the statement having been obtained in circumstances of oppression. If the breaches show oppressive conduct, then the statement could not be admitted as a matter of law (R v Gowan (1982) C.L.R. 821 CA).

2. The Preamble

What is meant by the Judges Rules?

The Judges Rules may be effectively divided into two constituent parts; the Rules themselves and a preamble thereto. This contains general principles, which are concerned with establishing essential guidelines for the conduct of the police. In addition, there are administrative guidelines, which deal

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with essentially procedural matters such as the conditions of questioning, the questioning of certain groups, e.g. children and the mentally handicapped.

The Preamble provides as follows:

- a) Citizens have a duty to help a police officer to discover and apprehend offenders.
- b) Police Officers, otherwise than by arrest, cannot compel any person to communicate and to consult privately with a solicitor. This is so even if he is in custody provided that in such a case no unreasonable delay or hindrance is caused to the processes of investigation or the administration of justice by his doing so.
- c) Every person at any stage of an investigation shall be able to communicate and to consult privately with a solicitor. This is so even if he is in custody provided that in such a case no unreasonable delay or hindrance is caused to the processes of investigation or the administration of justice by his doing so.
- d) When a police officer who is making inquiries of any person about an offence, has enough evidence to prefer a charge against that person for the offence he should without delay cause that person to be charged or informed that he may be prosecuted for that offence.
- e) That it is a fundamental condition of the admissibility in evidence against any person, equally of an oral answer given by that person to a question put by a police officer, and of any statement made by that person, that it shall have been voluntary, in the sense that it has not been obtained from him by fear of prejudice or hope of advantage exercised or held out by a person in authority or by oppression.

This principle is overriding and applicable in all cases. Within this principle the Rules are put forward as a guide to police officers conducting investigations. Non-conformity with the Rules renders answers and statements liable to be excluded from evidence in subsequent criminal proceedings, in the discretion of the judge.

Non-conformity with principle (e) excludes the confession as a matter of law.

Examples of Breaches of the Principles of the Preamble

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Rule (c):- Access to a solicitor

The Administrative Directions to the Rules regulate their operation. The following sections provide guidelines for effecting the principle of access to a solicitor.

7(a) A person in custody should be allowed to speak on the telephone to his solicitor or his friends...provided that no hindrance is reasonably likely to be caused to the processes of investigation or the administration of justice.

(b) Persons in custody should not only be informed orally of the rights and facilities available to them, but on addition, notices describing them should be displayed at convenient and conspicuous place at police stations and the attention of persons in custody should be drawn to these notices.

As an exposition of the rights of the accused, Rules 7(a) and (b) serve as nothing more than a useful adjunct to determine whether or not post factor the judge should exercise his discretion to exclude the statement of the accused, because although Rule 7 states the rights of the accused, it is unlikely that he will be familiar with it and there is no obligation on the police to inform the suspect of his right to a solicitor under the Rule unless the matter is first raised by him. (R. v. King 1978) C.L.R. 632.

In R. v. Gowan (1982) Crim. L.R.821 Ca, Gowan was denied access to a solicitor during the seven days he had been in custody. There was also breach of rule (d) since despite the fact of admission, 2 days after his arrest, he had not been charged.

Held: allowing Gowan's appeal against conviction.

- 1) Breaches of the preamble to the Judges Rules and the Rules themselves would not necessarily amount to oppression.
- 2) Failure to comply with them may help to establish oppressive conduct thus preventing the admissibility of confession.
- 3) Where there is a breach of the Judges Rules per say the judge has discretion to exclude confessions.
- 4) In this case it would be unsafe to say Gowan's will had not been overborne and his admissions were voluntary.

In R. v. Lomsatef 1977 1WLR 812, the accused was detained by customs officers at 12:40 a.m. and Prepared by JCF Reform and Modernization Programme / Strategy Policy and Plans Branch 2007 - 2008

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questioned until 4:20 a.m. He was refused access to a solicitor at that time and a solicitor was permitted to see him at 6:20 that day. The Court of Appeal refused to interfere with the decision of the judge to exercise his discretion to admit the statement (but allowed the appeal for other reasons).

Lawton LJ stated however:

“If detaining or arresting officers are going to refuse to allow solicitors to advise a man under detention or arrest, it is no use their mouthing the words of the Judges Rules, they must be prepared if asked, to justify what they are doing...”

Thus it seems that following Lomsatef it will no longer be justifiable to prevent access to a solicitor unless it can be shown to cause unreasonable delay or hindrance to the administration of justice.

The practice of refusing a solicitor in an attempt to extricate a confession was specifically deprecated in *R v McKenna* in which the court commented that if the police are allowed to use in court evidence of suspects whom they hope will incriminate themselves by being the advice of a solicitor, then they will go on doing so.

The court was of the opinion that the desirability of avoiding the appearance of unfairness by allowing the Crown to take advantage of an official's wrong, lies at the root of the discretion to exclude, legally admissible evidence. They suggested that if the courts' exercised their discretion to exclude evidence obtained in breach of the requirement there would be fewer complaints of abuse of that kind.

However, the strident measures proposed in *McKenna* have not been effected. The determinant of the exercise of the judge's discretion to exclude a statement lies in whether the circumstances in which it was obtained have rendered it unreliable. The purpose of exclusion is not to admonish the police for their breach.

Therefore, in *R. v. Elliott* (1977) C.L.R. 551, the defendant had only 2 hours sleep in 36 when he made a statement and had been refused access to see a solicitor. Nevertheless his statement was admitted.

It is not only the Judges Rules and their preamble, which give the defendant the right of access to a solicitor. Section 62, Criminal Law Act 1977 provides:

“Where any person has been arrested or is being held in custody in a police station or other

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premises he shall be entitled to have information of his arrest and of the place where he is being held sent to one person reasonably named by him, without delay or where some delay is necessary in the interest of the investigation or prevention of crime or the apprehension of offenders, with no more delay than is necessary”. (See R. v. Allen 1977 C.L.R. 163).

The Discretion

On what basis then should the judge consider the exercise of his discretion where the suspect has been refused access to a solicitor, or indeed for any other breach of the Judges Rules?

It is clear that the courts are not prepared to view the exercise of discretion to exclude as a means of admonishing the police for their acts as was suggested in R. v. McKenna:

“Judges control the conduct of trials and the admission of evidence against persons on trial before them, they do not control or in any way initiate or supervise police activities or conduct”.

Rather, the judges are faced with balancing the requirements of the investigation officers with the rights of the investigated. (R. vs. Lemsatef).

The overriding principle to be considered is whether the confession was voluntary. In R. v. Elliott (1977) C.L.R. 551, Kilner Brown J. said:

“The statement is not to be excluded because obtained in breach of the Judges Rules if it has not thereby been rendered unreliable.”

In R. v. Westlake (1979) C.L.R. 652) the court gave some guidelines as to matters to which the judge should have no regard in considering whether to exercise his discretion to exclude a statement.

He should exclude from consideration:

- 1) The weight of the evidence of the confession.
- 2) Discrepancies between them and what the defendant might have known.
- 3) Whether there is evidence outside the confession.
- 4) The intention of the police officers.

The fact remains that the ultimate exercise of the discretion lies in the hands of the judge. If the
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statement is involuntary it must be excluded. If it is obtained in breach of the Judges Rules or administrative directions there is a discretion to exclude, which is to be applied by looking at the external circumstances in which that statement was given and not by drawing adverse inferences from the content, weight or inconsistencies or the statement itself.

Rule (d): Charging the accused when enough evidence is available to be so.

In *R. v. Sherman and Apps* (1981) 2 All E.R. 612, police officers delayed in charging the defendant in order to avoid the need to grant bail because it was felt that inquiries into other positive charges could be better effective if the defendant remained in custody. The defendant was kept in custody. The defendant was kept in custody for 2 days after his arrest and had neither been charged nor brought before a magistrate.

The court held that principle (d) of the Judges Rules (and s.38 (4) MCA 1952 are mandatory in their application and that where there is sufficient evidence to charge a person then it must be done without delay and subject to no qualifications.

Even if the suspect is not charged principle (d) requires him to be informed then he may be prosecuted when the police have enough evidence to prefer a charge.

In *R. v. Hudson* (1981) C.L.R. 107 CA), D was detained for 5 days and 4 nights and made a written confession. He was not charged with corruption until 12 months later. The court held that both arrest and detention were in breach of the obligation imposed by the Judges Rules.

In many cases already considered the courts have made clear their intention not to exclude a statement obtained in breach of the Rules by way of admonishing the police for that breach. That approach is particularly apparent in cases concerning breaches of principle (d).

In *R. v. Boyd McKintosh* (1983) 76 C.A.R. 177 CA), the defendant made a written statement the day after his arrest confessing to armed robberies. He was charged on the fifth day after the statement had been made and brought before the magistrates on the 6th day. In the interim period he had confessed to various other offences.

On appeal against his conviction, the court acknowledged a clear breach of principle (d) as the police were in a position to charge the defendant the day after he made his statement. Nevertheless since the

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statements were not involuntary or oppressively obtained, they had properly admitted in evidence. However, the court expressed a hope that such behaviour by the police would not occur in future.

The New Judge's Rules

These rules supersede the rules previously made by the Judges.

NOTE The above rules do not affect the principles:

- a) That citizens have a duty to help a police officer to discover and apprehend offenders
- b) That police officers, otherwise than by arrest, cannot compel any person against his will to come to remain in any police station
- c) That every person at any stage of an investigation should be able to communicate and to consult privately with a solicitor. This is so even if he is in custody provided that in such a case no reasonable delay or hindrance is caused to the process of investigation – the administration of Justice by his doing so.
- d) That when a police officer who is making enquiries of any person about an offence has enough evidence to prefer a charge against that person for the offence, he should without delay cause that person to be charged or informed that he may be prosecuted for the offence.
- e) That it is a fundamental condition of the admissibility in evidence against a person equally of any oral answer given by that person to a question put by a police officer and of any statement made by that person, that it shall be voluntary, in the sense that it has not been obtained from him by fear or prejudice or hope of advantage, exercised or held out by a person in authority or by oppression.

The principle set out in paragraph (c) above is overriding and applicable in all cases. Within that principle the above Rules are put forward as a guide to Police Officers conducting investigations. Non-conformity with these Rules may render answers and statements liable to be excluded from evidence in subsequent criminal proceedings.

The New Judges Rules made by Her Majesty's of the Queens'

Bench Division was published in England on 24th January, 1964, and came into operation on 27th January, 1964. These Rules adopted by Judges of the Supreme Court of Jamaica and went into operation on 1st May 1964. The following are the Rules:

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1. When a Police Officer is trying to discover whether, or by whom, an offence has been committed he is entitled to question any person, whether suspected or not, from whom he thinks that useful information may be obtained. This is so whether or not the person in question has been taken into custody so long as the person has not been charged [or] informed that he may be prosecuted for it.
2. As soon as a Police Officer has evidence which would afford reasonable grounds for suspecting that a person has committed an offence, he shall caution that person or cause him to be cautioned before putting to him any questions, or further questions, relating to that offence.

The caution shall be in the following terms:

“You are not obliged to say anything unless you wish to do so but what you say may be put into writing and given in evidence.”

When after being cautioned a person is being questioned, or elects to make a statement, a record shall be kept of the time and place at which any such questioning or statement began and ended and of the persons present.

3. (a) Where a person is charged with or informed that he may be prosecuted for an offence he shall be cautioned in the following terms

“Do you wish to say anything? You are not obliged to say anything unless you wish to do so but whatever you say will be taken down in writing and may be given in evidence.”

3. (b) It is only in exceptional cases that questions relating to the offence should be put to the accused person after he has been charged or informed that he may be prosecuted. Such questions may be put where they are necessary for the purpose of preventing or minimizing harm or loss to some other person or to the public or for clearing up an ambiguity in a previous answer or statement. Before any such questions are put, the accused should be cautioned in these terms:

“I wish to put some questions to you about the offence with which you have been charged (or about the offence for which you may be prosecuted). “You are not obliged to answer any of these questions, but if you do, the questions and answers will be taken down in writing and may be given in evidence.”

Any questions put and answers given relating to the offence must be contemporaneously recorded in full and the record signed by that person or if he refuses by the interrogating Officer.

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3. (c) When such a person is being questioned, or elects to make a statement, record shall be kept of the time and place at which any questioning or statement began and ended and the persons present.

4. All written statements made after caution shall be taken in the following manner:

(a) If a person says that he wants to make a statement he shall be told that it is intended to make a written record of what he says.

He shall always be asked whether he wishes to write himself what he wants to say: if he says that he cannot write or that he would like someone to write it for him, a police officer may offer to write the statement for him. If he accepts the offer the police officer shall, before starting, ask the person making the statement to sign or make his mark to the following:

“I..... wish to make a statement, I want someone to write down what I say, I have been told that I need not say anything unless I wish to do so and that whatever I say may be given in evidence.”

(b) Any person writing his own statement shall be allowed to do so without any prompting as distinct from indicating to him what matters are material.

(c) The person making the statement, if he is going to write it himself, shall be asked to write out and sign before writing what he wants to say, the following:

“I make this statement of my own free wil. I have been told that I need not anything unless I wish to do so and that whatever I say may be given in evidence”.

(d) Whenever a police officer writes the statement he shall take down the exact words spoken by the person making the statement, without putting any questions other than such as may be needed to make the statement coherent, intelligible and relevant to the material matters: he shall not prompt him.

(e) When the writing of a statement by a police officer is finished the person making it shall be asked to read it and to make any corrections, alterations or additions he wishes. When he has

finished reading it, he shall be asked to write and sign or make his mark on the following Certificate at the end of the statement.

“I have read the above statement and I have been told that I can correct, alter or add anything I wish. This statement is true. I have made it of my own free will.”

- (f) If the person who has made a statement refuses to read it or write the above-mentioned certificate at the end of it or to sign it, the senior police officer present shall record on the statement itself and in the presence of the person making it what has happened. If the person making the statement cannot read, or refuses it the officer who has taken it down shall read it over to him and ask him whether he would like to correct, alter or add anything and to put his signature or make his mark at the end. The police officer shall then certify on the statement itself what he has done.
5. If at any time after the person has been charged with, or has been informed that he may be prosecuted for an offence, a police officer wishes to bring to the notice of that person any written statement made by another person who in respect of the same offence, has also been charged or informed that he may be prosecuted, he shall hand to that person the true copy of such written statement, but nothing shall be said or done to invite any reply or comment. If that person says that he would like to make a statement in reply, or starts to say something, he shall at once be cautioned or further cautioned as prescribed by rule 3(a).
6. Persons other than police officers charged with the duty of investigating offences or charging offenders shall, so far as may be practicable comply with these rules.

ADMINISTRATIVE DIRECTIONS ON INTERROGATION AND THE TAKING OF STATEMENTS

1. Procedure Generally

- (a) When possible, statements of persons under caution should be written on the forms provided for the purpose. Police Officer's notebook should be used for taking statements only when no forms are available.
- (b) When a person is being questioned or elects to make a statement, a record should be kept of the

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time or times at which during the questioning or making of a statement, there were intervals or refreshment was taken. The nature of the refreshment should be noted. In no circumstances should alcoholic drink be given.

- (c) In writing down a statement, the words used should not be translated into Official” vocabulary, this may give a misleading impression of the geniuses of the statement.

The following procedure should be adopted whenever a charge is preferred against a person arrested without warrant of any offence: -

As soon as the charge has been accepted by the appropriate police officer, the accused person should be given a written notice containing a copy of the entry in the charge book sheet, giving particulars of the offence with which he is charged. So far as possible, the particulars of the charge should be stated in simple language so that the accused person may understand it, but they should also show clearly the precise offence in law with which he is charged. Where the offence charged is a statutory one, it should be sufficient for the latter purpose to quote the section of the statute, which create the offence.

The written notice should include some statement on the lines of the caution given orally to the accused in accordance with the Judges’ Rules after a charge has been preferred. It is suggested that the form of notice should begin with the following words: -

“You are charged with the offences shown below. You are not obliged to say anything unless you wish to do so, but whatever you say will be taken down in writing and may be given in evidence.”

- (c) Once the accused person has appeared before the court, it is not necessary to serve him with a written notice of any further charges, which may be preferred. If, however, the police decide before he has appeared before a Court, to modify the charge or to prefer further charges, it is desirable that the person concerned should be formally charged with the further offence and given a written copy of the charge as soon as it is possible to do so, having regards to the particular circumstances of the case. If the accused person has then been released on bail, it may not always be practicable or reasonable to prefer the new charge at once, and in cases where he is due to surrender his bail within forty-eight (48) hours or in other cases of difficulty, it will be sufficient for him to be formally charged with the further offence and given a written copy of the charge as soon as it is possible to do so, having regard to the particular circumstances of the case.

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If the accused person has then been released on bail, it may not always be practicable or reasonable to prefer the new charge at once and in cases where he is due to surrender his bail within forty-eight (48) hours or in other cases of difficulty it will be sufficient for him to be formally charged with the further offence and served with a written notice of the charge after he has surrendered to his bail and before he appears before the court.

2. Facilities for defence

- (a) A person in custody should be allowed to speak on the telephone to his solicitor or to his friends provided that no hindrance is reasonably likely to be caused to the processes of investigation, or the administration of justice by his doing so. He should be supplied on request with writing materials and his letters should be sent by post or otherwise with the test possible delay additionally, telegrams should be sent at once, at his own expense.
- (b) Persons in custody should not only be informed orally of the rights and facilities available to them, but in addition, notices describing them should be displayed at convenient and conspicuous places at the police station and the attention of persons in custody should be drawn to these notices.
- (c) Care should be taken to avoid any suggestion that the person's answers can only be used in evidence against him, as this may prevent an innocent person making a statement, which might help him to clear him of the charge.

Record of Interrogation

Rules ii and Rules iii (c) demand that a record should be kept of the following matters: -

- (a) When, after being cautioned in accordance with Rule ii, the person is being questioned or elects to make a statement – of the time and place at which any such questioning began and ended and of the person present;
- (b) When, after being cautioned in accordance with Rule iii, (a) or (b) a person has being questioned or elects to make a statement – of the time and place at which any questioning began and ended and of the persons present;

In addition to the records required by those Rules full records of the following matters should additionally be kept: -

- (i) Of the time or times at which cautions were taken

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- (ii) Of the time when a charge was made and/or the person was arrested and
- (iii) Of the matter referred to in paragraph 1(b) above

If two or more police officers are present when the questions are being put or the statements made, the records made should be counter signed by other officers present.

3. Comfort and Refreshment

Reasonable or agreements should be made for the comfort and refreshment of persons being questioned. Whenever practicable, the person being questioned, statements should be stated.

4. Interrogation of children and young person

As far as practicable, children (whether suspected of crime or not) should only be interviewed in the presence of a parent or guardian, or in their absence, some persons who is not a police officer and is of the same sex as the child. A child or young person should not be arrested, nor even interviewed at school; such action can possibly be avoided. Where it is found essential to conduct the interview at school, this should be done only with the consent, and in the presence, of the head teacher or his nominee.

5. Interrogation of Foreigners

In the case of a foreigner making a statement in his native language;

- (i) The interpreter should take down the statement in the language in which it is made.
- (ii) An official English translation should be made in due course and he proved as an exhibit with the original statement.
- (iii) The foreigner should sign the statement at a (I)

Apart from the question of apparent unfairness, to obtain the signature of a suspect to an English translation of what he said in a foreign language can have little or no value as evidence, if the suspect disputes the accuracy of this record of his statement.

Notes:

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(a) The Judges' Rules are not rules of Law but rules of practice, and although they are there to obey any confession, whether written or verbal, is not necessarily rendered inadmissible when the rules have not been complied with. The judge may exercise his discretion and admit the evidence but the test of admissibility is whether the confession was made voluntarily. May (1952) 36 Cr. App. R. 91 and Prager (1978) 56 Cr. App. R. 151 (1972) Crim.L.R.3.

(b) Where there has been threat or inducement held out by some person in authority sufficient to deprive the person to whom the threats, etc., was made of free will be excluded. Richards (1967) 52 Cr.App.R.266.

A police officer is a person in authority and confessions made following a promise of bail or arrange to have the offence admitted taken into consideration with another, are inadmissible. An improper inducement may result from the initiative of the accused. Northern (1967) 52 Cr. App.R. 97. Zevechas (1970) 54 Cr. App/R. 202.

Where a threat, etc., is made by some other person in the presence of a police officer and a confession follows, it is not admissible unless it can be shown that the police officer obtained it after some cautionary remark indicating that he did not take advantage of the action of the other person. Cleary (1964) 48 Cr. App. R. 116 Moor (1972) Crim. L. R. 372.

The effect of inducement is important, however, and if a confession follows an inducement at an interval where the accused is no longer influenced by it, it is admissible. Smith (1959) 2 C.B.35.

(c) Rule 1 covers the gathering of information and sufficient evidence to prefer a charge but a police officer is not bound to caution under Rule ii until he has some information which he can put before the court as the "beginnings of a case" Osborne and Virtue (1972)

(d) Where a person has been charged with an offence or informed that he may be prosecuted he may only be questioned in accordance with Rule iii (b). However, the words 'has' been charged etc., should be read as such and questions put to an accused at a point when he ought to have been charged, i.e. when the police had sufficient evidence, are admissible. Collier and Stenning (1965) 49 Cr. App. R. 344.

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A person who has been charged may be questioned about other offences – i.e. in accordance with Rule 1. Bucham (1964) 48 Cr. App.126.

- (e) The failure to observe the directions regarding the interrogation of children and young persons does not render the evidence inadmissible. Roberts (1970) Crim.L.R. 464.

CAUTION STATEMENT

DO YOU WISH TO SAY ANYTHING? YOU ARE NOT OBLIGED TO SAY ANYTHING UNLESS YOU WISH TO DO SO, BUT WHATEVER YOU SAY WILL BE TAKEN DOWN IN WRITING AND MAY BE GIVEN IN EVIDENCE.

/s/ GEORGE MARTIN

24.3 .73

Wit. C. J. HARVEY, D/ASP

.....
I, GEORGE MARTIN WISH TO MAKE A STATEMENT, I WANT SOMEONE TO WRITE DOWN WHAT I SAY, I HAVE BEEN TOLD THAT I NEED NOT SAY ANYTHING UNLESS I WISH TO DO SO AND THAT WHATEVER I SAY MAY BE GIVEN IN EVIDENCE.

/s/ GEORGE MARTIN

24.3 .73

Wit. C.J. HARVEY, D/ASP

.....

BODY OF STATEMENT

.....
.....
.....
.....

/s/ GEORGE MARTIN

24.2.73

Wit. C.J. HARVEY, D/ASP

I HAVE READ THE ABOVE STATEMENT AND I HAVE BEEN TOLD THAT I CAN CORRECT, ALTER OR ADD ANYTHING I WISH. THIS STATEMENT IS TRUE; I HAVE MADE IT OF MY OWN FREE WILL.

/s/ GEORGE MARTIN

24.2.73

Wit. C.J. HARVEY,

D/ASP

.....
.....

TAKEN BY ME ON THE 24.2.73 AT C.I.D. HEADQUARTERS IN THE PRESENCE OF DET. ASP CLINTON HARVEY. THE STATEMENT WAS READ OVER BY THE MAKER AT HIS REQUEST, WHO MADE CORRECTIONS AND ADDITIONS. THE STATEMENT COMMENCED AT 2:00pm AND CONCLUDED AT 3:45pm.

Part 3

LAWS OF EVIDENCE

Definition

The word evidence means that which is evident or manifest or which supplies proof. The term evidence is used in law to indicate the means by which any fact or point in issue or question may be proved or disproved in a manner complying with the legal rules governing the subject.

Evidence consists of the following: -

- (1) Testimony
- (2) Hearsay
- (3) Documents
- (4) Things
- (5) Facts

Which a court will accept as evidence of the facts in issue, and may be divided into:-

- (a) Direct evidence
- (b) Circumstantial evidence (very important)
- (c) Primary evidence
- (d) Secondary evidence

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The facts in issue in a criminal case are those facts, which the prosecution must prove or disprove, in order to succeed, or for the defence to establish in order to defeat the prosecution's case.

The prosecution must present its 'Best Evidence'. Any failure to establish the essential ingredients of the charge can result in a defence submission that there is no case to answer.

Direct evidence – is that which a witness has seen or heard or experienced for himself of the facts in issue.

Circumstantial evidence – should be considered as a chain of facts, the combination of which may create a conclusion of guilt.

Primary evidence – is that which does not, by itself, suggest the existence of better evidence (Original document).

Secondary evidence – is that which does suggest better evidence e.g., copy of document; explain reason for non-production or original.

To be admissible evidence must be relevant to the issue and not rendered inadmissible because it infringes an exclusionary rule. For example, Hearsay, opinion etc.

Judge and Jury

- ✓ The Judge determines questions of Law.
- ✓ The Jury determines questions of fact.
- ✓ The Judge, however, by an exception, can direct a jury to discharge an accused if the prosecution has failed to establish their case.

Burden of Proof- The burden of proof in a criminal case is borne by the prosecution unless the burden on the accused by the wording of the statute infringed, or on issue of insanity. When the burden of proof is borne by the prosecution the issue must be proved **beyond all reasonable doubt**.

When the burden of proof is on the accused a preponderance of probability of probability will suffice

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(R.V. Carr Briant 1943).

Rules of Evidence (Taylor's)

There are four laid down rules in giving evidence which are as follows: -

- (a) The evidence must correspond with the pleading or particulars of the claim
- (b) The evidence must be confined to the facts at issue
- (c) The burden of proof is on the person holding the substantial affirmative (usually the plaintiff in a civil case, and the prosecutor in a criminal case).
- (d) The best evidence must be produced and not hearsay, it must be remembered that what is said in the absence of accused is not evidence.

Judicial Notice

Judicial Notice means that a Court will accept the existence of certain matters without their having to be strictly proved, they are: -

- (a) Those which are too notorious to require proof
- (b) Those which can be ascertained by reference to a source of incontestable -accuracy

In category (a) Acts of Parliament are an example. In category (b) the Almanac of the Book of Common Prayer and Ordinance survey are accepted.

Presumptions- There are two types of presumptions: -

- (a) Presumptions of fact
- (b) Presumptions of law

Presumptions of facts: enable a jury to determine that an accused, by his actions intended that a certain thing should occur. By section 8, Criminal Justice Act 1967, it must be proved that the accused did intend or foresee the result, not that it was a natural and probable consequence of his actions. Presumptions of facts are Rebuttable.

Presumptions of law: These come into two categories: -

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(a) Rebuttable

(b) Irrebuttable

(i) *Irrebuttable Presumptions*: - boy under 14 years cannot rape. Child under 12 years cannot commit an offence.

(ii) *Rebuttable Presumptions*: - the accused is innocent. The accused claims insanity.

The jury must find that the presumed facts exist unless evidence to the contrary is adduced.

Corroboration

Definition: - Is other independent evidence tending to support the truthfulness and accuracy of evidence already given.

As a matter of Law, a person may be convicted on the word of one witness only. In practice a court will hesitate to convict unless this evidence is supported in some material particular.

Corroboration is demanded in such cases of perjury, procuration of female for prostitution or unlawful sexual intercourse, and in cases of any kind involving the un-sworn evidence of a child. (The un-sworn evidence of a child witness can corroborate the sworn evidence of another child i.e. the victim R.V. Hester 1972)

Where corroboration is demanded by the Law, the Jury must be warned that they cannot convict in its absence.

Corroboration is required in some cases, and in particular, sexual offences other than those already mentioned. In these cases the jury must be warned by the judge of the dangers of convicting on uncorroborated evidence and told that it is unsafe to do. If they then convict, it is perfectly proper to do so. If they convict without having been given the warning the conviction is liable to put aside even if there is corroboration.

The warning must also be given by the judge in all cases in which sworn evidence is that of a child. It is desirable but not essential as a matter of law when an accomplice is called for prosecution. (R. Vs Prater 1960)

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Accomplices: - An accomplice is any party to the crime charged whether he is a Principal, or someone who merely aids and abets its commission.

The word 'accomplice' has two further extended meanings:-

- (a) A receiver is the accomplice of the thief who stole the property he received.
- (b) A party to other crimes committed by the accused although not a party to the crime charged.

(In this latter instance, only if this is admissible in evidence in respect of the crime charged. *Davies v Director of Public Prosecutions*, 1954)

The evidence of one accomplice will not corroborate the evidence of another.

Early Complaint

Early complaint is not corroboration but proves consistency of conduct and is important to negative defence of consent on the part of the accused. It must be made as soon after the event as could reasonably be expected and must be voluntary and spontaneous, not as the result of leading, intimidating or suggestive questioning. (*R. Vs. Osbourne* 1905)

Who May Give Evidence

Any person whose evidence is admissible provided he is sane and not subject to Sovereign or Diplomatic immunity. Such a witness is competent but not necessarily compellable. A compellable witness is one who is obliged to go into the witness box, and refusal to do so could result in imprisonment for contempt of court.

Privilege

When in the witness box the witness may claim privilege from answering certain questions:-

- (1) Incrimination questions in respect of self or spouse.
- (2) Disclosing communications made by him to his spouse during the marriage.
- (3) Giving evidence to prove that marital intercourse took place between him and his wife at any period.
- (4) A lawyer disclosing communications made by him to his client without the client's consent, or

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if the client, from disclosing communications made to him by his lawyer.

- (5) Producing title deeds.
- (6) Admitting adultery, unless he has already given evidence in disproof.
- (7) 'Without prejudice' communications without the consent of the other party.

The accused is not privileged to decline to answer incriminating questions in respect to the crime charged.

Professional communications as between doctor and patient, priest and penitent are privileged. A journalist cannot refuse to name his informant in report or matters published in a newspaper.

Husband and Wife

A general rule is that the accused's spouse is not a competent witness for the prosecution, but is competent but not compellable for the accused. There are three exceptions: -

- (1) The spouse is competent and compellable as a witness for the prosecution on charge of violence by the accused against the spouse or injury to his or her liberty or health and extends to buggery of a wife by her husband. (R. v. Blanchard, 1952).
- (2) The accused's spouse is a competent but not compellable witness for the prosecution in cases such as: -
 - (i) Neglect to maintain family
 - (ii) Offences Against Children and Young Persons Act 1933 – Child Destruction, Indecency with Children
 - (iii) Bigamy
 - (iv) Sexual offences (other than Buggery with someone over the age of 17) Indecent Assault on a man, assault with intent to commit buggery.

The Accused

The accused is always competent to give evidence on his own behalf and is a competent but not compellable witness for a co-accused. If it is desired to call him a witness against the co-accused the prosecution must: -

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- (i) File a nolle prosequi – an application by leave of the Attorney General to stop proceedings.
- (ii) Offer no evidence against him (when the Judge will direct a verdict of ‘not guilty’).
- (iii) Apply for separate trial, or
- (iv) Wait until he has pleaded guilty.

He cannot be questioned to show he has a discreditable past other than: -

- (i) Where proof of previous conviction forms part of the offence charged against him.
- (ii) Where either he or his advocate has sought through the questioning of Witnesses to establish his own good character or, if he or his advocate have made attacks on the prosecution witnesses as to their characters.
- (iii) He has given evidence against a co-defendant.

Interpreters

Where the services of interpreters are required, he should make his own notes of the interview. Failing this he should be asked to initial the record in the notebook of the investigating officer.

Plea of ‘not guilty’: Two interpreters advisable to counter allegations that first interpreter is prejudiced, i.e. prosecution witness.

Informants and Crown Privilege

There is no privilege protecting informants, but they are frequently protected in practice unless this evidence is directly material or necessary in the interest of the prisoner. The Judge has discretion to disallow questions concerning them but the name of the informant must be given if demanded.

Crown and Police documents are privileged if declared to be injurious to the public interest but where a court finds that ‘disclosure would not be prejudicial to public interest or that any possibility of such prejudice is insufficient to justify a document being withheld, disclosure will be ordered’. Conway v. Rismar (1970)

Admissions and Confessions

A confession of guilt in a criminal case is only admissible if it was not made in consequence of an
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unlawful threat or inducement of a temporal nature made or held out by a person in authority. A confession included any part admission of guilt. It is a rule of law that confession, which is not voluntary, is altogether inadmissible. Confession obtained in contravention of judge's rules or by means of other improper questions may be excluded by the judge.

A person in authority is anyone who the accused might reasonable consider to be able to influence the outcome of a prosecution.

Hearsay Evidence

Something that the witness has not seen or heard himself, but has heard or learned from someone else. For the most part, hearsay is inadmissible because it cannot be treated by cross-examination.

Exceptions to the Rule Against Hearsay

To totally exclude hearsay evidence could result in injustice and it can be admitted as part of the happenings (Res Gestae). The following are examples of the exceptions to the rules: -

- (1) Forms part of actual crime – Res Gestae
- (2) Written statement made by the accused to the investigating Officer.
- (3) Public documents and certificates
- (4) Dispositions (Conditionally bound witness)
- (5) Doctors certificates – cases of Drunken Drug
- (6) Plans or drawings made by qualified persons
- (7) Private documents where the maker is dead, unfit, unavailable etc.
- (8) Copies of private documents as follows: -

When the original is in the possession or power of the accused and he does not produce it after Notice to produce has been served upon him

- (i) When the document is in the hands of a stranger who refused to produce it and who cannot legally be compelled to do so
- (ii) When the original has been lost or destroyed and proper search has been made for it
- (iii) A bank is not compelled to produce a banker's book. The bankers book evidence Act 1879, allows the production as evidence of certified copy of an entry by a person who has examined the original and compared the copy with it

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- (9) Documents relating to Trade or Business (Criminal Evidence Act 1965)
- (10) Deceased persons (Dying Declaration)
- (11) Declarations against interest by a deceased person
- (12) Declaration by deceased person in the course of duty
- (13) Early complaint in some sexual offences

Opinion

The general rule is that a witness must speak to the facts he has observed and the inference be drawn from those facts. An expert witness may be asked for his opinion on subjects of which he has specialized knowledge.

Any witness may be asked to give his opinion concerning non-technical matters when it would be impracticable for him to give his evidence in any other form.

Examination of Witnesses

A Witness is liable to be questioned three times:-

- (i) Evidence in Chief, substance of his account
- (ii) Cross-Examination, by defence
- (iii) Re-Examination, by prosecution

In cross-examination the witness may be examined as to the issue, or to credit.

Re-examination the prosecution seeks to destroy the effects of cross-examination and must be confined to points arising there from.

Leading questions may not be asked – one which suggests the answer desired or assumes the existence of a disputed fact.

They are objectionable because: -

- to a false witness they may suggest what particular lie would be desirable
- even an honest witness is prone to give an assenting answer mere mental laziness

Unfavourable and Hostile Witnesses: -

An unfavourable witness is one who proves to be un-cooperative and fails to prove the facts called upon to prove. He may not be examined as to credit, but other witnesses may be called to contradict his testimony.

A hostile witness shows he is not desirous of telling the truth at the instance of the party calling him. Application is made to the judge to treat him, as hostile witness. Once leave has been given he can be asked if he has made a statement inconsistent with his present testimony and to contradict him with that statement if denied. Criminal procedure Act 1865, Section 3. The statement does not become evidence of the facts stated; it merely neutralizes the witness's adverse testimony.

Neither the unfavourable nor hostile witness may be discredited by evidence of bad character.

Evidence of Disposition

Broadly, it means a person's tendency to act, think, or feel in a particular way, it may be proved by previous conduct, evidence of character, or, if any, previous convictions. Whatever forms the evidence takes, it may be excluded by the Judge, if he considers that the evidential value is small, contrasted with the highly prejudicial effects it may occasion. The courts take the view that there is a danger in accepting this kind of evidence on the broad basis that the defendant is guilty because he is the kind of man who would do that sort of thing.

Cases quoted are: R. v. Straffen 1952- evidence admitted because it went to show an abnormal propensity on the part of the accused. Harris v. Director of Public Prosecutions 1952 – evidence that he was in the vicinity when previous thefts were committed, not admitted as material confirmation of his identity as the thief on last occasion.

Similar Fact Evidence

MAKIN v ATTORNEY GENERAL for New South Wales 1894

Accused claims that child of whose murder he was accused died naturally, evidence admitted of finding of bodies of other children buried in yards of house occupied by him.

NOOR MOHAMED v. R 1949

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Accused charged with murdering a woman by cyanide poisoning. Evidence that accused was goldsmith and possessed cyanide for lawful business purposes admitted by trial judge. Conviction quashed by Privy Council.

ILLEGALLY OBTAINED EVIDENCE

In *Kuruma V. R.* (1955) Lord Goddard said,

“Any material which is relevant and of probative value is admissible, it matters not how it was obtained – statements which incriminate the accused must be voluntary – the Judge has discretion to disallow”.

Tape Recordings:

In *R. v. Mills*, *R. v. Rose* 1962, it was held that a tape recording was regarded as a notebook form which the witness could refresh his memory, and extended in *R. v. Ali* and *R. v. Hussain* 1965 to be evidence in itself. The safeguard is provided in *R. v. Stevenson and others*, 1970. “Just as in case of photographs in a criminal trial the original, unretouched negatives have to be retained in strict custody, so should original tape recordings”. (see also *R. v. Robson* and *R. v. Harris* 1972).

VIDEO AND TAPE RECORDINGS

Supreme Court Criminal Appeals Nos. 152,155,156,157,158/99

R v Lyndel Levy, Anthony Wallace, Winston Ferguson, Gairy Hylton & Patrick Evans

The appellants submitted that the learned trial judge erred in receiving into evidence a video cassette “since the original was not in Court and could not be accounted for”.

Miss Llewellyn for the Crown, referred to the evidence of Corporal Daley where he said he kept the tape in his custody and that no alteration was made to the tape after it came into his custody. She also referred to the evidence of the two young ladies who by their answers to questions addressed to them by the Court and Counsel, attested to the authenticity and accuracy of the video tape. She submitted that there could be no doubt that the tape was relevant. Miss Llewellyn cited and relied on the Canadian case of **The Queen v. Alexander Nikolovski** (1996) 3 SCR.

Canadian case of **The Queen v. Alexander Nikolovski** (1996) 3 SCR.

In the **Nikolovski** case (supra) the Supreme Court of Canada by a majority held that:

“Courts have recognized the importance and usefulness of videotapes in the search for

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truth in criminal trials as this type of evidence can serve to establish innocence just as surely and effectively as it may establish guilt. A video camera records accurately all that it perceives and it is precisely because videotape evidence can present such very clear and convincing evidence of identification that triers of fact can use it as the sole basis for the identification of the accused before them as the perpetrator of the crime.

Once it is established that a videotape has not been altered or changed, and that it depicts the scene of a crime, then it becomes admissible and relevant evidence. Not only is the tape (or photograph) real evidence in the sense that that term has been used in earlier cases, but it is to a certain extent testimonial evidence as well. It can and should be used by a trier of fact in determining whether a crime has been committed, and whether the accused before the court committed the crime. It may indeed be a silent, trustworthy, unemotional unbiased and accurate witness who has complete and instant recall of events. It may provide such strong and convincing evidence that of itself it will demonstrate clearly either the “innocence or guilt of the accused.”

In support of the above, reference was made to **R. v. Dodson** (1984) 1 W.L.R. 971 at pp 978-79 and to **R v Downey** (1995) 1 Cr. App. R. 547.

Common Law test - Admission of image evidence (**R. v. Cremer and Cormier**) developed in 1968. Assesses the accuracy of image-based evidence in representing the facts, and assesses its genuineness and authenticity. This test identifies three groups of individuals that can swear that an image is authentic:

- Witness to the event,
- Cameraperson who took the image, and an
- Expert on the camera system

Refreshing the Memory

A witness may refresh his memory from notes made at the time of an incident, or made as soon afterwards for his recollection of the incident to be perfect. It is perfectly proper for Police Officers to collaborate in the making of notes concerning an interview or an occurrence at which they have both

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been present. R. v. Bass 1953. It can be justified for a witness to refresh his memory from a statement made to Police. The statement may be read before going into court, but not used by the witness whilst giving evidence. R. v. Richardson 1971, All E.R.773.

POLICE ADVOCACY

As a complainant or informant a Police Officer may conduct a summary case by virtue of Rules 17 and 18, Magistrates Courts Rule 1952. There is no difference between a private prosecutor and a prosecutor acting in an official capacity (Duncan v. Toms 1887). This does not extend to cases before Judge and Jury.

Magistrate has discretion to allow a person other than counsel or soliciting to conduct a prosecution on behalf of the informant. Proceedings instituted by one Police Officer could be conducted by another. (O'Tools v. Scott 1965, 2 E.R. 240).

Part 4

LARCENY ACT

Simple Larceny

Section 5 of the Larceny Act provides: -

Stealing for which no special punishment is provided; this or any other enactment for the time being in force shall be Simple Larceny and a felony punishable with imprisonment with hard labour for any term not exceeding five (5) years.

DEFINITION:

Simple Larceny is defined by Sub Section (1) of Section 3 of the act as follows: -

A person who steals without the consent of the owner, fraudulently and without a claim of right made in good faith, takes and carries away anything capable of being stolen with intent, at the time of such taking, permanently to deprive the owner thereof.

Provided that the person may be guilty of stealing any such thing notwithstanding that he has lawful

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possession thereof if, being a bailee or part owner thereof, he fraudulently converts it to his own use or to the use of any person other than the owner.

Sub-Section (2) further explains the meaning of the words “takes, carries away and owner” and provides: -

“Takes include obtaining the possession: -

- by any trick
- by intimidation
- under a mistake on the part of the owner with the knowledge on the part of the taker that possession has being so obtained.
- finding where at the time of the finding the finder believes that the owner may be discovered by taking reasonable steps.

“*carries away*” includes removal of anything from the place which it occupies, but in the case of the thing attached, only if it has been completely detached.

“*owner*” includes any part owner, or person having possession, control of, or a special property in, anything capable of being stolen.

Sub-Section (3) defines what is capable of being stolen and states that: -

Everything which has value and is the property of any person and adhering to the reality then after severance there from shall be capable of being stolen.

PROVIDED THAT:

Save as hereinafter expressly provided with respect to fixture, growing things, or from mines, and mineral oils, anything attached to, or forming part of the reality, unless after severance, he has abandoned possession thereof.

BAILEE

A Bailee may be defined as a person to whom goods are entrusted for a specific purpose without any intention of transferring the ownership to such person, for example, a person to whom an article is given to be repaired.

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Larceny as a Bailee will be compared with Fraudulent Conversion in a subsequent lecture at which time it shall be more fully understood. The main points to remember here are:-

Larceny as a Bailee is Simple Larceny. In the case of larceny as a Bailee the property is entrusted to the Bailee. There “taking WITHOUT the consent of the owner is not a constituent of the offence.

SIMPLE LARCENY

Sub-Section 2 of section 3 of the Act defines “takes” to include obtaining possession:-

- By trick
- By intimidation
- Under a mistake on the part of the owner with knowledge on the part of the taker that possession has been so obtained.
- By finding, where at the time of the finding the finder believes that the owner may be discovered by taking reasonable steps.

LARCENY BY TRICK

The offence will be given adequate treatment in another lecture when it will be compared with “Obtaining goods by means or false pretence”

Larceny by Trick may be defined: -

“Where a person, having the intent fraudulently to permanently deprive another of his goods obtains possession of the goods in pursuance thereof by some trick or artifice, the owner not intending to part with his right of property, but with temporary possession only”.

The main points to be borne in mind are:-

The owner part with POSSESSION of the goods but retains PROPERTY (or OWNERSHIP) in them.

Unlike Larceny as a Bailee the thief is not entrusted with the goods but induced the owner to part with possession of them by utilizing some trick or artifice.

LARCENY BY INTIMIDATION

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Means that the goods were obtained by putting the owner in fear. The points to remember are:-
The animus furandi must be present. The same fact which constitutes Larceny by Intimidation may also constitute the graver offence of Robbery. For example, where two or more persons intimidate or where the intimidator is armed with a dangerous or offensive weapon.

LARCENY BY MISTAKE

The provision of the Act is clear. It states that: -

The carcass of a creature wild by nature and not reduced into possession while living, shall not be capable of being stolen by the person who serves it from the reality, unless after severance, he has abandoned possession thereof, and,

The carcass of a creature wild by nature and not reduced into possession while living, shall not be capable of being stolen by the person who killed such creature unless after killing it he has abandoned possession of the carcass.

EVIDENCE TO PROVE SIMPLE LARCENY

TAKING: There must be an appropriation of the articles. A person cannot take what he does not know in his possession. The taking away be it “actual” or “constructive”.

CARRYING AWAY (Asportation)

There must be a complete removal of the property from its original possession. Mere grasping is insufficient. The slightest removal of the property will suffice. The thief must for an instant at least, has complete possession of the property. Anything attached must be completely severed.

WITHOUT CONSENT OF THE OWNER

It must be proved that the property was taken without the consent of the owner. Evidence will also assist in providing that there was fraudulent intent.

FRAUDULENTLY

Means dishonestly. The word emphasizes that the taking must be without a claim of right made in good faith.

WITHOUT A CLAIM OF RIGHT MADE IN GOOD FAITH

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The right claimed need not exist in fact or lawful. It is sufficient if the person honestly believes the right exists even though such belief may be unbounded in fact or law. However, the claim must be a honest one made in good faith.

Intent, permanently, to deprive (Animus Furandi)

- (a) The intent must be formed at the time of taking.
- (b) The intent must be permanently depriving the owner of the property.
- (c) “Intent permanently to deprive” is satisfied if money is taken with a mere hope or expectation to return it.

CAPABLE OF BEING STOLEN

Everything which is not adhering to the relay and which is of value and has an owner is capable of being stolen. For things adhering to the reality and carcass of any creature wild by nature. See Sub-section 3 of section 3 of the Larceny Act.

LARCENY AS A BAILEE (SIMPLE LARCENY CONTINUE):

The second paragraph of the definition of Larceny includes larceny by a bailee. Larceny as a Bailee is also larceny for which no Special punishment is provided and by virtue of Section 5 of the Act, is also Simple Larceny.

There must be a mistake on the part of the owner.

The thief must have knowledge that he has possession of the article.

The difficulty arises where the person did not know that he has possession of the article at the time he was receiving it, but subsequently, on realizing that he is in possession of the article decide to appropriate it to his own use.

The points to be bear in mind are: -

- (i) A person cannot take that which he does not know, that he has in his possession. Therefore “Taking” cannot precede “knowledge of possession”
- (ii) If the animus furandi is formed at the time of taking i.e. when there is knowledge of possession it amount to Larceny.
- (iii) If the animus furandi is found subsequent to the time of taking, there is no Larceny.

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LARCENY BY FINDING

This is also clearly defined by the Act. It is necessary to prove that the offender believes at the time the property was found that the owner may be discovered by taking reasonable steps. It is not larceny if he had no such belief at the time of finding but subsequently, and even before converting the property, he discovered the owner.

PUNISHMENT FOR SIMPLE LARCENY

Where the value of the property stolen amount to \$1 or more, imprisonment for not more than five (5) years.

- (i) Where the value of the property stolen is less than \$1, section 55 of the Act provided that:
 - a) If the value does not exceed 50 cents or,
 - b) If the value exceed 50 cents, but does not exceed \$1, and the person charged consent to such trial.

The person may be tried summarily and on conviction, shall be liable to imprisonment with hard labour for any term not exceeding three (3) months.

- (ii) Section 60 provides for punishment for Simple Larceny after previously being convicted for felony or breach of the Larceny Act.

LARCENY FROM THE PERSON

Section 19 of the Act provides that: -

“Every person who steals any chattels, money or valuables security from the person of another shall be guilty of felony and on conviction thereof liable to imprisonment with hard labour for a term not exceeding ten (10) years”.

All the elements of Simple Larceny must be present except that the taking must be actual and not constructive.

- (i) The taking must be complete removal or severance from the body of person for example: -
 - a) Where an offender in the process of taking out book from the victims' coat was surprised and the book fell from his fingers, into its original position. It was not Larceny

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from the person, but was Simple Larceny. For the offence to be Larceny from the person the offender had to completely remove the book from the victim's pocket.

- b) When the offender snatched a lady's earring and succeeded in separating it from her ear but the earring was later found in the curls of her hair, the offender was guilty of Larceny from the person.

LARCENY IN THE DWELLING

Section 18 of the Act provides that: -

“Every person who steals in any dwelling house, any chattel, money or valuable security, shall:-if the value of the property stolen amounts to ten dollars or if he by any menace or threat puts any person being in such dwelling house in bodily fear, be guilty of felony, and on conviction thereof, liable to imprisonment with hard labour for any term not exceeding ten years.

DEFINITION FOR DWELLING

The expression ‘dwelling house’ does not include a building, although within the same curtilage with any dwelling house and occupied there with unless there is communication between such building and dwelling house either immediate or by means of a covered and enclosed passage leading from one to the other.

LARCENY BY TENANTS OR BY LODGERS

Every person who being a tenant or lodger or the husband or wife of any tenant or lodger, steals any chattel or fixture let to be used by such person on or with any house or lodging, shall be guilty of felony and on conviction thereof liable; if the value of such chattel or fixture exceeds the sum of \$10 to imprisonment with hard labour for any term not exceeding two (2) years.

BREAKING OFFENCES

BURGLARY

Section 39 of the Larceny Act provides that: -

Every person who in the night: -

breaks and enters the dwelling house of another with intent to commit any felony therein; or
breaks out of the dwelling house of another, or
having entered such dwelling house with intent to commit any felony therein; or
committed any felony in such dwelling house, shall be guilty of felony called Burglary, and on conviction thereof;

-Where the felony committed in the dwelling house is rape, shall be liable to imprisonment for life, and
- in any other case shall be liable to imprisonment for a term not exceeding twenty-one years.

Explanation of terms used in Provision

Night – Section 2 (1) of the Act provides that ‘night’ means the interval between seven o’clock in the evening and six o’clock in the morning of the next succeeding day.

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Dwelling House – Section 2 (2) provides that dwelling house does not include building, although within the same curtilage with any dwelling house and occupied there with, unless there is communication between such building and dwelling house either immediate or by means of a covered and enclosed passage leading from one to the other.

It should be noted the above provision merely state what is not included in the meaning of the term ‘dwelling house’ but does not describe the meaning of the term.

At Common Law, dwelling house means a permanent structure in which a person or persons habitually reside.

The term would not include a tent used for sleeping on a picnic because of the non-permanency of that structure. On the other hand, the term includes a dwelling, which is temporarily unoccupied, e.g. where the occupants are away on holidays.

Note also that as a corollary to the provision of section 2 (2) a dwelling house include a building within the same curtilage as the dwelling house and occupied there with if there is a communication between the two, either immediate or by means of an enclosed passage leading from one to the other.

BREAKS – The breaking may be *actual* or *constructive*.

Actual Breaking is where the offenders physically disturb the security of the building in order to gain entry.

The following are examples of actual breaking: -

- a) To break open a door or window
- b) To break a hole in a wall or the house
- c) To pick the lock of a door or window or to use a key to open a door or to unloose any other fastening.
- d) To take out or break out glass pane.
- e) To push hand through an opening and unfastening a door or window.
- f) To undo the catch of a door or window already partly open in order to further open it.

It is also breaking within the meaning of the Act if the offender enters through an open door and breaks an inner door, to gain entry into a room.

On the other hand, if the door or window is already partly open it is not breaking merely to push it further open.

Constructive breaking is where the offender gains admission by some artificial trick or threat.

The following are examples of constructive breaking: -

- To knock on a door and rush in as soon as it is open
- To pretend to be a workman from the Telephone Company etc. thereby gaining entry into the dwelling house
- To threaten the occupier or servant of the house with a gun as a result of which the occupier or servant opens the door and let the offender in.

If a servant conspires with the offender and opens a door for him.

ENTERS In burglary there must be an entry. Where there is a breaking and there is no entry, if the intent can be proved, the offence is Attempt at Burglary. However, the last degree of entry is sufficient. For example, if the offender broke a pane of glass in a window and introduced his hand or even a finger through the pane in order to unloose the latch of the window, it is entry.

There need not be entry of any part of the body. It is entry if the offender inserted an instrument through the broken pane, in order to commit the felony. For example, where he inserted an instrument for the purpose of removing an article, or where he pointed a gun through the broken pane for the purpose of shooting someone inside the dwelling house.

INTENT The intent must be to commit a felony. It is not burglary if the intention is to commit a misdemeanour of lesser offence.

There may be a tendency to associate burglary with stealing but the felony need not be a breach of the Larceny Act. It may be any felony whatsoever e.g. murder, rape, treason, etc.

The best evidence of the intent is the actual commission of the felony. Where the felony is not
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committed, the intent may be proved from the circumstances.

OF ANOTHER A person cannot commit a burglary in his own house. However, within the meaning of this Act, a building may consist of several dwelling houses if separately occupied. In such circumstances, the titled owner of the house would be guilty of burglary. If he broke and entered the section of the house occupied by a tenant or a lodger. Similarly a lodger may be guilty of the burglary if he broke and entered with felonious intent any section of the dwelling house not occupied by him. Also a servant, if with similar intent he broke and entered a room or section of the house not placed under his trust.

EVIDENCE

Night burglary must be committed in the night. However, the breaking and the entering need not be on the same night

Dwelling house there must be breaking and entering and subsequently breaking out of a Dwelling house.

The term dwelling house is not confined to private dwellings and buildings with the curtilage thereof but also includes hotels, inns and lodging houses. In the case of hotels etc. each room or apartment is a separate dwelling house.

Breaking & Entering - Note that breaking may be actual or constructive and that the breaking may be subsequent to the entering.

Ownership or Occupation - The dwelling house must be the dwelling house of another. It is sufficient to prove that the dwelling house was occupied by a particular person.

Intent - unless the felony is actually committed, the intention to commit the felony must be proved.

HOUSE BREAKING

Section 40 of the Larceny Act provides:

Every person who: -

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breaks and enters any dwelling house or any building within the curtilage thereof and occupied therewith, or any school-house, shop, warehouse, counting-house, office, store, garage, pavilion, factory or workshop, or any building belonging to Her Majesty or to any Government Department or to any municipal or other public authority, and commits any felony therein; or Break out of any such place, having committed any felony therein; shall be guilty of felony, and on conviction thereof: -

Where the felony committed in any such place is rape shall be liable to imprisonment for life, and in any other case shall be liable to imprisonment for a term not exceeding ten (10) years. Section 41 of the Larceny Act further provides: -

Every person who, with intent to commit any felony therein: -

- a) enters any dwelling house in the night, or
- b) breaks and enters any dwelling house, place of Divine worship, or any building within the curtilage thereof of any school-house, shop, warehouse, counting-house, office, store, garage, pavilion, factory or workshop, or any building belonging to Her Majesty, to any Government Department, or to any municipal or other public authority.

Shall be guilty of felony, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding seven (7) years.

Note: that where the term “or any building” with the curtilage thereof is used, it is not necessary to prove any communication passage between the dwelling house etc. and that building. The provision in section 2 (2) relates only to the meaning of the term dwelling house. Sections 40 and 41 deliberately include such other building in addition to dwelling house. Whether or not there is any communicating door passage.

EVIDENCE

Section 40

(i) The Building. The building must be one that is covered by the section. However, except for place of divine worship, which is specially provided for by section 38, it is different to imagine a type of Prepared by JCF Reform and Modernization Programme / Strategy Policy and Plans Branch 2007 - 2008

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building that is not covered by this section.

(ii) Breaking and entering. Same as in burglary except that neither the breaking nor the entering need be in the night. The breaking may precede or may be subsequent to the entering.

(iii) The commission of a felony. Under this section the felony must have been committed. Where there is evidence or intent only the offence is a breach of section 41 (b).

Section 41 (b)

The building: Same as section 40 as well as a place of divine worship.

Breaking and entering: Unlike in the case of burglary and house breaking under section 40, the breaking must precede and cannot be subsequent to the entering. As in both, the breaking and entering need not be on the same day.

Intent: The mere intent to commit a felony is sufficient.

Section 41 (a)

Dwelling house: Same as in burglary

Night: Same as in burglary.

Intent: Mere intent to commit a felony is sufficient, where the felony is actually committed, the proper charge is not house breaking, but the particular felony which is committed.

SACRILEGE

Section 38 of the Larceny Act provides every person who: -

breaks and enters any place of divine worship and commits any felony there in, or
breaks out of any place of divine worship, having committed any felony therein, shall be guilty of felony called sacrilege, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding ten (10) years.

The Act does not define “place of divine worship” but the term “breaks and enters” suggest that the place must be a permanent structure in which people habitually worship. The term would not therefore include a temporary tent used as church.

EVIDENCE

The building: Must be a place of divine worship.

Breaking and entering: Same as in burglary

Commission of the felony: If the felony is not actually committed and there is mere intent, the offence is House breaking under section 41 (b)

NB. The Larceny Act does not provide for the breaking out of a place of divine worship after entry with intent to commit a felony therein.

Note also that Sacrilege may be committed in the day or in the night.

OFFENCE AKIN TO BURGLARY

Section 42 of the Larceny Act provides every person who is found by night: -

Armed with any dangerous or offensive weapon or instrument, with intent to break or enter into any building and to commit any felony therein; or having in his possession without lawful excuse (the proof whereof shall lie on such person) any key, picklock, crowbar, jack, bit or other implement of house breaking; or having his face blackened or disguised with intent to commit any felony; or in any building with intent to commit any felony therein, shall be guilty of a misdemeanour, and on conviction thereof liable.

If he has been previously convicted of any such misdemeanour or of any felony, to imprisonment with hard labour for any term not exceeding ten (10) years. In all other cases, to imprisonment with hard labour for any term not exceeding five (5) years.

Section 6 (c) of the Vagrancy Act provides – every person found by night, without any lawful excuse (the proof of which excuse shall be on such person), in or upon any dwelling house, ware-house, coach-house, stable, or out-house, or in any enclosed garden, yard or area, or in, or on board any ship, or other vessel when lying, or being in any part or place within the Island.

Punishment: For a term not exceeding twelve months with or without hard labour.

Note: that under section 4 of the Larceny Act, offensive weapon includes a firearm or imitation firearm.

ROBBERY

SIMPLE ROBBERY

Sub-Section (2) of section 37 of the Larceny Act provides that:-

“Every person who robs any person shall be guilty of a felony and on conviction thereof liable to imprisonment with hard labour for any term not exceeding fifteen (15) years”.

The act does not define the oral “robs”. It is necessary therefore, to look to the Common Law in order to ascertain its meaning.

At Common Law Robbery was defined as:-

“The felonies taking money or goods of any value from the person of another or in his presence against his will by violence or by putting him in fear”.

Sub-section (1) (b) of section 37 specially provides for Robbery with the use of violence. In seeking a definition of Simple Robbery consistent with the Larceny Act, we should therefore omit the words by violence from the Common Law definition.

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In other words, Simple Robbery under the Larceny Act would be: -

“the felonies taking of money or goods of any value from the person of another or in his presence, against his will, by putting him in fear”.

EVIDENCE TO PROVIDE SIMPLE ROBBERY

Taking

The taking must be felonious, that must be larcenous. Therefore, there must be the same Mens Rea or animus furandi as in larceny. There must be asportation. The offender must have complete possession of the property. For example, where the victim was carrying a bed and the offender told him to lay it down or he will shoot him and the victim laid it down and before the offender could take it up and remove with it, he was apprehended. It was not robbery. Also if an offender cuts the victim girdle in order to get his purse and the purse fell to the ground and before the offender could take up the purse, it is not robbery. On the other hand, where the offender snatched a lady's earring and succeeded in separating it from her ear and it was towards the curls of her hair, then there was sufficient asportation to establish robbery.

N.B. It is no defence if after the felonious taking the property is delivered back to the owner.

From the person or in his presence

The property must be taken from the person of the victims or in his presence. There should be no problem in undertaking from the person. This would have the same meaning as in larceny from the person. “In his presence” means that the property was under the immediate personal of the victim. Therefore in obtaining the property the victim's power to protect it must have been overcome.

It is robbery if the victim is put in fear and then the offender drives away his cattle from within his presence or if the victim, upon being assaulted, throws away his purse which was then taken up by the offender.

It is also robbery, where a night watchman was overpowered and taken to one room and locked inside while articles were taken from the safe in another room.

Against the will

The property must have been taken or delivered up under compulsion of fear. The offence is not
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committed if the victim conspired with another to stage the robbery.

In Fear

The victim must have been put in actual fear or there must have been circumstances from which the Court will presume a degree of apprehension of danger as would induce the victim, to part with the property. For example, if goods valued at \$8 were taken from a vendor and by the use of force or threats the vendor is compelled to take \$1 in payment for the goods, this would be robbery.

The fear used must not be of injury to the victim himself. It is robbery, where the offender takes the victim's child and threatens to destroy the child unless the victim paid his money.

The fear must be immediately before or at the time of taking but not after.

N.B. The same facts necessary to prove Larceny by Intimidation may also prove Simple Robbery. The same facts may also prove the offence of demanding with menaces.

ROBBERY WITH VIOLENCE

Paragraph (b) of sub section (1) of section 37 of the Larceny Act provides:

“Every person who robs any person and, at the time of or immediately before or immediately after such robbery uses any personal violence to any person, shall be guilty of a felony, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding one year”.

Evidence to prove Robbery with Violence

The evidence to prove Robbery with Violence is the same as that to prove Simple Robbery, but violence must be used either: -

- (a) Instead of putting the victim in fear, or
- (b) In addition to putting the victim in fear. Unlike Simple Robbery, where the fear must be at the time of or immediately before the taking, by the special provision of the Statute, the violence may also be immediately after the taking.

Any degree of violence will suffice, for example, where the offender tore the lady's ear in snatching the earring. However, the mere snatching of the article would not suffice. This would be Larceny from the Prepared by JCF Reform and Modernization Programme / Strategy Policy and Plans Branch 2007 - 2008

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person.

The period of how long before or after the taking the violence should be used is a matter for the Court. However, the circumstances must be such that the violence and the taking form part of one transaction.

The violence must be personal. It is not robbery with violence where the property is obtained by inflicting injury on the victim's horse or dog.

The violence need not be to the person of the victim. It is sufficient if the person robbed was forced to part with the property because of the violence inflicted. On another person in his presence. However, there must be some connection between the surrendering of the property and the violence.

ROBBERY WITH AGGRAVATION

Paragraph (a) sub section (1) of section 37 of the Larceny Act provides that:-

“Every person who being armed with any offensive weapon or instrument, being together assaults with one other person or more, robs or assaults with intent to rob, any person shall be guilty of felony, and on conviction thereof liable to imprisonment with hard labour or any term not exceeding twenty-one (21) years”.

Evidence to prove Robbery with Aggravation

All elements of Simple Robbery must present

Additionally the offender must be: -

- Armed with an offensive weapon or instrument or
- Together with one or more persons

Where there is more than one person each may be convicted for Robbery with Aggravation, whether armed or not.

Offensive Weapon or Instrument

Offensive Weapon or Instrument, which can be used to induce fear or bodily injury in section 4 of the
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Act, also includes an imitation firearm.

Section 4

A firearm or imitation firearm shall notwithstanding that it is not loaded or is otherwise incapable of discharging any shot, bullet or other missile, be deemed to be an offensive weapon or instrument. In this section, “firearm” means any lethal barreled weapon of any description from which any shot, bullet or other missile can be discharged.

“Imitation firearm” means anything, which has the appearance of being a firearm whether it is capable of discharging any shot bullet or missile, or not.

ASSAULT WITH INTENT TO ROB

Sub section (3) of section 37 of the Act provides that: -

“Every person who assaults any person with intent to rob shall be guilty of felony and on conviction thereof liable to imprisonment with hard labor for any term not exceeding ten (10) years”.

Evidence to Prove Assault with Intent to Rob

The assault: The assault need not be on the person from whom it is intended to rob but there must be some connection between the assault and the intent. For example, if an adult and a child are together and the adult is assaulted by the offender in order to rob from the child.

DEMANDING WITH MENACES (*BLACKMAIL*)

There are a number of separate offence of “Demanding with Menace” (commonly referred to as ‘Blackmail’), under the Larceny Act. The first step in understanding this group of offences is to acquire good knowledge of the exact statutory provisions. Accordingly, the relevant provisions of the Larceny Act are stated below:-

Section 43

(1) Every person who -

utters, knowing the contents thereof, any letter or writing demanding of any person with menaces, and without any reasonable or probable cause, any property or valuable thing; utters, knowing the contents thereof, any letter or writing accusing or threatening to accuse any other person (whether living or dead) of any crime to which this section applies, with intent to extort or gain thereby any property or valuable thing from any person; with intent to extort or gain any property or valuable thing from any person, accuses or threatens to accuse either that person or any other person (whether living or dead) of any such crime, shall be guilty of felony, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding fifteen (15) years.

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(2) Every person who, with intent to fraud or injury any other person –

by any unlawful violence to or restraint of the person of another; or

by accusing or threatening to accuse any person (whether living or dead) of any crime to which this section applies or of any felony, compels or induces any person to execute, make accept, endorse, alter, or destroy, the whole or any part of any valuable security, or to write, impress, or affix, the name of any person, company firm, or partnership, or the seal of any body corporate, company, or society, upon or to any paper or parchment in order that it may be afterwards made or converted into or used or dealt with as a valuable security, shall be guilty of felony, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding fifteen years.

Section 44

Every person who, with menaces or by force, demands of any person anything capable of being stolen, with intent to steal such thing, shall be guilty of felony, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding five (5) years.

EVIDENCE:

Sub-paragraph (I) of sub-section (1) of section 43.

Letter or Writing. The demand must be contained in a letter or in some other written or printed form.

Uttering: There must be an uttering of the document. It is uttering if the letter or writing is handed to B to be delivered to C, and B subsequently delivers it to C. It is also uttering if the letter or writing is mailed through the post. It has even been decided by the House of Lords that once the letter has been posted, uttering has occurred.

Demand: There must be a demand made for some property or valuable thing. A mere request will not suffice. A demand is distinguished from a request by the suggestion that some course of action can be taken for non-compliance. Therefore, if there is a request accompanied by a threat to do something if

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that request is not met, there would be a demand for the purpose of the Act.

Property or Valuable Thing: In addition to the wide meaning given to the term ‘property’ in the Larceny Act, the ‘catch all’ term or ‘valuable thing’ is also used.

‘Property’ as defined by the Act includes any description of real and personal property, money debts, and legacies, and all deeds and instruments relating to or evidencing the title or right to any property, or giving a right to recover or receive any money or goods, and also includes not such property has been originally in the possession or under the control of any person, but also any property into or for which it has been converted or exchanged, and anything acquired by such conversion or exchange, whether immediately or otherwise.

With menaces: The demand must be with menaces. Sub-section (4) of section 43 states that:-

“For the purpose of this Act, it is immaterial whether any menaces or threats of violence, injury or accusation, to be caused or made by the offender or by any other person”. It should be noted from the above provision that menace is not confined to a particular type of conduct, but included such words as would unlawfully induce the person to whom they are addressed to part with his property.

Without Reasonable or Probable Cause: In addition to providing the menace, it must also be proved that the demand was made without reasonable or probable cause. No offence is committed where the ‘would-be offender genuinely thought that he had a right to claim the property and that he was doing so in a lawful manner.

However, where the evidence is that the amount demanded was extortionate (that is, more than the amount due) or that the circumstances were such that there was no foundation for the belief that the claim was lawfully made or made in a lawful manner, providing all the other elements are proved, the offence would be established.

Knowing the contents thereof: The person who utters the document must have known its contents. No offence would be committed if a person asked his secretary to make a lawful request for a payment which is due and the secretary without his knowledge sent an unlawfully threatening letter demanding payment.

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If A gives B a letter to be delivered to C and B, knowing the contents of the letter and knowing that an unlawful demand was being made, delivers the letter to C, B would also be guilty of the offence. See also section 5 of the Larceny Act which provides that every person who knowingly and willfully aids, abets, counsels, procure or commands the commission of any offence under the Act is punishable as the principal offender.

Sub-paragraph (ii) of section 43 (I)

Under this sub-paragraph the same principles which apply to “Letter or writing”, ‘uttering’, property or valuable thing applies.

Here, instead of a ‘demand’ being made ‘with menaces’ or without reasonable or probable cause; and accusation or threat of accusation is made against some person of a crime to which the section applies for the purpose of extorting or gaining some property or valuable thing.

NOTE The person accused or threatened to be accused need not be the same person to whom the document is uttered or from whom the property is sought.

The person accused or threatened to be accused may be living or dead.

If the accusation or threat of accusation is of crime to which the section applies, the offence is committed. Notwithstanding that there is evidence that the offender genuinely believed that he had reasonable or probable cause for making the accusation.

There must be an intention to extort or gain some property or valuable thing. The use of the words “or gain” in the section makes it unnecessary to prove an intention to extort. It is sufficient if it is proved an intention to obtain a material advantage by the acquisition of the property.

CRIME Sub-section 3 of section 43 spells out the various crimes to which the section applies. The sub-section states that:-

This section applies to any crime punishable with death, or imprisonment for not less than five years, or to any assault with intent to commit any rape, or to any attempt to commit any rape, or to any solicitation, persuasion, promise, or threat, offered or made to any person whereby to move or induce such person to commit or permit the abominable crime of buggery, either with mankind or with animal.

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Sub-paragraph (iii) of section 43 (I)

Once sub-paragraphs (I) and (ii) are properly understood, all that is required for is a proper understanding of Sub-paragraph (iii) is for one to make the necessary substitution, according to the wording of the sub-paragraph. The following must be proved:-

The accusation or threat or accusation

The crime of which the person is accused or threatened to be accused falls within the provision of sub-section 3

The intention to extort or gain any property or valuable thing.

Sub-section (2) of Section 43

Evidence:

An intention to defraud or injure

Either (a) the intent to use unlawful violence, or (b) the intent to accuse or threaten to accuse The accusation must relate to a crime to which the section applies.

NB. The person to be accused may be living or dead.

“Valuable Security” includes any writing entitling or evidencing the title of any person to any share or interest in any public stock, annuity, fund, or debt of any Commonwealth country, or of any foreign state, or in any stock, annuity, fund, debt of anybody corporate, company, or society, whether within or without any Commonwealth country, or to any deposit in any bank and also includes any script, debenture, bill, note, warrant, order or other security for payment of money or any accountable receipt, release, or discharge, or any receipt or other instrument evidencing the payment of money, or the delivery of any chattel personal, and any document of title to lands or goods as in this section defined.

Section 44

Evidence

- **Demand.** As discussed in ‘A’ above
- **Menaces or Force**
- **The property demanded must be ‘capable of being stolen** (see notes on Simple Larceny)
- **Intent.** There must be a larcenous intention. Therefore animus furandi must be proved. Maybe proved from the circumstances of the case.

Section 45

Unlike all the offences discussed from A to E, the offences of threatening to publish with intent to extort under section 45 of the Act, is a misdemeanour punishable with imprisonment for not more than two years. Essentially the section deals with intention to: - escort any valuable thing from any person, and induce any person to confer or procure for any person any appointment or office or profit or trust.

FRAUD INVESTIGATION

Introduction

It is important to understand that there is no special status that we should attribute to the White Collar Fraudster. He is simply a criminal whose greed and lack of honesty and morals allows him to take advantage of and victimize others who do not have access to the truth.

It was commonly thought that Fraud is a non-violent theft committed by persons of a relatively high socio-economic status in conduct of their usual and lawful occupations.

However, this notation has been long dispelled by law enforcement agents because fraud is now being perpetuated by all and sundry – the ordinary man on the street, the man from the so-called ghettos, the gunman who is taking vacation from his usually dangerous occupation as well as the most affluent in society.

The fraudster may use a simple method such as trick or a computer or a sophisticated and complex scheme to commit his act of dishonesty. He may try to hide his dealings and proceeds of his crime through international veils of secrecy but when you boil it down he is simply a thief who uses deceit, Prepared by JCF Reform and Modernization Programme / Strategy Policy and Plans Branch 2007 - 2008

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false-hood and fraudulent means to effect his selfish purpose.

Definition of Fraud

Fraud includes acts and omissions which involve a breach of confidence and which injure another, or by means of which unfair advantage is taken of another (Kerr – On Fraud and Mistakes)

According to Sergeant Bernie Sork, Certified Fraud Examiner, “Fraud is just theft with a twist”. Simple defines: Fraud is the making of material gains by unfair means. It is the intentional taking of something of value from another person by guile, deception or other unfair means. Fraud, or white-collar crime, encompasses a series of offences, namely:

- Forgery
- Uttering forged documents
- Obtaining goods/money by means of forged documents (cheques)
- False Pretences
- Falsification of Accounts
- Embezzlement
- Larceny Servant
- Fraudulent Conversion

The usual break-down of white collar crime, focuses on:-

- who was victimized,
- what instrument was used,
- what the subject matter was and the relationship between the victim and the perpetrator.

Fraud is generally accomplished by deceit or diversion. The perpetrator often has a close relationship with the victim, whether it is that of a spouse, relative, friend, employee, employer, customer, client, supplier or vendor.

Fraud requires in-depth investigation because of its technical nature, and the sophistication with which it is perpetrated. The decline in the value of the Jamaican dollar has caused severe hardship, changing the socio-economic status of a lot of persons, thereby pushing them to “hustle” commit fraud. This does

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not mean that all persons committing fraud fall in that category. We have come to realize that it is a way of life- an occupation- for some persons.

Due to the high level of white-collar crime/fraud in our society, a specialized section within the Criminal Investigation Branch, known as the “Fraud Squad”, to deal with these crimes.

THE OFFENDER

Perpetrators of fraud, range from a simple con artist, to an executive in a financial institution or government department. Fraud has, however, taken on a new dimension within the last ten to fifteen years. It does not confine itself to someone you have to deal with, who swindles you, but has created a new breed, who infiltrates a company, corrupts its employees, procures valuable information, and sets about to defraud the company by various means.

INSTRUMENTS OF FRAUD

The instruments of fraud include: -

- False Advertising
- Mail
- Telecommunication
- Personal Solicitation
- Games of Chance
- Forged or Stolen Documents
- Counterfeit Money
- Altered Records

The victim of fraud can be any unsuspected person, who is targeted by the fraudster, organization within the private sector and institution within the Public Sector. The Private Sector victims include commercial banks, private and public companies, hotels, insurance companies and most financial institutions. The Public Sector victims include various ministries of government and Statutory bodies, Postal Departments, Collector General Departments, Accountant General’s Departments, hospitals etc.

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INVESTIGATION

Fraud is usually difficult to prosecute, because the victim may not realize he/she has been defrauded, until it is too late for anything to be done about it. There are instances where the victim does not even know he/she has been defrauded. Sometimes, because of the close relationship between victim and perpetrator, the victim may be reluctant to give evidence against the culprit. Also, because a substantial loss may be involved, the victim may be more interested in pursuing restitution, rather than seeing the guilty party punished.

Like any other complaint, the investigator should listen to the story of the victim and ensure that he/she appreciates the nature of the complaint, and identify what evidence and exhibits are necessary. Having determined that an offence has been committed, the investigator should set out to seek the evidence necessary to prove that offence – “Points to prove”.

Where the report is one that involves the accounts of a company, the investigator should decide whether or not an auditor’s report is necessary, and request same. The investigator should also ensure that all necessary and available documents, and exhibits, are handed over to him/her. Failing to do this at the time the complaint is appreciated may result in the breakdown of the case.

A sympathizer of the perpetrator or the perpetrator himself, realizing an investigation has commenced, could remove and destroy the documents/evidence.

WITNESS INTERVIEW

A comprehensive system of operations/procedures of the business or institution, naming where possible, the various records to be maintained during operation.

If committed by an employee, the statement should include the capacity in which he/she is employed, his/her duties or job description. (If job description is in writing, a copy is to be obtained).

Establish if a System of Operation was breached.

If the System or Systems were breached, a detail Statement outlining the System(s) of operations is required. The statement should identify and describe the various records maintained. In case of Forgery Specimen handwriting of the forged writings should be obtained from all persons within the department.

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All documents relating to the crime must be secured by the investigator. Where original is not readily available certified copies should be obtained.

If only photocopies of documents are available, the person within the organization who made the copies should be interviewed. It must be brought out in the statement that the original documents were compared with the copies.

VICTIM STATEMENT

Witness/Victim biographical information.

Witness/Victim duties and responsibilities

Witness/Victim position in the transaction.

Chronological account of the events.

How was loss discovered?

By who was loss discovered.

When was loss discovered.

Check to establish if the victim/witness have repeated the entire account of events.

Are there any inconsistencies in the Victim/Witness accounts?

Ask detailed follow-up questions.

Endeavour to record statements from all available witnesses and avoid short cuts.

Get specimen writing from suspect and other persons having access to questioned document, for submission to the questioned document examiner.

Questioned signatures and short sentences/phrases should be written twenty-five times, and must be voluntary. In the case of letters, depending on the number of words, the specimen may be written two or three times.

The specimen taken, must be followed by a certificate which reads,

“ The foregoing are true specimens of my handwriting, given voluntarily to the police on.....(day),.....(date),.....(time), andplace”

And must be signed by the person giving the specimen handwriting, and witnessed by the investigator and another police witness.

PRE-ARREST INTERVIEWS

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OBJECTIVES

Obtain confession.

Exonerate Suspect.

Determine possible defence strategies

OTHER BENEFIT OF INTERVIEWING

Unintended admissions

Self-Serving statements

Lies

POST ARREST INTERVIEWS

OBJECTIVES

Obtain confession

Recover stolen property

Implicate co-conspirators

Determine possible defense strategies

POST ARREST STEPS

Check alibis/self-serving statements

Re-interview Witnesses based on new information from subject interviews

Brief Victims/Witness on expected process of the case through the judicial system.

EMBEZZLEMENT

History

As is well established from the earliest history of the definition of Larceny. It is not difficult to see why persons who were employed as Clerk or Servants could not be held to be guilty of a larcenous act as the first principle “the unlawful taking” could not be satisfied. The servant having acquired the property legitimately from a third person to hand over to his master and using it before it reached the possession of his master could not in the true sense of the Common Law definition be guilty of larceny as he could not “take” from his master what the master did not have.

As time went by and Commercial activities increased, this loophole in the law become more obvious and the necessity to legislate against such acts became more pressing. In the late 18th century therefore Prepared by JCF Reform and Modernization Programme / Strategy Policy and Plans Branch 2007 - 2008

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Parliament enacted against such actions by clerks or servants and thus was the offence of “Embezzlement” created. The word to ‘embezzle’ in its strictest sense means to “make away with and connotes doing so clandestinely. (Secretly or sly).

Definition

“Embezzlement is the offence committed by any person who is employed as a clerk or servant or employed in the capacity as a clerk or servant and fraudulently makes away with, the whole or any part chattel, money or valuable security delivered to or received or taken into possession by him for or in the same of or on account of his master or employer before it has reached the possession on his master or employer.

N.B. In the name of his master presupposes that the third person knew of the master’s existence. Employed in the capacity: means that he is not the substantive employee but performing the duties of that office.

POINTS TO PROVE

That the person was a clerk or servant (both terms convey the same meaning). See RV. At page 308 of Turner’s Criminal cases reported.

That the goods etc. were received in his capacity as a clerk or servant. (see R.V. Cullum page 311 – Turner’s Criminal cases reported). If authority is exceeded then no embezzlement of what is received.

That property was stolen before it reached the possession of the master. (N.B. Possession may be actual or constructive e.g. a cash register provided for putting cash is constructive possession.

The property must have been received from a third person – not from the master himself.

EVIDENCE

Evidence must be from the master to prove whether the person was employed as a clerk or servant. If the contract of employment is in writing it should be obtained. There is no conclusive test that a person is a clerk or servant and this is a question of fact, which should be left to the jury. Some simple tests are:
How was he or she paid – wages commission or salary?

Degree of control master has over employee.

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Evidence should also be obtained that the goods etc. was received in the employee's capacity as a clerk or servant (See R.V. Cullum above.)

Prove the amount received. (General deficiency will not suffice.) Specific sums should be proven.

Prove that the amount was stolen before it reached the master's possession.

Evidence to prove that the amount was received for or in the name of the master (See R.V. Gayle page 315.)

Note: Prove beyond mistake e.g. regularity and not isolated.

This offence is a felony. Punishment: Imprisonment for special section for Police and persons employed in the Public Service of the Government. Post Office employees are also regarded as clerks or servants and commit this offence if they steal goods received on behalf of Government during the course of their employment.

POWERS OF ARREST: Under the Larceny Law Police have powers of or without warrant for this offence.

The difference between EMBEZZLEMENT and LARCENY/Servant is:

Embezzlement:

Property has not yet passed into the
Master's possession.

Larceny as a Servant:

Property has already passed
Into the master's possession.

These offences are committed by the same class of persons.

LARCENY/SERVANT

LARCENY AS A SERVANT

History

The history of the creation of this offence is the same as Embezzlement. The only distinction being the question of possession by the master.

Definition

"Larceny as a servant is the offence committed by a person employed as a Clerk or Servant or in the capacity of a Clerk or Servant who steals his master's property after such property has been in his

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master's possession".

Points to prove

See notes of Embezzlement adding that property must be in possession of the master. Possession is the same as enunciated for that offence.

Evidence

Obtain evidence along the same line as Embezzlement only adding that the master has already had possession of goods etc.

This crime is a felony and is punishable with imprisonment for years.

Powers of Arrest

As is Embezzlement and for the same reason.

N.B. The difference between these two offences is very subtle and should be carefully looked for. If this difference is always borne in mind then it will not be difficult for the investigator to arrive at a conclusion as to which of the two offences has been committed.

Fraudulent Conversion

Section 24 (1) every person who:-

Being entrusted either solely or jointly with any other person with any power of attorney for the sale of transfer of any property, fraudulently sells, transfers, or otherwise converts the property or any part thereof to his own use or benefit or the use or benefit of any person other than the person by who he was so entrusted; or

Being a director, member or officer of anybody corporate or public company, fraudulently takes or applies for his own use or benefit or for any use or purposes other than the use or purposes of such body corporate or public company, any of the property of such body corporate or public company; or

3a. Being entrusted either solely or jointly with any other person with any property in order that he may retain in safe custody or apply, pay or deliver, for any purpose or to any person, the property of or any part thereof or any proceeds thereof; or

3b. Having either solely or jointly with any other person received any property for or an account of any

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other person;

Fraudulently converts to his own use or benefit or the use or benefit of any other person, the property or any part thereof or any proceeds thereof, shall be guilty of a misdemeanour and a conviction thereof liable to imprisonment not exceeding seven years.

Section 25:

Conversion by Trustee

Every person who being a trustee of any property for the use or benefit either wholly or partially of some other person or for any public or charitable purpose, with intent to defraud, converts or appropriates it or any part thereof to or for his own use or benefit, or the use or benefit of any person other than the person entitled thereto, or for any purpose other than such public or charitable purpose, or otherwise disposes of or destroys such property or any part thereof liable to imprisonment with hard labour for any term not exceeding seven years.

Note: Director of Public Prosecution's fiat or permission of High Court Judge before whom a civil proceeding in connection with the same matter was heard should be first obtained.

Section 26

Fraudulent Conversion by Factors

Every person who, being a factor or agent entrusted either solely or jointly with any other person for the purpose of sale or otherwise with the possession of any goods or of any document of title to goods, contrary to or without the authority of his principal in that behalf, for his own use or benefit or the use or benefit of any person other than the person by whom it was entrusted, and in violation of good faith: Consigns, departs, transfers or delivers any goods, or document of title so entrusted to him as and by way of a pledge, lien, or security for any money or valuable security borrowed or received by him or intended to be borrowed or received by him, or

Accepts any advance of any money or valuable security on the faith of any contract or agreement to consign, deposit transfer, or deliver any such goods or document of title;

Shall be guilty of a misdemeanour, and on conviction thereof liable to imprisonment with hard labour for any term not exceeding seven years.

EXPLANATION OF TERMS

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Power of Attorney: Authority given to a person legally to act on behalf of another.

Trustee: Person who holds property in trust for another. (Oxford Dictionary)

Factor: Merchant buying and selling on commission –(Oxford Dictionary)

Agent: One who or that which exerts power or produces an effect on behalf of another, one who acts for another in business.

Property. Property is defined by the act as including any description of real and personal property, money, debts, and legacies and all deeds and instruments relating to or evidencing the title or right to any property or giving a right to recover or receive any money or goods and also includes any property into or for which it has been converted or exchanged and anything against by such conversion or exchange whether immediately or otherwise.

NOTE: Property includes the original property or the proceeds of such property. Property for the purpose of Fraudulent Conversion is not confined to “things capable of being stolen.” Thus the balance at a bank or shares may be converted but are not capable of being stolen. (Smith and Morgan)

Entrustee for particular purpose:

It is a question of fact for the Jury whether the property was entrusted to the accused for a particular purpose. However, there must be evidence for the Jury to decide this. There must be evidence of an entrusting e.g. where an employer requires an employee to pay a sum of money as a security for his honesty, the money to be placed on deposit at the bank and to be returned at the termination of employment. In this case there is evidence of entrusting for safe custody. However, if the transaction under which the employee pays the money is substantially a loan, there is no evidence of entrusting.

A particular purpose receives that the accused must be under a fiduciary obligation with regards to the property entrusted to him. Fiduciary obligation relates to the obligation created by a type of relationship. Conversion can arise only where there exist a fiduciary obligation or an obligation to do as he was told with the property. The property must be earmarked in the hand of the accused for certain purposes of the person who entrusted the property.

Example, D promises to do work for P and receives from P money in advance for D’s labour. This will not be fraudulent conversion although D is acting distrustfully and has no intention of doing the work. The property would not have been entrusted for a particular purpose but upon delivery becomes D’s money. (R. V. Hughes 1956)

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Pay of money on account will not be enough to establish entrusting. Thus where D promised to do gardening work for A and obtained money in advance on the pretext of buying materials, he was guilty of fraudulent conversion since there was no adequate direction on entrusting for a particular purpose. The evidence was made against the sum, which would be paid. (R.V.Jones 1948)

ELEMENTS OF OFFENCES

That property was entrusted for a particular purpose or received or acquired for particular purpose.

That it was used for some other purpose.

That the misuse was fraudulent and dishonest.

Sale & Return:

Where property is advanced under an ordinary contract of sale on condition that the property be returned within a specified time unless it is bought by the agent or sold to a third party, in which event the proceeds should be paid to the owner. If the property is sold and the money is converted there will not be a fraudulent conversion within the meaning of this section since the only obligation on the deliverance is to pay the agreed purchase price after he does any act adopting the transaction. In this example, however, there was no entrustment of fiduciary relationship with respect to any money that he may receive from pleading or selling the goods. In other words the deliverer under the above agreement is in the same position as any other purchase of goods who has not yet paid for the goods.

Property used for some other purpose

The property must of course, be converted. It is not enough that the accused intended to convert it if he does not do so in fact. It will not be fraudulent conversion where the accused acts in a manner consistent with the deliverer's instruction although the accused had intention to appropriate the money and had no intention to carry out the instruction. Only in inconsistent act will amount to Fraudulent Conversion.

Fraud

It must be proved that the conversion of the property was fraudulent. It need not be shown that the accused acquired it with intention to convert it. It is not enough to show that accused.

Acquired the property by dishonest means, if he did not convert it dishonestly, although a dishonest

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acquisition may be evidence of a dishonest conversion. There will be no conversion where accused acts under a bonafide claim of right.

False Pretences and Credit by Fraud (Larceny Act Volume XI Sections 35 and 36)

FALSE PRETENCES

It is the offence committed by any person who by false representation with intent to defraud, obtains from any other person, any chattel, money or valuable security or who by false pretence with intent to defraud or injure any other person, fraudulently causes or induces any other person:-To execute, make accept, endorse or destroy the whole or any part of any valuable security. Write, impress or affix his name or the name of any other person or the seal of anybody corporate or security, upon any paper or parchment in order that the same may be after wards made or converted into or used or dealt with as valuable security.

Such person shall be guilty of a misdemeanour.

DEFINITION OF TERMS

Chattel: Chattel is a tangible movable object and must be larcenable at Common Law. Thus a dog not being larcenable at Common Law cannot be obtained by False Pretences.

Valuable Security: Includes any writing entitling or evidencing the title of any person to any stocks, bank notes or postal order. Any accountable receipt that is a receipt which upon being tendered, must account for some property. For e.g. cheque presented to bank, the bank is obliged to account to the drawer for the sum of money for which the cheque is drawn.

Intent to Defraud: To defraud means to deprive by deceit. To deceive is to induce a person to believe something is true which is false and which is known to be false by person practicing the deceit. There must be an intent that the complaint should do something to his disadvantage.

Representation: The false representation may be in spoken words, written words or by silent conduct. Thus writing a letter conveying a message or telling a story to another or by action without words, would all contribute false representation if the story conveyed is false.

The representation must be in relation to facts existing or existed. A premise as to future conduct by
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itself is not enough. However, if statement of intention is coupled with existing or existed facts which is false there may be false representation e.g. married man induced unmarried girl to give him money by representing himself unmarried and promising to use the money to furnish apartment after which he would marry her. This was held to certain false representation since the man was married at the time. (R.V. Jennison 1862)

Note: However, an exaggeration of the quality of ones good for sale is not false representation within the meaning of the Act. Thus where prisoner pledged ingot of silver and later he brought worthless bars of metal resembling the silver this was held to be false representation. If however, he had brought silver bars of inferior quality and has stated that they were gold as the previous bars it is likely that there would have been no false representation.

Obtaining: False pretence must be the cause of obtaining the property or must be the cause of the property being delivered to the accused or another person. It is not necessary that the pretence should be addressed personally to complainant it may, for example, be contained in the news paper. If the complainant did not believe the story told to be true yet he parts with property, there is no obtaining. The false representation must be the effective cause of the transfer of property, for obtaining to be complete the possession as well as ownership of the goods must pass from the victim.

EVIDENCE TO ESTABLISH THE OFFENCE

There must be a false representation or a story, which may be by words, writing or conduct.

The story must be told with intent to defraud.

The story must be the effective cause of the victim parting with the property.

Victim must part with property because he believes the story to be true.

Story must relate to fact that exists or existed.

The property was owned by the person induced to part with possession or by person having co-equalled right to do so. The person who parts with property must be a person who in law is capable of transferring ownership to another.

WAYS OFFENCE IS COMMITTED

(1) Worthless Cheques

Perhaps the most common method used in committing this offence is by tendering worthless cheques.

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A cheque is a document. It is also a valuable security. The banker undertakes to honour a cheque presented by the drawer as long as there is sufficient funds to honour the cheque. On occasions, a person with fraudulent intent may use cheques to transact business with other persons knowing at the time, that the cheques will not be honoured for different reasons. It maybe that there is no account at the bank or there may be insufficient funds. A person who obtains property capable of being obtained with the intent, on presentation of such cheques is guilty of false pretences. He is pretending in each case, that the cheque is a good and valid order for the payment of the amount stated and that the cheque will be honoured when presented to the bank.

(2) SILENT CONDUCT EXPLAIN R.v. Barnard 7CxP 784

(3) WORDS WRITTEN OR SPOKEN

(4) DIFFERENCE BETWEEN

False Pretence	Larceny by Trick
Misdemeanour	Felony
Parts with possession	Possession only
Deceived by the story	Possession gained by trick
Arrest found committing	Arrest at Common Law

Credit by Fraud (Section 36)

Every person who, incurring any debt of liability obtains credit under False Pretences or by means of any other fraud shall be liable to imprisonment with or without hard labour for any term not exceeding two years.

Explanation of Terms

Liability: Includes any compensation for work or labour done, any obligation or possibility of an obligation to pay money or money worth on the breach of any contract, agreement or undertaking.

Credit: Conveys the notion of trust, faith or confidence to take away goods that will be paid for in the

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future. Credit is a debt considered from the stand point of the creditor. Basically it is the giving of time to pay.

Debt: An obligation to pay money.

Fraud: Fraud includes acts and omissions which involve a breach of confidence and which injure another, or by means of which unfair advantage is taken of another (Kerr on Fraud and Mistakes).

ELEMENTS OF OFFENCE

The offence of obtaining credit by fraud consists of three elements: -

- incurring debt or liability
- obtaining credit
- fraud

Credit cannot be obtained unless a debt or liability is incurred or already exists. However it is possible to incur debt or liability without obtaining credit. Debt or liability means legally enforceable debt or liability. Thus a debt, which is void in law, is not enough e.g. illegal contracts under which debt or liability incurred not punishable.

If a person incurs no debt or liability on his behalf he commits no offence. Example P deals with D believing D to be the agent of X and delivered goods to D without taking payment, intending to give credit to X, D does not obtain credit by fraud although he acts without X's authority and has defrauded P.

OBTAINING CREDIT BY FRAUD

When obtaining credit by False Pretences. The Pretences must relate to facts existing or existed. When obtaining credit is by fraud other than false Pretences, the fraud may relate solely to the future.

RECEIVING STOLEN PROPERTY:

LARCENY LAW: CHAP. 212

Receiving means receiving property stolen or obtained under circumstances which amounts to Felony or Misdemeanor, knowing at the time of its receipt that it was stolen or so obtained.

OFFENCES: Sec. 46 (1)

Any person who receives any property knowing the same to have been stolen in any way under the circumstances which amount to a felony or misdemeanour shall be guilty of an offence of the like degree.

Section 46 (4)

Every person who, without lawful excuse, receives or has in his possession any property, knowing the same to have been obtained outside the Island under circumstances that would in the Island amounted to Felony or misdemeanor shall be guilty of an offence of the like degree. N.B. The property must have been so obtained outside the Island and found or traced to the possession of a person in the Island.

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POINTS TO ESTABLISH RECEIVING:

The Larceny, the felony or the fraud

Possession (either actual or constructive)

Guilty knowledge at the time of receipt

The circumstances in which a person receives goods may of themselves be sufficient to prove that the goods are stolen and also that at the time the person received them he knew they were stolen. It is not a rule of law that there must be other evidence of the theft. The offence is complete as soon as the offender obtained control of the property.

GUILTY KNOWLEDGE MAY BE:

Direct Evidence: Admission of accused and evidence of principal offender.

Circumstantial Evidence: e.g. Concealment of property, denial of receipt, removal of identification marks etc.

Evidence of Recent Possession: Possession of property recently stolen raises a presumption that the possessor is either the thief or the guilty receiver according to the circumstances.

Where the only evidence against the accused is that he was in possession of property recently stolen guilty knowledge may be inferred: -

If the prisoner has offered no explanation (if any) is untrue.

If the Jury is satisfied that the explanation (if any) is untrue

Special evidence:

(i) The fact that other property stolen within the 12 months proceeding the date of the offence charged was found or had been in his possession.

(ii) That he has within 5 years before the date of the offence charged and convicted of theft or receiving.

The last mentioned fact might only be proved when:

(a) Seven days notice in writing has been given to the accused that it is intended to prove any such conviction.

(b) Evidence must have been given that the property in respect of which the offender is being tried was found or had been in his possession before (i & ii) becomes admissible.

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HUSBAND AND WIFE

A husband can be convicted of knowingly receiving property stolen by his wife.

A wife who acts independently of her husband, not under his control can be convicted of receiving with the husband.

STATUTORY DECLARATION:

In proceedings for the theft of anything in course of transmission by post or otherwise or for receiving stolen goods from such theft, a statutory declaration as to (a) Dispatch (b) Receipt (c) or non receipt of the property is admissible in evidence, but only if: -

A copy of the declaration has been given to the accused at least seven days before the hearing.

The accused has not at least three (3) days before the hearing given the Court in writing, a notice, requiring the attendance of the witness.

AUTHORITIES TO SEARCH: Sec. 63 (1)

A warrant may be issued by a R.M. or J.P. to search for property obtained as a result of an offence against this law.

This warrant must specify the property.

SECTION 63 (2)

An Officer of the J.C.F. not below the rank of Superintendent may grant a written authority to search for stolen goods providing that:-

The premises to be searched has within the preceding (12) twelve months, been in the occupation of any person who has been convicted of receiving stolen property or of harbouring thieves, or If the person occupying the premises has within the preceding 5 years been convicted of receiving stolen goods or any offence involving fraud or dishonesty and punishable with imprisonment. N.B. Such authority need not specify property seize, any goods believed to be stolen even if not the suspected property stolen.

POWER OF ARREST:

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Any person may arrest without warrant any person found committing the offence of receiving.

RECEIVING

PROOF OF LARCENY – (R. v. SARA 1918)

The circumstances in which a person receives goods may of themselves be sufficient to prove that the goods are stolen and also that at the time the person received them he knew they were stolen. It is not a rule of law that there MUST be other evidence of the theft.

See R. v. Fushillo (Cohen V. March (1913) 2 T.I.R. 402)

No substantial evidence of receiving. This was a case in which there had been conviction for receiving razor blades. On appeal it was held that an untruth told to the Police Officer when he first interviewed Cohen did not justify, in itself, an inference that the blades were stolen. Conviction quashed.

INFERENCE OF LARCENY: (R. v. Spiers & Young (1952)

The ruling in this case underlines once again that the circumstantial evidence may be quite sufficient to prove that goods, the subject of offence to offer some story in explanation if the jury decides not to accept it. The appellants in the case relied in vain on Cohen v. March. Lord Goddard, C.J. said, “The case quoted did not lay down any principle in Law. There is ample evidence in the present case to justify the conviction, but here again we are not laying down any point of Law”. Appeal dismissed.

NO CONTROL BY ALLEGED RECEIVER: (Hawes v. Edwards (1947)

Railway servants took a parcel of stolen property to the premises of Hawes. Police found Hawes and the thieves examining the contents. Hawes was convicted of receiving and appealed. Lord Goddard, C.J., held where offering to transfer possession to Hawes who did not make up his mind at the time of the arrest, and therefore, there being no evidence of control the conviction must be quashed.

RESUMPTION OF POSSESSION BY CONDOR HIS AGENT: (R. v. Smidt (1866)

Law reports, Crown cases Reserved 15.

In this case stolen goods were sent by the thief, in a parcel by railway addressed to Schmidt. A railway officer, acting on information examined the parcel and stopped delivery. The next day a porter was directed by the officer to take to the address designated by the thief and it was there received by Schmidt. It was held that the accused could not be convicted of receiving as the goods had ceased to be

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stolen at the time of receipt.

See R. v. Villensky (1892) 2 Q.B. 597).

POSSESSION BY POLICE (R. v. King (1938)

Police visited the flat of a man named Burns who admitted the theft of a fur coat and handed Police a parcel containing the coat. At that moment the telephone rang and Burns told the caller – King to ‘come along as arranged.’ Police secreted themselves and heard King asked for the coat, which was handed to him, in the parcel by Burns. King was convicted for receiving, but appealed.

Humphreys J. said, ” The coat had not been reduced into possession of the owner or the Police, although but for the telephone call it would have been within moments.” Appeal dismissed.

PROCEEDS OF MISDEMEANOUR (R. v. Klein (1932) 23 C.A.R. 182)

Klein was convicted of receiving certain monies knowing the same to be proceeds of a conspiracy to defraud and appealed. Conviction upheld.

PROCEEDS OF FELONY: (D’Andrea V. Woods (1933) 37 C.A.R. 182).

D’Andrea was convicted of receiving \$4.10 knowing the same to be stolen. It was in fact part proceeds of the sale of stolen savings stamps. He appealed on the grounds that the money was proceeds of larceny and not, in itself ‘stolen.’ Held: That the conviction was right as the money came into the definition of ‘property’ into or for which stolen.

INNOCENT RECEIPT: (R. v. Matthews (1949)

If property is received innocently, the fact that the person who has possession subsequently changes his mind and misappropriates the goods in question, such action does not make the original receipt felonious or the taking either receiving or larceny.

DOCTRINE OF RECENT POSSESSION: (R v. Aves (1950) 34 C.A.R. 159)

Where the only evidence is that the prisoner is in possession of property recently stolen, a jury may infer guilty knowledge (a) if he offers no explanation of his possession, or (b) the jury are satisfied that his jury are satisfied that his jury in doubt they should acquit. If there is any other evidence this must be considered TOGETHER with the above ruling.

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See R. v. Marcus (1923) 77 C.A.R. 191

Guilty Knowledge:

See 61 (1) Larceny Law Chap.212

Whenever a person is being proceeded against for receiving STOLEN PROPERTY, or for possessing STOLEN PROPERTY, it may be given in evidence at any stage:

The fact that other property stolen within the 12 months preceding the date of the offence charged was found or had been in his possession.

The fact that within the five years proceeding that date of the offence charged he was convicted of any offence involving fraud or dishonesty.

The last mentioned fact might not be proved unless:

Seven days notice in writing has been given to the accused that it is intended to prove any such conviction;

Evidence has been given that the property in respect of which the offender is being tried was found or had been in his possession.

R. v. Davies (1933) 37 C.A.R. 19

If the prosecution include in an indictment for receiving a count for some other offence, i.e. being an accessory after the fact to larceny, they must refrain from giving evidence of a previous conviction under Sec. 43 (1) Larceny Law, for such evidence is admissible only where the charge is receiving only.

PROPERTY ‘STOLEN’ BY A CHILD UNDER EIGHT (8) YEARS:

Walters V. Lunt and another (1931) 33 C.A.R. 69 – In this case the Lord Chief Justice stated that goods taken by a child under the age of eight years could NOT be regarded as ‘STOLEN’ or even obtained under circumstances amounting to felony or misdemeanour, therefore no person could be convicted of receiving stolen goods. It may well be that the person in question could be convicted of stealing as a bailee or larceny or by finding.

PAVILLION BREAKING OR RECEIVING (R. v. Loughing (1951) 35 C.A.R. 69)

If it is proved that premises have broken into and that certain property has been stolen and that, very shortly afterwards, a man is found in possession of the property, that is evidence from which a jury can

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infer that he is a thief, and if he is, it is inconsistent to find him guilty of receiving because a man cannot receive from himself. It is perfectly good evidence of the prisoner, the thief, if he is found in possession of the stolen goods soon after the larceny.

See R. v. Densley 171 E. R. 1294

WHETHER LARCENY OR RECEIVING (R. v. Seymour (1954) 38 C.A.R. 69)

In case where the evidence is as consistent with larceny as it is with receiving, the indictment should contain counts for BOTH OFFENCES. The jury should be directed that it is for them to decide whether the prisoner was the thief or whether he received the property from the thief and should be reminded that a man cannot receive the property from himself. If a jury convicts on one of these alternative counts, they should be discharged from giving a verdict on the other.

UNLAWFUL POSSESSION OF PROPERTY

Brief History of the Law

Before 1952, the law relating to unlawful possession of property was to be found in two separate Acts, namely: -

The Unlawful Possession of Agricultural Produce Law, (Chapter 413 Revised Edition (1938).

The Unlawful Possession of Goods Law, (Chapter 415 Revised Edition (1938).

The Act under 'A' above dealt exclusively with 'article of agricultural produce' whilst 'B' dealt with any 'goods'.

There were some very important differences between the two acts, some of which have been removed by and others retained in, the present Law.

DIFFERENCES

The main differences which existed in the Law before 1952, are:-

The term 'suspected person' was used only in Chapter 413 and it included a person "who has been or is in possession of anything being an article of agricultural produce".

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The offender under Chapter 415 was a person “having in his possession or under his control in any manner or in any place anything.....”.

An interesting question which arose then was whether or not the word ‘anything’ in chapter 415 could include an ‘Article of Agricultural Produce’.

In 1944, it was told by the Resident Magistrate in Westmoreland, in *R. v. Vas sell*. (Unreported) that it, could not. Fortunately, the question is of no importance in the present Law.

Under Chapter 413, the suspected person was ‘forthwith’ taken before the Justice of the Peace or Clerk of the Courts.

The differences no longer obtain. Under the present Law the suspected person must be taken before the Resident Magistrate as soon as possible and if the Resident Magistrate is not sitting in court within 48 hours he must be taken before a Justice to be bailed or remanded for the earliest convenient sitting of the Resident Magistrate in Court.

One of the differences in the old Law which remain with us is that an ‘authorized person’ is empowered to act only in cases of agricultural produce.

In 1952 both chapters 413 and 415 repealed by law 12 of the 1952 and were replaced by one act. The Unlawful Possession of Property Law. This act consolidated the old laws and treats of both ‘Agricultural Produce’ and ‘Goods’.

THE PRESENT LAW:

The present law governing unlawful possession of property is to be found in the Unlawful Possession of Property Act (Volume 18 of the Laws of Jamaica Revised Edition 1973)

The purpose of the Law is to complement and assist the Larceny in Act in bringing to justice persons who come into possession of goods dishonestly in circumstances where the owner of such goods cannot be traced.

Accordingly, it has been urged that the Unlawful Possession of Property Act should only be resorted to where it is really impossible to trace the ownership of the goods discovered in the possession of the suspected person (*R. V. Lester Beckford* (1934-5) J.L.R. 18 (at P.23).

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Definitions Section 2

“Article of Agriculture Produce” means:- Any article of agriculture produce for the time being specified in the schedule.

“Suspected person” means any person who: -

- (a) has in his possession or under his control in any place anything being an article of agricultural produce or;
- (b) has had in his possession or under his control in any place anything including an article of agricultural produce;

Under such circumstances as shall reasonably cause any Constable or authorized person to suspect that that thing has been stolen or unlawfully obtained.

Certain elements arise from the definition of a ‘suspected person’ which must be clearly understood.

(i) In the case of an article of agricultural produce the person suspected;

(a) maybe in possession or control of it.

(ii) In the case of any other goods (i.e. goods not being an article of agricultural produce listed in index), the person suspected must be found in possession or control of it.

The importance of the above distinction is that in the case of ‘goods’ (not being agricultural produce) the person must be found in possession or control of it by the arresting Constable *R. v. Burgess* (1962) 5W.I.R. 59. In the case of an ‘article of agricultural produce’ the Constable or authorized person may act on the information of some other person who had seen the person suspected in possession or control of the article.

(iii) It is clear from the definition that the person suspected need not be in actual possession of the goods. It is sufficient in each case if he has them under his control.

(iv) ‘In any place’: In *Felix v Burkett & Thomas* (1965) 7 W.I.R. 339 the late Sir Hugh Wooding sought to interpret the term ‘in any place’ to mean in any public place. However, on appeal to the Privy Council it was held (in *Felix & Thomas* (1968) 10 W.I.R. 507) that the words should be given their ordinary meaning.

(v) The arresting Constable or authorized person must have reasonable cause to suspect that the thing had been stolen or unlawfully obtained.

POWERS OF ARREST WITHOUT WARRANT: Section 5 (1)

“Subject to the provisions of section 7, any Constable or authorized person may arrest a suspected

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person without a warrant.”

Section 6

“Whenever a Constable or authorized person has reasonable cause to believe that any person has in his possession or under his control, anything which the Constable or authorized person has reasonable cause to suspect it has been stolen or unlawfully obtained, such Constable or authorized person may require such person to disclose and permit him to inspect the contents of any sack, basket, bundle, package, vehicle or other receptacle in possession or under the control of such person and if any person refuses or neglects to disclose and permit the Constable or authorized person to inspect such contents, he shall be guilty of an offence against this Act and shall on summary conviction be liable to a fine not exceeding fifty dollars (\$50.00) and in default of payment to imprisonment with or without hard labour for a term not exceeding three (3) months.

Note: The power of an authorized person under both sections is exercisable only in relation to article of agricultural produce (See Sec. 7)

Where the person is charged under Section 5 (1) the person arrested must be a ‘suspected person’ as defined by Section 2.

Accordingly, the information must state that the person charged was found in possession of the good (or control as the case maybe) which there is reasonably cause to suspect that it has been stolen (or unlawfully obtained)

Evidence of reasonable suspicion must be given by the arresting Constable before the person’s arrest can be called upon the account (R. v. Curtis 1964 6 W.I.R. 234).

In “Curtis” it was held that the Resident Magistrate must first determine the issue of whether or not the person arrested is a suspected person by hearing evidence on oaths before he can be called upon to account.

Note: There must be reasonable grounds of suspicion (R. v. Williams 1964) 6 W.I.R. 320)

PROCEDURE UNDER SECTION 5

It cannot be over emphasized that the person arrested under Section 5 must be a suspected person and that evidence to that effect must be given before he can be called upon to account.

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Reasonable ground of suspicion may be deprived from a number of factors such as: -

The arresting Constable's knowledge of the person.

(b) The type of article or articles in the person's possession;

(c) The circumstances in which the person was found in possession of the articles such as time of day and place.

(d) Concealment of, or attempt to conceal the articles;

(e) The conduct of the person when accosted;

(f) The explanation given as to how the person came into possession of the articles.

It follows from the foregoing that the arresting Constable or authorized person should carefully note any of the above or any other factors, which caused him to become suspicious.

Since a dishonest person can be in lawful possession of almost any (or probably any) property it follows also that in every case the arresting Constable or authorized person should ask the person suspected to explain his possession of the property.

Where an explanation is given the arresting Constable or authorized person should make a thorough investigation to establish whether or not the explanation is true or false.

Where the person was not in actual possession of the article or articles there must be sufficient evidence to establish that they were under his control.

AFTER ARREST

Section 5 (2) states that the suspected person along with the property found shall be taken as soon as possible before a Resident Magistrate sitting in Court. Section 5 (2) states that if the Resident Magistrate is not sitting in Court within 48 hours the suspected person shall be taken before a Justice to be bailed or remanded in custody for the earliest convenient date the Resident Magistrate is sitting in Court.

Section 5 (5) if any suspected person escapes from any Constable or authorized person attempting to arrest him or lets fall or throws away anything reasonably suspected to have been stolen or unlawfully obtained, it shall be lawfully for any Resident Magistrate of Justice, upon application, to issue his warrant for the arrest of that person and upon his arrest that person shall be deemed to have been

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arrested within the meaning of sub-section (1) and may be dealt with in the manner laid down in sub-sections (2), (3) and (4).

PROCEDURE UNDER SECTION 6

Although the term ‘suspected person’ is not used in section 6, the section requires that the Constable or authorized person must have reasonable cause to believe that the person has in his possession or under his control (something) which the Constable or authorized person has reasonable cause to suspect it has been stolen or unlawfully obtained.

As in the case of an arrest under section 5, there must be reasonable grounds of suspicion. It means, therefore, that all requirements under section 5 in relation to suspicion must be satisfied.

The main distinction between the two sections is that under section 5 the person is actually in possession or control of the goods which give rise to suspicion, under section 6 the person is seen in possession or control of a ‘sack, basket, bundle, package, vehicle or other receptacle’ in which it is reasonably believed that he has property which is suspected to be stolen or unlawfully obtained.

In its practical application, therefore, the Constable or authorized person may under Section 6, requires such person to disclose the contents of such receptacle and upon finding contents which he reasonably suspects to be stolen or unlawfully obtained, arrest the person either under Section 5 or Section 6.

Where the person refuses or neglects to disclose the Constable of any such receptacle he must be charged under Section 6.

Section 12: Any Constable or authorized person may call upon any person to aid and assist him in the execution of his duties under this Act and if any person so called upon neglects or refuses without lawful excuse to aid and assist the constable or authorized person he shall be guilty of an offence against this Act and shall, on summary conviction before a Resident Magistrate be liable to a fine not exceeding Fifty dollars (\$50.00) and in default of payment thereof to imprisonment for a term not exceeding three months.

Section 13: If any person shall assault, obstruct, hinder or resist any constable acting in the aid of such Constable or authorized person, every such offender shall be guilty of an offence against this Act and shall, on summary conviction before a Resident Magistrate, be liable to a fine not exceeding one

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hundred dollars (\$100.00) or imprisonment with or without hard labour for a term not exceeding six (6) months.

Although Section 12 and 13 do not specifically empower a Constable or authorized person to arrest without warrant, the power is by necessary implication contained of the section.

SEARCH WARRANT: Section 8

Section 8(1): If information is given on oath to any Resident Magistrate or Justice that there is reasonable cause for suspecting that anything stolen or unlawfully obtained is concealed or lodged in any house, store, yard or other place or on any land (whether enclosed or not) or in any vessel, the Resident Magistrate or Justice may, by warrant under his hand directed to any Constable cause the house, store, yard, place, land or vessel to be entered and searched at any time of day or, if the warrant so authorized, by night.

A Resident Magistrate or Justice issuing a warrant under subsection (1) may, be such warrant, if it shall appear necessary to him, give authority to the Constable, with such assistance as may be found necessary, to use for the purpose of effecting an entry, whether by breaking, open doors or otherwise, but before force for the purpose aforesaid the Constable shall make known his authority.

If upon search made in accordance with the provisions of subsection (1) and (2), anything which the Constable has reasonable cause suspected to have been stolen or unlawfully obtained is found, the Constable shall arrest and bring before a Resident Magistrate: -

- (a) The person in whose house, store, yard, place or vessel or on whose land such thing is found and
- (b) Any person found in such house, store, place, yard or vessel or on such land.

If the Constable has reasonable cause to suspect that such person placed or was privy to the placing of that thing in such house, store, yard, place or vessel or on such land knowing or having reasonable cause to suspect the same to have been stolen or unlawfully obtained.

If a Constable fails or is for any reason whatsoever unable to arrest any person mentioned in paragraphs (a) and (b) of sub-section (3), a Resident Magistrate or Justice may issue:-

- (a) a warrant for the arrest of such person or;
- (b) a summons requiring such person to appear before a Resident Magistrate at a time and place to be

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mentioned in the summons.

Where an arrest has been made under Section 8, it is not sufficient that the search warrant exists. It must be produce in Court as part of the substance of the case.

(Obadiah Parkinson v. R.(1960) 2 W.T.R. 454)

The search must be conducted by the Constable in whose name the warrant was issued (R. v. Rolda Ricketts (Supra) following R. v. June Williams R.M. CA. 104/70 and approved in R. v. Melvin Sprangg R.H.C.A. 13 8/75).

Despite diction ‘Rolda Ricketts’ and ‘Melvin Sprangg’ to the contrary, R.v. Supra (1964) 6 W.I.R. 311 in authority for the view that the person may also be charged under Section 8 in respect of such goods.

However, because in any case the arresting Constable must give evidence of reasonable suspicion in respect of goods not listed in the warrant, it may be safer to charge the person in a separate information under Section 5, in respect of such goods.

Where only the goods listed in the warrant are found, no evidence of reasonable suspicion is required as in such arrest the court will not go behind the warrant to determine whether or not the Justice issuing it was satisfied that there was reasonable grounds of suspicion. (R.V. Stephens (Supra) (1964) 6 W.I.R. 311.

The person arrested under the warrant must have placed or was privy to the placing of the goods in or upon premises.

Section 9 (1) Any Constable may go on board a vessel in any Harbour Bay, roadside or river and remain on board the vessel for such reasonable time, as he deems expedient. If he has reasonable grounds to suspect that there is on board the vessel anything stolen or unlawfully obtained, he may search with the assistance, any, all every part of the vessel, and after demand and refusal of the keys, break open any receptacle. Upon discovery of anything which he may reasonably suspect to have been stolen or unlawfully obtained, the Constable may take such thing and the person in whose possession it is found before a Resident Magistrate.

A Constable may pursue and detain any person in the act of conveying away from any vessel anything

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which the Constable may reasonable suspect to have been stolen or unlawfully obtained, whether that person has landed or not, together with anything so conveyed away or found in his possession.

TRACING POSSESSION

Section 11(1) If any person brought or appearing before a Resident Magistrate under the provisions of Sections 5, 8, or 9 declares that he received anything reasonably suspected to have been stolen or unlawfully obtained from some other person, or that he was employed as a carrier, agent, or servant to convey that thing for some other person, the Resident Magistrate may cause every such other person, and also any other person through whose possession that thing shall previously have passed, to be brought before him either by summons, or by warrant, as the Resident Magistrate shall in each case deem fit.

POINTS TO PROVE THE OFFENCE

- 1) That the property was found in his possession or under his control.
- 2) The property must be of value and larcenable.
- 3) That he failed to account to the satisfaction of the constable when called upon.
- 4) That there was reasonable cause to suspect that the property was stolen or unlawfully obtained.

Part 5

RAPE AND SEXUAL OFFENCES

LEGISLATION

Offences against the Person Law, Chap. 268

Mental Hospital Law, Chap. 242

Incest (Punishment Law, Chap. 155)

SEXUAL INTERCOURSE

Where, on the trial of any offence under this law, it is necessary to prove sexual intercourse (whether natural or unnatural) it shall not be necessary to prove the completion of the intercourse by the remission of seed, but the intercourse shall be deemed complete upon proof of penetration only.

Offences Against the Person Law, Chap. 268 Section 71.

A boy under the age of 14 years is presumed by law to be physically incapable of the sexual act. *R. v. Groombridge* (1836) 7 C & P 582.

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Unlawful sexual intercourse.

Any intercourse outside the bonds of marriage R.V. Chapman (1958) Crim. L.R. 623.

RAPE

OFFENCE: It is a felony for a man to rape a woman.

Offences Against the Person Act. Section 39

DEFINITION: Rape is the unlawful intercourse of a female without her consent. (Common Law)

Note: 1. **Consent** - In every day term “consent” means to give permission or agreement, and “submission” means to yield oneself to the will of another person, in simple terms to give in.

Consent induced by force, fear or fraud is not true consent. (If the victim submits to sexual intercourse because of them, it means she has been raped).

- ◆ Force includes any violence used to effect the purpose of the accused against the will of the complainant.
- ◆ Fear means some fear of immediate death, bodily injury or mutilation, not necessarily to the complainant.
- ◆ Fraud means some fraud in the representation of the nature of the physical act, if the complainant know she was consenting to sexual intercourse, though induced to do so by fraud, it is not rape. Misrepresenting the nature of the act, for example, pretending to perform a surgical operation. (R. vs. Flattery 1877)

2. No conscious consent.

If intercourse takes place whilst a woman is insensible through liquor (R. v. Complin (1845) 9 J.P. 424) or asleep (R. v. Mayers (1872) 12 Cox 31) it will be rape.

3. Penetration.

To constitute the offence of rape, there must be penetration, R. v. Hill (1781) 1 East P.C. 439.

The slightest penetration will suffice, even though the hymen is not injured, R. v. Russen (1777) C. and P. 753. (R. vs. Hughes (1841) no emission of seed is necessary.

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4. Husband and Wife (Marital Rape)

A man cannot be found guilty of raping his wife unless a separation order containing a provision that the wife be no longer bound to cohabit with her husband, has been made by the Court R. v. Clarke (1949) 33 Cr. App. R. 216.

5. Personating husband.

A man, who induces a married woman to have sexual intercourse with him by impersonating her husband, commits rape.

Offences Against the Person Act. Chap. 268. Sec. 41

6. Accessories.

A boy under 14 years, a woman or the victim's husband may be convicted as a principal in the second degree to rape, if they are present assisting in commission of the offence by another.

EVIDENCE:

1. Corroboration

Although not essential in law, corroboration is always looked for in practice R. v. Graham (1910) 74 J.P. 246.

2. Recent complaint

Evidence that the victim complained as soon as reasonably practicable after the offence, is admissible on behalf of the prosecution. This evidence does not amount to corroboration of the facts complained of but tends to show the consistency of the complaint's evidence with her conduct. R. v. Lillyman (1896) 60 J.P. 536.

It is not admissible if it was elicited by questions of a leading and inducing or intimidating character R. V. Osbourne (1905) 69 J.P. 189

But a complaint made in reply to questions not of a suggestive character even though some pressure has been applied to ascertain the cause of visible mental disturbance is admissible. The question of admissibility is one for the Judge in each case (R. V. Norcott (1916) 81 J.P. 123. The requirement is for the complaint to have been made as speedily as possible.

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Where the victim immediately runs to relative, friend or passerby to tell them what has happened and seek their assistance, then evidence of recent complaint is apparent.

3. Husband and wife

The wife, or husband in the case of a female accomplice, is competent but not compellable witness for prosecution.

ASSAULT WITH INTENT TO COMMIT RAPE:

Whosoever shall assault any person with intent to commit felony (e.g. rape)

Misdemeanour: Offences Against the Person Act, Chap. 268, Sec. 31

INTERCOURSE WITH GIRL UNDER TWELVE:

Offence:- It is felony for a man to have unlawful sexual intercourse with a girl under 12 years.

Offences Against the Person Act. Sec. 48

Note: 1 Consent is no defence – if no true consent, then the offence is rape.

The age of the girl must be strictly proved.

The husband or wife is competent but not compellable witnesses for the prosecution as in rape.

Corroboration as in rape.

Recent complaint as in rape.

INTERCOURSE WITH GIRL AT AGE TWELVE BUT UNDER FOURTEEN

OFFENCE: It is an offence subject to the exception mentioned in this section for a man to have unlawful intercourse with a girl above the age of 12 and under the age of 16 years. Section 15.

A man who is an Officer, etc. or employee in any mental hospital having unlawful sexual intercourse with a person confined therein

Misdemeanour

Mental Hospital Law, Chap. 242

Section 41

NOTE: It is a defence if he does not know and has no reason to suspect the female to be an idiot or

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imbecile.

Offences Against the Person Law, Chap. 268, Section 42

MEANING OF DEFECTIVE

DEFECTIVE – Means a person suffering from severe sub-normality

SEVERE SUBNORMALITY – Means a stage of arrested or incomplete development of the mind which includes sub-normality of intelligence and is of such a nature or degree that the person is capable of living an independent life or of guarding himself against serious exploitation, or will be so incapable when of age to do so.

INCEST

Definition

Incest is the crime of having sexual connection with a close relative and is committed when any male person has carnal knowledge of his mother, daughter or sister, or for female person to permit her grandfather, father, son or brother to have carnal knowledge of her. (Section 2 of Chap. 155)

Incest is sexual intercourse between persons related within the prohibited degrees of marriage.

Originally a felony punishable with death, incest was subsequently left to the spiritual courts but legislation lapsed on the restoration and it was not until 1908 by an Act now repealed that it reverted to a criminal offence.

Criminal incest is now governed by Sections 2 (1), (2) (3) and 3 of Chap. 155

By section 2 (1), it is an offence for a man to have sexual intercourse with a woman he knows to be his grand-daughter, daughter, sister or mother. Triable at Assizes only. If with a girl under 12 years, life imprisonment otherwise seven (7) years. The attempt by a man on a girl under 12 years is punishable with a maximum of 7 years, otherwise 2 years.

By section 11, it is an offence for a girl of the age of 16 years or over to permit a man whom she knows to be her grandfather, brother or son to have sexual intercourse with her by her consent. Triable at Assizes only. Seven years imprisonment. Attempt 2 years.

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Brother and sister include half brother and half-sister, whether or not the relationship is traced through lawful wedlock. Consent at all times is immaterial.

For a female to be liable she must be of the age of 18 years or over and a consenting party.

Exercise care to distinguish between consent and submission. It is open to the Jury to believe that the female offered some resistance and eventually submitted, without consenting in the sense of acting of her own free will. There is a distinction between submission and permission. (R. v. Dimes, (1911) 7 Chap. 43). Sub-mission does not make a woman an accomplice.

If separate counts in an indictment charge, incest against a man and a woman, a verdict of guilty against one only may be returned. The female may be innocent on the grounds that she did not know that the man was her brother. (R.v.Gordon (1925) 19 Chap. 20).

On indictment for incest by a man alternative verdict lies under sections 42 and 43 of Chap. 268.

Where female is under the age of 16 years, her age must be shown of charge and provide strictly. If a birth certificate can be produced, evidence must be given identifying the girl with the child whose birth was certified.

Proof of facts, which constitute Rape, does not entitle the prisoner to be acquitted of Incest.

All offences of Incest must be reported to the Director of Public Prosecution in practice, the Director of Public Prosecutions prosecutes in all case of incest and the practical effect of point 14 above is that it is the Director's Consent, which is required.

Proof of facts, which constitute Rape, does not entitle the prisoner to be acquitted of Incest.

Prosecutions of Incest, or Attempted Incest, may not be commenced without the sanction of the Attorney General, except by or on behalf of the Director of Public Prosecutions.

Corroboration is not essential in law but is required in practice under the general necessity of corroboration of the complaint in all sexual cases.

Corroborative evidence is evidence, which shows, or tends to show that the story of the complainant that the accused committed, the crime is true, not merely that the crime has been committed but that it

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was committed by the accused.

A confession in law needs no corroboration but in practice there is usually some.

Existence of corroboration or not is a question for the Jury.

An indictment charging Incest on drivers days between two stated days is bad as it charges more than offence. (R.v. Thompson (1914) Cox. 43) but evidence of relations between the same parties on dates other than that charged is admissible to prove guilty passion and to rebut a defence of innocent association (R.v. Ball (1911) A.C.47

A consenting female over the age of 16 years may be accomplice and if called as a prosecution witness needs to be corroborated. Even if she did not consent she would need corroboration under the general necessity in sexual cases.

POINTS TO PROVE

- ◆ Relationship between the parties
- ◆ Knowledge of such relationship by the accused
- ◆ Sexual intercourse or the attempted sexual intercourse

On conviction of a man for committing or attempting to commit incest against a girl under 21 years, the court may divest him of all authority over her. Sec. 47 of Chap. 268.

Upon receipt of complaint do not hesitate in interview suspects.

Where surrenders to police and confess to incestuous conduct do not charge and bail under the Constabulary Force Law of the Resident Magistrate's Court Act, as either course begins proceeding without authority. Take detailed statement (under caution), verify name and address and allows surrendering party to go. Treat enquiry as urgent and lay report and statements before DPP as early as possible. Take all necessary steps to keep parties to the offence apart.

Be ready with description of premises, where the offence has been committed and conditions under which the parties have been living often asked for by Judges.

If parties have been living together in hotel, boarding house or furnished rooms, obtain statement regarding tenancy and sleeping accommodation. Where hotel is register is kept, arrange for production at Court.

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Medical examination of female with her consent. If proved 'virgo intacta' consider prosecution for the attempt in preference to the full offence.

Upon receipt of complaint do not hesitate to interview suspects.

POINTS TO PROVE INCEST

- ◆ Sexual intercourse (there must be penetration, even though slight).
- ◆ Relationship and identity.
- ◆ Marriage and Birth Certificates.
- ◆ Date and time of offence.
- ◆ Accused must be a blood relative.
- ◆ Knowledge of such relationship by accused.

Action:

During the course of investigation, statements must be taken from mother and other relatives. Fiat of the Attorney General or DPP must be obtained before any process is issued. No Fiat, no prosecution.

Part 6

REPORT WRITING

Introduction

Without a thorough knowledge of the basic purposes for which written reports are prepared and submitted, the police investigator is seriously handicapped. This lack of knowledge is likely to include important details in his report and perhaps more importantly, the habit of not dealing with small but relevant details specifically, may very well affect the quality of his investigation.

An investigator will not be considered truly efficient until he is able to master (along with other) the art of communicating in an orderly and logical manner, the various facts and information surrounding the subject of his information. It is therefore just as important to pay special attention to report writing, as one would pay the other aspects of police investigation. The question of when to submit a written report may be guided, on occasions, by the investigators own judgement. He at times must determine whether a subject is important enough to form the subject of a written report. It is suggested when in doubt a

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written report should be submitted.

DEFINITION:

A Report is a written account of any matter under Police investigation or in connection with Police duties.

OBJECT:

The object of Report Writing is two folds:

To inform a superior of a given subject, together with the writers views and recommendations on the subject.

To provide a permanent record of the writer's views and recommendations on the subject.

BASIC RULES:

- ◆ Each report should be confined to one subject only.
- ◆ The subject of the report must be clearly stated at the beginning of the document.
- ◆ All relevant facts must be accurately and clearly stated in logical sequence.
- ◆ Quotation must be marked by inverted commas.
- ◆ Information and opinions must be clearly stated as such and not confused with facts.
- ◆ Conclusions must be derived from the contents of the report.
- ◆ Recommendations must be clearly stated.
- ◆ The language of the report must be simple. Slang must not be used except in quotations. Correct language should always be used.
- ◆ Sentences should be short and crisp.
- ◆ If statistics are necessary they should be set out in an appendix and referred to in the body of the report.
- ◆ In long reports embodying many conclusions on recommendations, a summary of the conclusions and recommendations should either be included at the end of the report or attached in the form of a cover note.
- ◆ Report must be signed and dated.
- ◆ There should be no unnecessary delay in preparing and submitting a report.

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MECHANICS OF REPORT WRITING:

Introduction: The reason for the report and the background of the subject should form the opening or introduction of the report.

Body: All of the factors affecting the subject, the deduction from these factors, any course open for action and their advantages and disadvantages should be set out in logical sequence. Note: A factor is defined as circumstances, factor, or evidence contributing to a result.

Conclusion and Recommendations: The writer's conclusion from his deductions and the advantages and disadvantages of the course open for action should be concisely stated, recommendations must be based on conclusions and should be definite and clearly stated.

STRUCTURE:

Introduction

Body

Factor

Deduction

Course Open

Advantages

Disadvantages

Conclusions

Recommendations

A – B – C – D – E -: Accuracy – Brevity – Clarity – Drafting – Expedition

ESSENTIAL INFORMATION FOR REPORT ON CRIME:

WHO

Who made the report to the Police? Who discover the Crime? Who is the victim? Who is the criminal or offender? Who are witnesses? Who are the possible suspects? Who can be contacted later for further information?

WHAT

What happened? What kind of damage was done? What is the value of the property lost, stolen or
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recovered? What evidence was left at the scene? What actual crime has been committed? What type of tools was used? What type of transportation was used? What disposition was made of the evidence? What action was taken by the investigating officer? What further action needs to be taken?

WHERE

Where was the crime committed? Where was the complainant or victim when the crime was committed? Where were the witnesses when they made their observation? Where are the tools and weapons now? Where were the stolen articles most likely to be disposed of? Where is the criminal most likely to go? Where has a recent similar crime being committed?

WHEN

When was the crime committed? When was the crime discovered? When was the crime reported to the Police? When did the Police first arrive at the scene? When was the suspect observed at the scene? When was a similar crime committed in this locality? When can the victim or witnesses be interviewed further?

HOW

How was the crime committed? How did the criminal enter the scene? How did he get away? How was the crime discovered? How were the tools and weapons used? How long did it take to commit the crime? How many persons were possibly involved in the crime? How well was the crime scene processed for possible evidence? How would the criminal probably dispose of the loot? How well was the crime planned in advance? How many similar crimes have recently been committed in the same locality?

Part 7

METHODS OF IDENTIFICATION

The object of an Identification parade is to test the ability of a witness to pick out from a group of person, if he is present, whom the witness has said that he has seen previously on a specified occasion. Identification Parade should be fair, and should seem to be fair. Every precaution should be taken to see that they are so, and in particular, to exclude any suspicion of unfairness or risk of erroneous identification through the witnesses attention being directed specially to the suspected person instead of equally to all the persons paraded.

It is also to be noted that it is the onus of the prosecution at all times to prove the identity of every person charged, and this duty falls on the Police to prove it.

METHODS OF IDENTIFICATION

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POLICE

Admission of the accused

Fingerprints at scene

Articles found in possession of accused

Articles left at scene, i.e Forensic Expert

Handwriting

WITNESS

Identification Parade

In public place

Photographs

Our function is to deal specially with identification Parade so we will discuss (b) above. We are guided by the Jamaica Gazette Extra Ordinary dated 29th July, 1983, Page 1155 as 552-554 which the Principal Rules and the Jamaica Gazette supplement No. 521 Volume C. No. 110 dated the 23rd December, 1977 which deals with the one way mirrors 110 as such a witness shall not be required to touch any person whom he purports to identify. See Appendix to Force Orders No. 1595 dated the 29th December 1977.

Rules

As soon as practicable after the Officer in the case has taken the decision that identification may be required. Identification Officer to see suspect, inform him of his rights and privileges. A suspect has the right to have a solicitor or a friend present at the parade, provided that this can be arranged without causing unreasonable delay or difficulty; his attention should be drawn to this.

Video Identification, Formal Parade and use of One Way Mirror

An Attorney at Law subject to Sub. Paragraph (iii) and a Justice of the Peace shall be present and both shall be placed in a position to be decided by the Officer or Sub-Officer conducting the Parade. The Attorney at Law shall be one chosen by the prisoner, however, if the prisoner chooses no particular Attorney at Law or is the Attorney at Law of the prisoners choice is not available for the parade, the Attorney at Law should either be drawn from a Legal Aid Clinic or selected by the Officer or Sub-Officer conducting the Parade from among Attorney at Law willing to undertake the assignment.

When an Attorney at Law fails or is unable to attend an Identification Parade, the Identification Parade should be postponed once and if on the date set for the postponed Identification Parade, an Attorney at Law does not attend but a Justice of the Peace is present, the Identification Parade may be held in the absence of the Attorney at Law. "It is advisable for the postponed Identification Parade that two

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Justices of the Peace should be made available”.

Neither Attorney at Law or Justice of the Peace when present at the Parade shall speak to any witness or to any person, other than accused being paraded.

Where the suspect is under 18 years, his parents, guardian should be informed of the holding of the Parade and be invited to be present. The Parade should not be held unless the juvenile’s PARENTS or GUARDIAN or Attorney is present (or if not practicable for one of these to attend) another adult not being a Police Officer is present.

Where a witness is under the age of 18 years, his parents, guardian or an adult should be informed of the holding of the Parade and accompany him if practicable, who is not also a witness, but the adult, should be permitted to intervene.

When a prison inmate is required for Identification, he should normally be invited to go to a Police Station for an Identification Parade. If he refuses, he should be deemed to have refused to attend a Parade.

Where there is a serious security problem the parade may be held in a prison, but must be conducted as far as possible under normal parade rules. Members of the public should make up the parade, unless there are serious security objections to their admission to the prison, establishment.

Immediately before the Parade, the Officer or Sub-Officer conducting the Parade should interview the suspect and explain briefly the facts why he is being placed on the parade also the procedures governing the Parade to him. The Judges Rule provided guide on cautioning of suspect before he is asked any questions relating to the offence; whilst those Rules do not apply where the questioning relates solely to the conduct of the parade, the suspect should be told that he need not say anything at any stage, it will be recorded and may be given in evidence in any subsequent court proceedings.

The Identification Officer should always be an Officer or Sub-Officer of not lower than the rank of a Sergeant.

An Officer concerned with the investigation of the case against the suspect shall take no part in the arrangements for or the conduct of the parade and if present at the parade shall not intervene in anyway

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and should be so positioned that he can at all times be seen in forming the parade.

Once the Identification parade has been formed everything afterwards in respect of it should take place in the presence and hearing of the suspect and if any person who is present in accordance with Rule 2 or 3 including any instruction to the witnesses attending it as to the procedure they are to adopt.

All unauthorized persons should be strictly excluded from the place where the Identification Parade is held.

No information should be given to the witness of the identity of the suspect. The witnesses should be prevented from seeing any member of the parade before they are brought in for the purpose of making an identification, and in particular should not be allowed any opportunity of seeing the suspect in circumstances indicating that he is the suspect, before or after the parade. Witnesses should also be prevented from talking with each other while waiting to see the Parade.

Witnesses who have previously seen a photograph or description of the suspect should not be led in identifying the suspect by reason of the recollection of the photograph or description, for instance by being shown the photograph or description shortly before the parade.

The suspect should be placed among persons (at least eight or, if practicable, more) who are as far as possible of the same age, height, general appearance (including standard of dress and grooming) and position in life as the suspect. Members of a uniform group such as a Police or Army should not normally be used as participants in an Identification Parade unless the suspect is a Policeman or a Soldier. One suspect only should be included in a parade unless there are two suspects of roughly similar appearance in which case, they may be paraded together with at least twelve other persons. In no circumstances should more than two suspects be included in one parade and where there are separate parades they should be made up of different persons.

Occasionally all members of a group are possible suspects. This may happen when Police Officers are involved (e.g. an allegation concerning a Police Officer which can be narrowed down to a number of Officers who were on duty at the place and time in question). In such circumstances, separate parades

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should be held for each of the Officers in question unless there are two suspects of similar appearance when they may appear on the same parade with at least twelve other Officers that were not implicated. Where Police Officers in uniform form an Identification Parade numerals should be concealed.

The suspect should be allowed to select his own position in the line and should expressly asked if he has any objection to the other participants in the parade, or the arrangements. Any objections should be recorded and where practicable, steps should be taken to remove the grounds for objection.

The witness should be brought in one by one. Witnesses waiting to see the person's on parade should not be allowed to communicate with or overhear a witness who has already seen the parade. The Officer conducting a witness to a parade should not discuss the composition of the parade with the witness and, in particular should not disclose whether any previous witness has made any identification.

The Officer incharge of the parade should tell the witnesses expressly that the person he saw may or may not be on the parade. This should be done just before the witness inspects the parade. The witness should then be asked whether the person he has come to identify is on parade. He should be told that if he cannot make a positive identification he should say so.

It may sometimes happen that a witness desires to see the suspect with a hat on or a hat off and there is no objection to the person's parade there, upon being asked to wear or remove hats. If a witness ask to hear members of the parade speak or see them move, he should be asked whether he can first identify any persons on the parade on the basis of appearance only, and his reply should be noted. When the request is to hear members of the parade speaks, he should be reminded that the participants in the parade have been chosen on the basis of physical appearance only. Members of the parade may then be asked to comply with the witness's request to hear them speak or see them move. Full details of the incident, including the stages at which any identification was made should be recorded.

It is generally desirable that a witness should be asked to touch any person who he purports to identify but when the witness is nervous at the prospect of having to do so (as may occur for example, when the witness is a woman or child who has been the victim of a sexual violent assault or other frightening

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experience) and prefers not to touch the person, identification by pointing out may be permitted provided that the identification is made clearly and in view of the suspect and, if present, in the presence of his Solicitor or friend, or in the case of a juvenile, his parent or guardian.

After each witness has left the room the suspect should be informed that he might change his position in the line.

When the last witness has left, the suspect should be asked whether he wishes to make any comments on the conduct of the parade and his reply should be noted. The Attorney should also be asked to make comments.

ADMINISTRATIVE GUIDANCE

The normal procedure in cases where there is a dispute over identification and there is a suspect available to take part in an identification parade should be to hold a parade in accordance with the Identification Parade rules.

A request by a suspect to be placed on an Identification Parade should always be complied with unless it is impracticable to do so.

If a suspect is of such singular appearance that it would not be possible to assemble sufficient people who resemble him to make up a fair parade he should not be asked to stand on parade.

When there is no specific suspect in view but there are reasonable grounds for believing that the offender may be one of a group who resorts to a particular place or in the case of an offence which has just been committed that the offender may still be in a particular neighbourhood there is no objection to the witness being asked to observe the persons there to test his ability to identify the person whom he says on the relevant occasion. Care should be taken however, not to direct the witness's attention to any individual.

If a suspect refuses to attend a parade, arrangements may be made to allow the witness an opportunity of seeing him in a group of people to test the witness's ability to identify the person whom he says he saw on a previous occasion. Care should be taken not to direct the witness's attention to the suspect.

A suspect should only be confronted by a witness if it is impracticable to arrange for any alternative

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method of identification in a group situation (e.g. if he refused to stand on parade).

A record should be kept of each Identification Parade held on the required forms. A copy of each form should be completed irrespective of whether the witness picked out the suspect or not. All facts concerning the parade should be carefully noted on the appropriate form whether or not the suspect or any other person is identified. In particular, any comment by the witness or suspect should be recorded, as should any request by a witness to hear or see a member of the parade speak or move.

Names and addresses of participants in the parade should be recorded on a form but not given to the suspect or his solicitors except on the authority of a court.

If a member of the public who is invited to make up the parade objects giving his name and address he should not take part in the parade unless in the circumstances it is not practicable to obtain a replacement.

If the suspect is in prison and is willing to take part in the Identification Parade, arrangement should be made with the Director of Prisons for his production at the nearest convenient Police Station where the parade may take place. The escorting prison officers will be responsible at all times for the safe custody of the prisoners.

If because of security requirements it is necessary to hold the parade in a prison the participation of members of the public should be discussed with the Commissioner of Prisons. If the Director of Prison decides that there are serious security objections, to the admissions of members of the public to the prison, prisoners may exceptionally make up the parade. In these circumstances the Director of Prisons will be responsible for assembling the parade, but the conduct of the parade will otherwise be the responsibility of the Police Officer incharge. A prison Officer or Officers should always be present to ensure the discipline of prisoners taking part, and should position himself so as to be seen at all times by these taking part in the parade.

When a number of parades are being held in any one occasion special care should be taken to ensure that different people are used to make up parades seen by the same witness.

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IDENTIFICATION BY PHOTOGRAPH

The object of showing a group of photographs to a witness is to test his ability to pick out the photograph if it is there, of the person whom the witness has said that he has seen previously on the specified occasion. Every precaution should be taken to exclude any suspicion of unfairness or erroneous identification.

The following rules should be observed whenever a witness is shown photographs for identification purposes whether or not the photographs include the person who is already suspect.

RULES:

1. Photographs should not be shown if the circumstances allow, of personal identification (e.g. when there is already a suspect who is readily available to be asked to stand on an Identification Parade). Once a witness has made a positive identification from photographs, other witnesses should not be shown photograph but should be asked to attend an Identification Parade unless the person identifying from photographs is eliminated from enquiries.
2. An Officer of not less rank than Corporal should be responsible for supervising and directing and showing of photographs, but the actual showing may be done by a Constable.
3. Arrangements should be made to ensure that a witness being shown photographs and given as much privacy as practicable. The witness should not be allowed to communicate with or overhear any other witness in the case. A juvenile witness also a witness but the adult should not be permitted to intervene and should be advised accordingly.
4. A witness should not be shown less than 12 photographs at a time. The photographs used should not be included in a selection of or CRO photographs. When a witness is being shown the photographs of suspect it should be shown with not less than 11 photographs, the subjects of which have as close resemblance to the suspect as possible.
5. The witness should be told that the photograph of the person whom he has said that he has seen previously on a specified occasion may or may not be amongst the photographs shown. He should then be left to make any selection without help.

6. A person who has made a firm identification by photograph should always be asked to attend an Identification Parade unless it is necessary or impracticable for some other reason.

ADMINISTRATIVE GUIDANCE

Photographs shown may either be in album form or a selection of loose photographs collected for the occasion. In the latter case the photographs must be shown mounted in frame. The photographs must not be assembled in the frame in view of the witness.

A record should be kept of the showing of photographs whether or not identification is made, and any comment made by the witness should be recorded.

Arrangements should be made to ensure that loose photographs used are available for production in court if called for whether or not an identification is made, where witness albums have been used, a record should be kept of the albums and any photograph identified should be available for production in court if called for.

In the event of court proceedings the defence should be informed if identification was first made from photographs since it cannot normally be said in court that an identification was made from photographs without revealing the existence of a criminal record.

If requested details on a form should be made available for the defence containing information as to whether an identification was made, time, date, place, witnesses present etc.

The rules for the use of photographs for identification cannot, of course, apply to the procedure where a photograph of a man wanted by the Police is published or shown to individuals in order to trace the wanted persons whereabouts, but in these circumstances an Officer should always avoid as far as possible showing the photograph on its own to a person who may be subsequently required to attend an Identification Parade in which the subject of the photograph might be appearing. Similar, although the rules for the uses of photographs for identification purpose do not apply to the use of photograph fit and identification kit picture, when the use of such a picture results in there being a suspect available to be asked to stand on a parade, an Officer should avoid showing the picture to other potential witnesses who should instead be asked to attend any identification parade held.

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Photographs should not be used if accused is in custody. *Melaney* (1924) 18cr. App.R.2. Prosecution must not introduce evidence by photographs. *Wainwright* (1925) 19 cr. App. R.52 Such evidence may be introduced by defence. *Palmer* (1914) 10 cr. App. R.77

ALL IDENTIFICATION PROCESSES (*Suspect in custody*)

1. Serve forms ID1A & ID1B on suspect and attorney
2. Application made for parade on form ID2A and ID2B and to the Visual Identification Unit, 1st Floor, NCB (South) Tower, 2 Oxford Road, Kingston 5
3. Identification Officer appointed
4. Arrangements made by Identification Officer for type of parade dependent on the facts and circumstances

VIDEO IDENTIFICATION (SOP)

This manual sets out the procedures for Video Identification Parades in accordance with Identification Regulations for the identification of persons by the Jamaica constabulary Force that are to be exercised. The circumstances and procedures set out herein are permitted in accordance with the regulations and all Video Identifications Parades are to be carried out in accordance with this manual.

Cases when suspect are known and available

If the suspect's identity is known to the police and he is available, the identification procedures set out below may be used. References to a suspect being 'known' mean there is sufficient information known to the police to justify the arrest of a particular person for suspected involvement in the offence. A suspect being 'available' means he is immediately available or will be within a reasonably short time, and he is willing to take an effective part in at least one of the following which it is practicable to

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arrange:

- video identification
- identification parade
- group identification.

Video identification

1.1 A ‘video identification’ is when the witness is shown moving images of a known suspect, together with similar images of others who resemble the suspect. Moving images must be used unless:

- the suspect is known but not available; or
- the identification officer does not consider that replication of a physical feature can be achieved or that it is not possible to conceal the location of the feature on the image of the suspect.

The identification officer may then decide to make use of video identification but using still images.

ONE WAY MIRROR

One way mirror means a pane of glass or other similar material so treated that when viewed from one side herein after referred to as the observe side it presents a reflection of the view but does not permits the viewer to see through it. Persons or objects which may be on the other side (hereinafter referred to as the reverse side) and when viewed from the reverse side it permits the viewer to see through it, persons or objects which may be on the observed side.

Identification parade

1.2 An ‘Identification Parade’ is when the witness sees the suspect in a line of others who resemble the suspect.

Group identification

1.3 A ‘Group Identification’ is when the witness sees the suspect in an informal group of people.

VIDEO IDENTIFICATION

(a) General

1. The arrangements for obtaining and ensuring the availability of a suitable set of images to be used in a video identification must be the responsibility of an Identification Officer who has no direct involvement with the case.
2. The set of images must include the suspect and at least eight other people who, so far as

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possible, resemble the suspect in age, general appearance and apparent position in life. Only one suspect shall appear in any set unless there are two suspects of roughly similar appearance, in which case they may be shown together with at least twelve other people.

3. If the suspect has an unusual physical feature, e.g., a facial scar, tattoo or distinctive hairstyle or hair colour which does not appear on the images of the other people that are available to be used, steps may be taken to:
 - (a) conceal the location of the feature on the images of the suspect and the other people; or
 - (b) replicate that feature on the images of the other people.

For these purposes, the feature may be concealed or replicated electronically or by any other method which it is practicable to use to ensure that the images of the suspect and other people resemble each other.

The identification officer has discretion to choose whether to conceal or replicate the feature and the method to be used. If an unusual physical feature has been described by the witness, the identification officer should, if practicable, have that feature replicated. If it has not been described, concealment may be more appropriate.

4. If the identification officer decides that a feature should be concealed or replicated, the reason for the decision and whether the feature was concealed or replicated in the images shown to any witness shall be recorded.
5. If the witness requests to view an image where an unusual physical feature has been concealed or replicated without the feature being concealed or replicated, the witness may be allowed to do so, and the fact recorded.
6. The images used to conduct a Video Identification shall, as far as possible, show the suspect and other people in the same positions or carrying out the same sequence of movements. They shall also show the suspect and other people under identical conditions unless the identification officer reasonably believes:
 - a. because of the suspect's failure or refusal to co-operate or other reasons, it is not practicable for the conditions to be identical; and
 - b. any difference in the conditions would not direct a witness' attention to any individual image.

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7. The reasons identical conditions are not practicable shall be recorded on forms provided for the purpose.
8. Provision must be made for each person shown to be identified by number.
9. If police officers are shown, any numerals or other identifying badges must be concealed. If a prison inmate is shown, either as a suspect or not, then either all, or none of, the people shown should be in prison clothing.
10. The suspect's Attorney or a Justice of the Peace must be given a reasonable opportunity to see the complete set of images before it is shown to any witness. If the Attorney or JP has a reasonable objection to the set of images or any of the participants, the suspect shall be asked to state the reasons for the objection. Steps shall, if practicable, be taken to remove the grounds for objection. If this is not practicable, the suspect and/or his representative shall be told why the objection cannot be met and the objection, the reason given for it and why it cannot be met shall be recorded by the Identification Officer.
11. Before the images are shown the suspect or his Attorney shall be provided with details of the first description of the suspect by any witnesses who are to attend the video identification. When a broadcast or publication is made the suspect or his Attorney must also be allowed to view any material released to the media by the police for the purpose of recognizing or tracing the suspect, provided it is practicable and would not unreasonably delay the investigation.
12. The suspect's Attorney or a Justice of the Peace, shall be given reasonable notification of the time and place the video identification is to be conducted so a representative may attend on behalf of the suspect. If an Attorney has not been instructed, all reasonable efforts should be made to obtain an Attorney from a legal aid clinic, otherwise a Justice of the peace must be present. In the absence of the suspect's representative, the viewing itself shall be recorded on video and in the presence of a Justice of the Peace. No unauthorized persons are to be present.

(b) Conducting the video identification

13. Consideration should be given to whether a new Identification Officer should show the video parade where practicable and after representation from the suspect and his Attorney, especially when there is a delay between recording the image and any showing may take place.
14. The identification officer is responsible for making the appropriate arrangements to make sure, before they see the set of images, that witnesses are not able to communicate with each other

about the case, see any of the images which are to be shown, see, or be reminded of, any photograph or description of the suspect or be given any other indication as to the suspect's identity, or overhear a witness who has already seen the material. There must be no discussion with any witness about the composition of the set of images and a witness must not be told whether a previous witness has made any identification.

15. Only one witness may see the set of images at a time. Immediately before the images are shown, the witness shall be told that the person he saw on a specified earlier occasion may, or may not, appear in the images he will be shown and that if he cannot make a positive identification, he should say so. The witness shall be advised that at any point, he may ask to see a particular part of the set of images or to have a particular image frozen for him to study. Furthermore, it should be pointed out to the witness that there is no limit on how many times he can view the whole set of images or any part of them. However, he must be asked not to make any decision as to whether the person he saw is on the set of images until he has seen the whole set at least twice.
16. Once the witness has seen the whole set of images at least twice and has indicated that he does not want to view the images, or any part of them, again, the witness shall be asked to say whether the individual he saw in person on a specified earlier occasion has been shown and, if so, to identify him by the number of the image. The witness will then be shown that image to confirm the identification.
17. Care must be taken not to direct the witness' attention to any one individual image or give any indication of the suspect's identity. Where a witness has previously made an identification by photographs, or a computerized or artist's composite or similar likeness, the witness must not be reminded of such a photograph or composite likeness once a suspect is available for identification by other means in accordance with this Code. Nor must the witness be reminded of any description of the suspect.
18. After the procedure, each witness shall be asked whether he has seen any broadcast or published films or photographs, or any descriptions of suspects relating to the offence and his reply shall be recorded.

(c) Image Security

19. Arrangements shall be made for all relevant material containing sets of images used for specific identification procedures to be kept securely and their movements accounted for. In particular,

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no-one involved in the investigation shall be permitted to view the material prior to it being shown to any witness.

(d) Documentation

20. A record must be made of all those participating in, or seeing, the set of images whose names are known to the Identification Officer.
21. A record of the conduct of the video identification must be made on forms provided for the purpose. This shall include anything said by the witness about any identifications or the conduct of the procedure and any reasons it was not practicable to comply with any of the provisions of this regulations governing the conduct of video identifications.
22. If any person is asked to leave an identification parade because he is interfering with its conduct, the circumstances shall be recorded.

A summary of the parade must be done in the prescribe booklet.

IDENTIFICATION IN PUBLIC PLACE

This form of identification is good and will be accepted by the courts if it is clear that the identification was perfectly fair to the accused.

There can be no complaints of unfairness if the following simple precautions are taken:-

1. Select a busy thoroughfare or entrance for place of entertainment, etc.
2. Arrange for the witness to be at the suitable point of observation.
3. Do not stand with witness or prompt him once observations have commenced.
4. Remain in the vicinity, but not within speaking distance of the witness.
5. Upon identification, witness may give a prearranged signal or better still, approach suspect and touch him. Not to demeanour and any comment made by suspect.
6. Identification must come entirely from the witness who should have the advantage of viewing the suspect amongst a number of other persons.
7. Endeavour to only use one witness in this method of identification. Keep other witnesses in reserve for a formal identification, if necessary.

GUIDELINES FOR THE USE OF ‘ONE WAY MIRRORS’

- ◆ The Officer or Sub-Officer conducting parade to be briefed before hand by the investigator.

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- ◆ Warn suspect and select persons for parade.
- ◆ If prisoner has no Attorney apply to 131 Tower Street, Legal Aid Clinic (Miss Marva Thompson) Telephone 922-3798 for one. (Written Application – copy in case file)
- ◆ The Attorney-at-law and the Justice of the Peace are to be placed on the witness side of the one way mirror.
- ◆ No one other than the witness, an Attorney and Justice of the Peace are to be on the witness side of the mirror.
- ◆ Suspect person forming parade and Officer or Sub-Officer assisting is to be on the observe side (with number). Each suspect is required to stand under a number.
- ◆ The Officer or Sub-Officer conducting the parade should instruct the witness not whom to identify, but only as to procedure so that the persons on the prisoners side can hear. Any statement by the person conducting the parade should be heard by the person on the prisoners side, e.g. You are to look along the line of men if you should see the person, you should call out the number he is standing under.
- ◆ All lights on observe side to be on.
- ◆ Lights on are off on reserve side.
- ◆ There should be a “slit” in the booth which houses the Officer or Sub-Officer conducting the parade through which the form used on the identification parade is to be slipped for signature by the witness.
- ◆ Writing implements are to be placed on the witness’s side of the one way mirror.
- ◆ Witnesses are to enter through one door and exit through another door so as to prevent communication among witness whilst the parade is in progress.
- ◆ Witnesses should be given numbers and should be called to the parade by those numbers. However, in addition to the numbers each witness’s name should be known to the Officer or Sub-Officer conducting the parade and his assistant.
- ◆ Since the Justice of the Peace is potentially a witness in the possible trial of the prisoners, facilities where possible should be provided for his making notes of the proceedings.
- ◆ If suspect identified (by number) this one should remain and other leave off.
- ◆ The Officer or Sub-Officer conducting the parade should conduct the parade with strict formality and should give no indication of being friendly with either the Justice of the Peace or

the attorney-at-Law chosen by or for him.

- ◆ In all cases the Officer or Sub-Officer conducting parade should write a statement whether or not prisoners are identified.
- ◆ Changing of clothes and covering of scars etc. must only be done at prisoners request, and request will only be granted if it will not defeat the ends of justice.

If these guidelines are followed, no difficulty should be experienced.

Parades using video can be formed where scars or other peculiar marks are present on a suspect. The Identification Officer can either pixel them out or duplicate some and the additional images being used.

UNCOMMON CASES (where video identification is not used)

If suspects have:

ONE EYE: Every members of parade including suspect to wear bandage or eye shield over appropriate eye.

ONE LEG: Stand members of parade behind tables draped in front with some kind of covering, e.g. blankets.

ONE ARM: Each member to slip corresponding arm from jacket and button over.

WEARS SPECTACLES: Foster good relationship with local optician and borrow sufficient spectacles for members forming parade.

IS BALD: Arrange for bald volunteers or have each member hatted.

OUTSTANDING SCAR: Put plaster on each.

SUSPECT REFUSING TO STAND:

- ◆ Carefully explaining position to suspect and possibility of his innocence being established by a parade. Then if he still refuses;
- ◆ Hold an informal parade by filling the room in which suspect is detained with other persons and then introducing witnesses one by one and asking them to make an identification; or
- ◆ Confront suspect with witness and say, “Is this the man?”

ARRANGEMENTS

(i) Well lighted room or passage, preferably or in open but properly guarded from witnesses.

(ii) Room must have at least two doors.

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- (iii) Room big enough to accommodate witnesses away from place where parade is held.
- (iv) Room or area where parade is held should not be overlooked by any window or other means.

TO SUSPECT: Introduce first witness. (Witness to be asked if he knows the purpose he is attending the parade, if not he should be told).

- (i) I would like you to look along this line of persons and see the person (then state facts) e.g. who you saw in your house on the night of February 26, 1965 etc., etc., etc.,
- (ii) Touch the person identified or say what number inline person identified. (see Rule 19 & 20).
- (iii) All questions to be directed to Officer in charge in hearing of all.
- (iv) All request to be made in the hearing of all.

N.B. Have one Officer other than person in charge of case on parade to corroborate what took place on the parade.

- ◆ Everything done or said by Officer in charge of parade to witness should be audible and in the presence and hearing of accused should be noted.
- ◆ All incidents should be reported by the Officer in charge of parade in the notes of the parade.
- ◆ If witness request a suspect to speak then all person on the parade should be made to speak.
- ◆ You should ask accused if he is satisfied with how the parade was conducted, what he says in reply should be taken down in writing.

GENERAL PRINCIPLES IN IDENTIFICATION

In R.V. Turnbull and others (1976 Crime L.R. 565) the Court of Appeal gave guidance as to the matters to be considered in cases where identification is in issue. These matters include: -

1. The length of time the suspect was under observation
2. The distance
3. Visibility
4. Whether the observation was impeded in anyway
5. Had the witness ever seen the accused before?
6. How often? If only occasionally, had he any special reasons for remembering the accused (deformity).
7. How long elapsed between the original observation and the subsequent identification to the

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Police.

8. Was there any material discrepancy between the description of the accused given to the Police by the witness when first seen by them and his actual appearance? (if material discrepancy police to supply to defence).

Part 8

BRIBERY AND CORRUPTION

Definition

The receiving by or the offering to any person in a public office any undue reward in order to influence his behaviour in office, and to incline him to at contrary to the known rules of honesty and integrity.

Interpretation

Public Body means any municipal corporation also any parish council or any other board, commission, or other body which has power to act under or for the purposes of any enactment relating to local government or the public health or to poor law or otherwise to administer money raised by rates in

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pursuance of any public general Act;

Public Office means any office or employment of a person as a member, officer or servant of such public body;

Public Servant means and includes any person in the public service of the Island or, unless the context otherwise requires, in the service of any municipal corporation, parish council, or public body;

Advantages includes any office or dignity, and any forbearance to demand any money, or money's worth or valuable thing and includes any aid, vote, consent, or influence, or pretended aid, vote, consent, or influence, and also includes any promise or procurement of or agreement or endeavour to procure, or the holding out of any expectation of any gift, loan, fee, reward, or advantage as before defined.

Corruption in Office a Misdemeanour

Every person who shall by himself or by or in conjunction with any other person, corruptly solicit or receive, or agree to receive, for himself, or for any other person, any gift, loan, fee, reward or advantage whatever as an inducement to, or reward for, or otherwise on account of any member, officer or servant of a public body doing or forbearing to do anything in respect of any matter or transaction whatsoever, actual or proposed, in which the said public body is concerned shall be guilty of a misdemeanour.

Every person who shall by himself or by or in conjunction with any other person corruptly give, promise or offer any gift, loan, fee, reward or advantage whatsoever to any person, whether for the benefit of that person or of another person, as an inducement to or reward for or otherwise on account of any member, officer, or servant of any public body, doing or forbearing to do anything in respect of any matter or transaction whatsoever, actual or proposed, in which such public body as aforesaid is concerned, shall be guilty of a misdemeanour.

Every person who, being or expecting to be a public servant, accepts or obtains or agrees to accept or attempts to obtain from any person, for himself or for any other person, any gratification whatever other than legal, remuneration as a motive or reward for doing or forbearing to do any official act, or for showing or forbearing to show, in the exercise of his official functions, favours or disfavor to any

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person, or for rendering or attempting to render any service or disservice to any person with the Senate or House of Representatives or Executive Government of Jamaica, or with any public servant as such, shall be guilty of misdemeanour.

In the interpretation and explanation of this section and of the succeeding sections of this part the word ‘gratification’ is not restricted to pecuniary gratification’s or to gratification’s estimable in money, and the words ‘legal remuneration’ are not restricted to the remuneration which a public servant can lawfully demand but includes all remuneration which he is permitted by the Government which he serves to accept, and the words “a motive or reward for so doing” include in their interpretation a person a person who receives a gratification as a motive for doing what he does not intend to do or as a reward for doing what he has not done.

Taking a Gratification in order by Corrupt Illegal means to influence a Public Servant

Every person who accepts or obtains, or agrees to accept or attempts to obtain, from any person, for himself or for any other person, any gratification whatever as a motive or reward for inducing, by corrupt or illegal means, any public servant to do or to forbear to do any official act, or in the exercise of the official functions of such public servant to show favours or disfavour to any person, or to render or attempt to render any service or disservice to any person with the Senate or House of Representatives or the Executive Government of Jamaica or with any public servant as such, shall be guilty of a misdemeanour.

Taking a Gratification for the Exercise of Personal Influence with a Public Servant

Every person who accepts or obtains or agrees to accept or attempts to obtain, from any person, for himself or for any other person, any gratification whatever, as a motive or reward for inducing, by the exercise of personal influence, any public servant to do or to forbear to do any official act, or in the exercise of the official functions of such public servant to show favour or disfavour to any person, or to render or attempt to render any service or disservice to any person with the Senate or House of Representatives or the Executive Government of Jamaica, or with any public servant as such, shall be guilty of a misdemeanour.

Punishment for Abetment by Public Servant

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Every person who, being a public servant, in respect of whom either of the offences defined in sections 5 and 6 is committed, abets the offences, shall be guilty of a misdemeanour.

Penalty for Offences

Any person on conviction for offending as aforesaid shall, at the discretion of the court before which he is convicted

- ◆ Be liable to be imprisoned for any period not exceeding two years, with or without hard labour, or to pay a fine not exceeding one thousand dollars, or to both such imprisonment and such fine; and
- ◆ In addition be liable to be ordered to pay to such body, and in such manner as the court directs, the amount or value of any gift, loan, fee, or reward received by him or any part thereof; and
- ◆ Be liable to be adjudged incapable of being elected or appointed to any public office for seven years from the date of his conviction, and to forfeit any such office held by him at the time of his conviction; and
- ◆ In the event of a second conviction for a like offence he shall, in addition to the foregoing penalties, be liable to be adjudged to be forever, incapable of holding any public office, and to be incapable for seven years of being registered as an elector, or voting at an election either of members to serve in the House of Representatives or of members of any public body, and the enactment for preventing the voting and registration of persons declared by reason of corrupt practices to be incapable of voting shall apply to a person adjudged in pursuance of this section to be capable of voting; and
- ◆ If such person is an officer or servant in the employ of any public body upon such conviction he shall, at the discretion of the court, be liable to forfeit his right and claim to any compensation or pension to which he would otherwise have been entitled.

Savings

Where an offence under this part is also punishable under any other enactment, or at common law, such offence may be prosecuted and punished either under this part, or under the other enactment, or at Common Law, but so that no person shall be punished twice for the same offence.

A person shall not be exempt from punishment under this Act by reason of the invalidity of the appointment or election of a person to a public office.

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Restriction on Prosecution

A prosecution for an offence under this part shall not be instituted except by or with the consent of the Director of Public Prosecution.

Expenses of Prosecution

The expenses of the prosecution of an offence against this part shall be defrayed out of the Consolidated Fund.

Jurisdiction

A Resident Magistrate's Court shall have jurisdiction to inquire of, hear and determine a misdemeanour or offence under this Act and the procedure shall be in accordance with the provisions of any enactment, for the time being in force regulating procedure before Resident Magistrate in the exercise of criminal jurisdiction.

Corruption of Agents

If any agent corruptly accepts or obtains, or agrees to accept or attempts to obtain from any person, for himself or for any other person, any gift or consideration as an inducement or reward for doing or forbearing to do, or for having done or forborne to do, any act in relation to his principal's affairs or business; or for showing or forbearing to show favour or disfavour to any person in relation to his principal's affairs or business; or

If any person corruptly gives, or agrees to give or offers, any gift or consideration to any agent as an inducement or reward for doing or forbearing to do, or for having done or forborne to do, any act in relation to his principal's affairs or business or for showing or forbearing to show favour or disfavour to any person in relation to his principal's affairs or business; or

If any person knowingly gives to any agent, or if any agent knowingly uses with intent to deceive his principal any receipt, account, or other document, in respect of which the principal is interested, and which contains any statement which is false or erroneous or defective in any material particular, and which to his knowledge is intended to mislead the principal, he shall be guilty of a misdemeanour, and shall be liable on conviction on indictment, to imprisonment, with or without hard labour, for a term not

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exceeding two years, or to a fine not exceeding one thousand dollars, or to both such imprisonment and such fine, or on conviction on indictment before a Resident Magistrate to imprisonment, with or without hard labour for a term not exceeding twelve months, or to a fine not exceeding one hundred dollars, or to both such imprisonment and such fine.

'Agent' includes any person employed by or acting for another;

'Consideration' includes valuable consideration of any kinds; and

'Principal' includes an employer

A person serving under the Crown or under any statutory corporation or any Parish Council or the Kingston and St. Andrew Corporation is an agent within the meaning of this section. A prosecution for an offence under this section shall not be instituted without the consent of the Director of Public Prosecutions.

POINTS TO NOTE

G – Gives

O – Offers

A – Agrees to accept

S – Solicits

T – Takes

C – Consideration

A – Advantage

R – Reward

Part 9

ABORTION

Definition

The expulsion of the contents of a pregnant womb, which if attempted or procured by unlawful means constitutes a crime.

Offences

1. Every woman being with child who, with intent to procure her own miscarriage unlawfully:-
 - Administers to herself any poison or other noxious thing, or
 - Uses any instrument on herself, or other means whatsoever, with a like intent, or

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2. Whosoever, with intent to procure the miscarriage of any woman, whether she be or be not with child, unlawfully-
 - administers to her or causes to be taken by her any poison or other noxious thing or, uses any instrument, or other means whatsoever with the like intent

MEANING OF TERMS USED:

INTENT

It is not necessary that an abortion should result, providing the intent is proved.

If the intention of the accused was to procure a miscarriage it is no defence that the instrument of means used could not in fact have procured a miscarriage. Spicer (1955) 39 or App. R. 189.

POISON

Means a poison that is recognized as such, though not necessarily an abortion agent. When a poison is administered in a quantity, which is so small as to be incapable of doing harm, it will still bring the accused within the statute. Cramp (1880) 44 J.P. 411.

NOXIOUS THING

Any substance which is not a recognized poison but which is harmful or injurious either by its nature or the quantity taken. The important question is whether the substance is noxious as taken.

INSTRUMENT

Anything, which is to be used to disturb the contents of the womb.

MEANS WHATSOEVER

Includes the use of any means, internal or external, if intent is proved.

STATUTORY EXCEPTION

A person shall not be guilty of an offence under the law relating to abortion when a pregnancy is terminated by a registered medical practitioner if two registered medical practitioners are of the opinion, formed in good faith:

that the continuance of the pregnancy would involve risk to the life of the pregnant woman, or of injury

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to the physical or mental health of the pregnant woman or any existing children to her family, greater than if the pregnancy was terminated; or
that there is a substantial risk that if the child was born it would suffer from such physical or mental abnormalities as to be seriously handicapped. Abortion Act. 1967, Sec. 1 (1)

Note: Any treatment for the termination of pregnancy must be carried out in a hospital, or in a place for the time being approved for the purposes of this section by the Minister of Health or the Secretary of State.

This shall not apply, however, to the termination of a pregnancy by a registered medical practitioner in a case where he is of the opinion formed in good faith, that the termination is immediately necessary to save the life or to prevent grave permanent injury to the physical or mental health of the pregnant woman. IBID. section 1 (3) and (4)

POWERS TO SEARCH

Search Warrant

A justice of the peace has authority to issue a search warrant, where the suspected offence is an arrestable offence against the Act. The warrant must be executed in the daytime. Offences against the person Act, 1861, Sec. 65.

EVIDENCE

To prove system:

Evidence of the use of instruments with intent to procure an abortion on previous occasions may be admitted to prove intent. Bond (1906)

Evidence of the administration of drugs to other women for the purposes of procuring an abortion may be evidence on a charge of using an instrument for the purpose of procuring an abortion. Starkie (1922) 86 J.P. 74.

ALTERNATIVE VERDICT

Child destruction

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PROCURING DRUGS, ETC., TO CAUSE ABORTION

Whosoever shall unlawfully supply or procure –

Any poison or other noxious thing, or

Instrument of thing whatsoever knowing that the same is intended to be unlawfully used, or employed with intent to procure the miscarriage of any woman whether she be or be not with child. Offences Against the Person Act, 1861, Sec. 59

Note: “Procure” means to get possession (from another person. Mills (196 Crime L.R. 181).

Part 10

KIDNAPPING & ABDUCTION

Kidnapping has been a criminal offence since the 17th Century. It is an offence under Section 70 (1) of the offences against the person act.

It is provided by Section 70 (1) that:

“Any person with intent to hold another against his will for ransom whether by way of money or valuables or any promise to do or refrain from doing anything or any other consideration, or To cause him to be unlawfully sent or transported out of Jamaica against his will or To holds him for service
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against his will shall be guilty of offence of kidnapping and liable to imprisonment for life with or without hard labour”.

Kidnapping is defined by Sub Section (4) of Section 70-

Kidnapping is committed when a person unlawfully either by force or fraud leads or takes away or entices away or detains or secrets any other person so however that the fact that the person in relation to whom the offence is alleged to have been committed, did not resist is not a defence unless the accused proves that the failure to resist was not caused by fraud or by threat, duress, force or exhibition of force. In other words, if you take away a person unlawfully, that is either by force or by fraud or whether you achieve that by any decoy or entice him away or detain or secrete him, the fact that the person did not resist is no defence unless you can show that the lack of resistance did not stem from fraud, threat, force, or duress.

Normally we hear of cases where a person is held against his will or usually somebody is secreted somewhere for a ransom. This seems to be the most common purpose for kidnapping. A request is made for payment of some valuables, whether of money as the law defines or whether for promise, to ensure the release of the person. In this respect, it is closely aligned to the offence of blackmail because when persons are held or kidnapped, usually what follows is a demand. Whenever certain conditions are not met, then certain consequences will flow.

As you can see from the Act itself, the offence is a very serious one. It is a Felony and it can be visited with imprisonment for life with or without hard labour.

In addition, the act makes conspiring to commit the offence punishable as a misdemeanour with imprisonment for ten (10) years with or without hard labour. If one should consult or encourage or persuade or endeavour to persuade another to commit the offence such conduct would also lead to the offence punishable under Section 72 of the Act as a misdemeanour and attracts a sentence of ten years with or without hard labour.

When it comes to kidnapping a child, if the child is under the age of 14 years, any action shall be deemed to be against the will of the child if it is against the will of the parent guardian. In other words, the child has no will of its own. The will of the child is referable back to the will of the parent, guardian or any other person having the care or welfare of the child.

There is, of course, another aspect of kidnapping because these days we have situations where the high

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jacking of aircrafts is a form of kidnapping. It is only that this one is air-borne and a special name is applied to it because it attracts certain form of punishment and there are certain requirements with respect to it concerning trial procedures – questions of jurisdiction and so on and it is also a part of the international convention to which Jamaica is a signatory.

Kidnapping is an extraditable offence.

It is interesting to note that in the treaty between the United States and Britain to which Jamaica succeeded and which still exists as the extradition treaty between the two countries that false imprisonment is aligned to kidnapping because imprisonment is a form of kidnapping. In both offences it is the detention of a person against his will. In respect of kidnapping, it is taken one step further where a condition is attached – the condition for release, whether that condition is a ransom, valuables, the consideration of a promise, money is attached to it whereas it is not necessarily so in the case of false imprisonment. Any action, which has attached to it a condition for the release of a person unlawfully detained.

The nature of the offence of kidnapping according to the latest House of Lords decision in 1984 considering present day circumstances and conditions lead to the emergence of six features:

- ◆ The nature of the offence is the attack on and the infringement of the personal liberty of the individual.
 - ◆ The offences itself contains four ingredients which you must always look for in your investigations.
 - a) The taking or carrying away of the person by another
 - b) By force or fraud
 - c) Without the consent of the person so taken or carried away and
 - d) Without lawful excuse
 - ◆ Formerly it was categorized by Common Law as a misdemeanour. Now, under the offences against the Person act. In Jamaica, it is categorized as a felony.
 - ◆ Despite that, kidnapping was always regarded by reason of its nature as a grave and heinous offence.
 - ◆ In earlier days, the offence contained the further ingredient, namely, that the taking or carrying away should be from a place within the jurisdiction to another place outside it. This further
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ingredient has, however, been long made obsolete.

- ◆ The offence was in former days described not merely by taking or carrying away but there was a further alternative, that of secreting him. This element of secretion has however also become obsolete so that although it may be present in a particular case, it adds nothing to the basic ingredients of taking or carrying away.

In relation to the kidnapping of cases it is the evidence of the child's consent which is material whatever the age of the child. In the case of a very young child, the child will not have the understanding or intelligence to give its consent so that the evidence of consent will be necessary inference from the child's age.

In the case of an older child, it must be a question of fact for the jury where the child is concerned, that is, a child under 14, had sufficient understanding and intelligence to give its consent.

While the absence of a person having custody or care and control of a child is not material to the third ingredient, at common law, the giving of consent by such person might be very relevant to the fourth ingredient, which is the giving of consent.

On the question of the giving of consent, the question of whether or not there was lawful excuse might arise and defining on the circumstances, it might well support a defence of lawful excuse.

It must be pointed out that no fiat from the Director of Public Prosecutions is required.

The offence of kidnapping may be committed by husband on his wife if he treats her with hostile force and that force results in carrying her away from the place where she wishes to remain, the fact that at the time of the offence they were cohabiting is immaterial. The offence is committed when the victim is seized and carried away against her will.

On a charge of kidnapping the prosecutor does not have to prove that the kidnapper carried the victim to the place he intended but has to prove his deprivation of the victim's liberty and the carrying away from the place where the victim wished to be.

Example: A 17 year old girl was carried away by a kidnapper by fraud or some trick. She was carried some 100 yards and put into a car which, shortly after, she was rescued. The car remained.

Stationary. This was held to be kidnapping because she did not wish to be in that place.

In addition to the four ingredients I have enumerated there is also the ingredient of the demand of a ransom, which may be by way of money, valuables, promise or any other consideration.

In our jurisdiction here in Jamaica we have statutory extensions to cover situations, which would arise say under (b) and (c) of Section 70 (1) (a)

To cause a person to be unlawfully sent or transported out of Jamaica against his will and

To hold him for service against his will. Holding for service is also a form of kidnapping, example, where a person takes another to the house of ‘A’ and instructs him to call out ‘A’ as if that person really wanted ‘A’ causing ‘A’ to open his door and come out and is thereby held against his will.

Again, if a person is sent out of Jamaica say to the United States and this is not done by way of extradition proceedings or deportation by the Immigration Department that is kidnapping.

Where you find that there is information against a foreign national in your country, which indicates or would lead to the view that the foreigner is wanted for the commission of a crime in the foreign country, therefore to transport that person or send that person out of Jamaica requires action under the Extradition Act or the Immigration Act. Any action taken outside of these two Acts would seem to fall within (B) of Section 70, “To cause him to be unlawfully sent or transported out of Jamaica against his will.”

That is why in extradition cases persons who are held sometimes have the option to say, I am willing to go back, therefore is no need for extradition proceedings and so if you send him back, he having expresses his willingness so to do, there is no kidnapping.

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ABDUCTION AND PROCURATION

Section 55

“Where any woman of any age should have any interest, whether legal or equitable, present or future, absolute, conditional, or contingent in any real or personal estate, or shall be presumptive heiress, or co heiress or presumptive next of kin, or one of the presumptive next of kin, to anyone having such interest, whoever shall from motives of lucre, take away or detain such woman against her will, with intent to marry or carnally know her, or to cause her to be married or carnally known by any other person, and whosoever shall fraudulently allure, take away, or detain such woman, being under the age of eighteen years, out of the possession, and against the will of her father or mother, or of any other person having the lawful care or charge of her, with intent to marry or carnally know her, or cause her to be married or carnally known by any other person, shall be guilty of felony, and being convicted thereof, shall be liable to be imprisoned for a term not exceeding fourteen years, with or without hard labour;

NOTE: Any person convicted under the section cannot take any estate or interest in any real or personal property of such woman.

The section seems to deal with an offence committed two ways against two categories of women.

1. Any woman of any age.

In this case the person accused must be proved to have taken or detain such woman against her will with intent to marry or carnally know her or cause her to be married or carnally known by some other man.

2. Any woman under 18 years:

The difference between the two categories seems to be that in the former it need not be proved that the woman was taken or detain out of the possession and against the will of her parents or guardian while in the latter case the girl is under 18 years and it must be proved that the father, mother or person having lawful charge of her did not give consent.

Presumably the woman over 18 would have the right to consent while in the girl under 18, the right

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resides in her parents or guardian. Further in respect to the girl under 18, the section refers to (not just take or detain) but fraudulently allure, take away or detain. This suggests that even a consent from the girl is not enough as long as the consent of the parents or guardian was not given.

NOTE: The offence in either case is a felony.

FORCIBLE ABDUCTION OF ANY WOMAN

Section 56

Whosoever shall by force take away or detain against her will any woman of any age with intent to marry or carnally know her or to cause her to be married or carnally know by any other person shall be guilty of felony.

The offence under this section may be committed against any woman of any age. The section requires the accused to have used force to take the woman against her will or to detain her by force against her will. The intent must be to marry or carnally know by any other person.

It is not necessary for the accused to have intended to himself marry or carnally know the woman. It is enough that he used force to take her or to detain her.

It is not necessary to prove that the accused intended a permanent deprivation. Taking is complete if the woman is held for even a day or hour.

ABDUCTION OF GIRL UNDER 18

Section 60

Any person who with intent that any unmarried girl under the age of 18 years should be unlawfully and carnally known by any man, whether such carnal knowledge is intended to be with any particular man or generally, takes or causes to be taken, such girl out of the possession and against the will of her parents or any other person having lawful care or charge of her shall be guilty of misdemeanour.

EVIDENCE

The girl must be unmarried and under 18 years.

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That the girl was taken out of the possession of her parents against their will or the will of any person having custody of her.

That she was taken with intent that she shall have unlawful sexual intercourse with any man.

NOTE: It is no defence if the girl consented to go with the accused “Takes” include where the girl voluntarily goes along with accused.

DEFENCE It is a defence if accused had reasonable cause to believe that the girl was of or above the age of 18 years.

ABDUCTION OF GIRL UNDER 16

Section 57

Whosoever shall unlawfully take or cause to be taken any unmarried girl being under 16, out of the possession and against the will of her parents or any other person having lawful care or charge of her shall be guilty of misdemeanour.

EVIDENCE

The girl must be unmarried;

She must be under 16;

She must have been taken out of the possession and against the will of her parents or guardian and; there need not be any sexual motive.

NOTE: It is no defence that the accused believed the girl to be over 16 years.

However it must be proved that he know she was in the possession of her parents or guardian.
(R.v.Hibbert.)

PROCURATION

Procurement of girls under 18 (Section 58)

Any person who procures or attempts to procure: -

- a) Any female under 18 years of age, not being a Common Prostitute or of known immoral character, to have unlawful carnal knowledge with any other person or persons;

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- b) Any female to become a Common Prostitute;
- c) Any female to leave the Island with intent, she shall become a prostitute, or any inmate of or frequent a brothel elsewhere;
- d) Any female to leave her usual place of abode in this island, such place not being a brothel, with intent that she may for the purposes of prostitution become an inmate, of a brothel within or outside the island (misdemeanour)

PROCURING DEFILEMENT BY THREATS

Section 59

- a) Any person who by threats or intimidation procures or attempts to procure any female to have unlawful carnal knowledge;
- b) Any person who by false pretences or false representation, procures any woman or girl not being a common prostitute to have unlawful carnal connection either within or without this Island or;
- c) Any person who applies, administer to or causes to be taken by any woman or girl any drug matter or thing with intent to stupefy or over power so as thereby enable any person to have unlawful carnal connection with such woman or girl or;
- d) Has or attempts to have unlawful carnal connection with any woman or girl when partially or entirely stupefied or over powered as afore said (misdemeanour).

DETENTION OF WOMEN IN BROTHEL

Section 61

Any person who detains a female against her will: -

1. In any premises with intent that she may be unlawfully or carnally known or
2. In any brothel: shall be guilty of a misdemeanour.

NOTE: Where a woman is on the premises for the purpose of having any unlawful carnal connection or is in any brothel, a person shall be deemed to detain such woman or girl, if with intent to compel or induce her to remain, such person withholds any wearing apparel or other property belonging to her

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or where any apparel has been lent or supplied to her, such person threatened her with legal proceedings if she leaves with them.

No legal proceedings (civil or criminal) shall be taken against any such woman or girl for taking away or being found in possession of such wearing apparel.

ENCOURAGING PROSTITUTION OF GIRLS UNDER 14 YEARS (SECTION 64)

Any person having custody of girl under 14 years, causes or encourages the: -

- a) Seduction, or
- b) Unlawful carnal knowledge
- c) Prostitution of, or
- d) Commission of an Indecent Assault upon her, commits an offence. Misdemeanour – 2 years.

If person knowing allows girl to be in company with (consort) or to be in employment of any prostitute or person of known immoral character, shall be deemed to have encouraged unlawful carnal knowledge etc. shall be deemed to have cause or encouraged.

HOUSE HOLDER ENCOURAGING DEFILEMENT OF GIRLS SEC. 51

Any person being the owner or occupier of any premises, or assisting in the management thereof, who induces or knowingly allows any girl to be in such premises for the purpose or being unlawfully and carnally known, commits –

Felony, if girl is under 12 years;

Misdemeanour, if girl is 12 and under 14.

To think that girl is over 14 years is no defence, unless accused is 23 years or under, on the first occasion on which he is charged.

N.B. Necessary to prove purpose not actual intercourse.

EXPLANATION OF TERMS USED

COMMON PROSTITUTE: Means a woman who offers her body commonly for acts of lewdness for payment, not necessarily sexual intercourse.

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BROTHEL: Means a room, or set of rooms or house, maintained for the purpose of prostitution. An address must be used by two or more prostitutes before it can be termed a brothel.

UNLAWFUL SEXUAL INTERCOURSE: Means any sexual intercourse outside matrimony.

PROCURE: There must be some real procuration, and this may be negative by evidence which shows that the girl was not really procured, as she needed no procuration at all and acted of her own free will. (A. v. Christian reported at page 2950. Arch.)

N.B. No offence is committed by a man who tries to persuade a woman to consent to intercourse with him.

In respects to offences under Section 59, it must be proved that sexual intercourse actually takes place. Persuading a girl to agree to have intercourse and to accompany a man for that purpose is not “procuring” if intercourse does not take place. However, it will be an attempt. (Johnson 1963 Crim. L. R. 860).

Procurement involves some persuasion or invitation and the offence is complete only when intercourse takes place.

CORROBATION

A person may not be convicted for any offence under section 58 and 59 on the evidence of one witness unless be corroborated in some material particular implicating the accused.

POLICE POWERS

POWER OF SEARCH SEC. 62

On information on oath made before a J.P. by any person, who in the opinion of the Justice, is acting in the interest of any female, that a woman is unlawfully detained for immoral purposes, may issue a warrant to search premises, and remove person to place of safety by Inspector who may be accompanied by informant unless J.P. directs otherwise. To be executed also by Superintendent or Assistant Superintendent accompanied by parent, relative or guardian.

DETAINED FOR IMMORAL PURPOSES UNDER THESE CONDITIONS:

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Special mention as to ages under this section:

- a) Under 14 years – consent immaterial;
- b) If 14 years and under 18, and detained against her will or against will of father, mother or person having lawful care. 18 years and over and against her will.

POWER OF ARREST SEC. 58.

Any member of the Force above the rank of Corporal may arrest without warrant any person reasonably suspected of having committed or attempting to commit any offence against this Sub-Section (1).

Part 11

ASSAULTS

Definition: An assault is an attempt or offer by force or violence to do bodily harm to another when the aggressor by some physical act, intentionally causes the other to believe that such force is about to be inflicted upon him. It is a misdemeanour at Common Law.

BATTERY

Definition: Battery is the actual application of unlawful force to another and any hostile touching, no

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matter how slight is battery.

N.B. In practice attempt or offer to do injury to another as well as the actual application of force is regarded as an assault.

CLASSIFICATION

1. EXCUSABLE ASSAULT:

Is when an assault is committed by misadventure or accident. The intention to assault is material as an accidental injury does not amount to an assault in the criminal sense e.g. – A man steps on another foot while standing in a queue.

2. JUSTIFIABLE ASSAULT:

Is when no blame is attached to the person committing the assault e.g. Police arresting a prisoner or striking a violent prisoner.

- a) Self-defence of one's property.
- b) Authority of law e.g. whipping.
- c) Mutual consent – Boxing or wrestling
- d) Moderate Correction of a child, by parent, teacher or guardian.

NOTE: If assault is not excusable or justifiable it is unlawful.

UNLAWFUL ASSAULTS

Is an offence and provisions are made for under the offence against the person Law Chapter 268 and at Common Law.

TYPES OF UNLAWFUL ASSAULTS:

Common Assault

- Is an assault of a minor nature in which no wound or serious injury is inflicted, and is usually dealt with on the complaint of the person assaulted e.g.
 - o Spitting on another person.
 - o Pushing another person
 - o Pointing finger in one's face.

POLICE POWERS

Any Constable may arrest for common assault provided the offence was committed in his view and the person assaulted gives the offender in custody and goes to the Police Station and swears to an information, but the Constable should only arrest if a further breach of the peace but should obtain the name and address of the offender and advise civil action.

AGGRAVATED ASSAULT:

Is an assault accompanied by circumstances of an aggravated nature committed on a female or a boy under the age of 14 years e.g.

- Mr. Brown punched Tom who is 10 years old.
- Sam punched Gloria in her chest.

POLICE ACTION OR POWERS:

A Constable may arrest any person charged by another with having committed an aggravated assault if he has good reason to believe such an assault has been committed although not in his view, and there is no time to obtain a warrant. If in his view he should arrest.

ASSAULT OCCASIONING ACTUAL BODILY HARM:

This is an assault accompanied by injury, e.g. Fracture, Burning (slight).

ASSAULT CAUSING GRIEVOUS BODILY HARM

This assault includes any injury which seriously interferes with health or comfort e.g. maiming, disfiguring – (causing permanent injury) as rubbing pepper in one's eye throwing acid in one's face.

POLICE POWERS

A Constable may arrest on view, information or warrant.

Definition:-

Maiming means to injure a person in any manner, which renders him less capable of fighting.

Definition:-

Disfigure means to mar the figure, appearance or beauty, to deform or deface.

INDECENT ASSAULT:

This is an assault accompanied by some act of indecency or an indecent assault upon a female, or any attempt to have carnal knowledge of a girl under the age of 14 years, or mentally defective.

N.B. In the case of a mentally, defective or a girl under 14 years of age, it is no defence to prove that she consented to the act of indecency (2 years with flogging).

POLICE POWERS:

A Constable may arrest on view, information or warrant.

ASSAULT AT COMMON LAW:

This is an attempt or offer by use of a firearm or any dangerous weapon within striking distance to do bodily injury to another e.g..

1. Pointing a gun at another person.
2. Stabbing at another with a knife.

POLICE POWERS

Any Constable may arrest if the offence was committed in his view, or if a breach of the peace is likely to be occasioned or renewed.

ASSAULT ON POLICE:

This includes District Constable, Special Constable, and Special District Constables and are punishable on indictment or summary conviction.

Note: The assault must be committed on the Constable in the actual execution of his duty.

OTHER ASSAULTS:

- 1) Assaulting a Clergyman in the performance of his duty by threats of force.
- 2) Striking a Magistrate when he is preserving any vessel in distress or the goods or effects stranded or cast ashore from such vessel.
- 3) Unlawfully and with force hindering any seaman or person working on board any vessel from working at his trade.
- 4) Using violence to deter a person from buying or selling.

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- 5) Assault with intent to commit felony (Sec. 36).

Part 12

CONSPIRACY

Definition: A Conspiracy is an agreement with at least one other person to pursue a course of conduct which if carried out in accordance with their intentions either;

- (a) Will necessarily amount to or involve the commission of any offence by one or more of the parties to the agreement or;
- (b) Would do so but for the existence of facts, which render the commission of the offence or any of the

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offences impossible.

The most important word in this definition is Agreement. If there is no agreement then there is no Conspiracy.

POINTS TO PROVE:

1. The Agreement
2. Must be with at least one other person
3. To pursue a course of conduct which would lead to the Commission of any offence

WARBURTON 1870 35 J.P. 116

A husband and wife cannot alone be found guilty of Conspiracy. They must be found guilty of conspiracy with other persons.

1 Hawk C72 S 8

A Conspiracy may exist between persons who have never seen each other or corresponded with each other. Meyrick Ribuffi (1992 21 Criminal Appeal Report 94.

To contribute the offence of Conspiracy, what occurs must pass beyond the sphere of negotiation or intention, and become a matter of agreement, Walker 1962 Criminal Report 458.

If two (2) persons; are jointly charged with conspiracy, both must be acquitted or both convicted. Manning (1883) 48 J.P. 536. Unless they are also charged with conspiracy with persons unknown.

One person may be convicted alone if charged with another person who is unknown, not in custody, dead or whose trial has been postponed. Plummer (1902 66 J.P. 647 affirmed in Doyle (1962 Criminal LR37. However, a conviction for conspiracy of a person who pleads guilty does not have to be squashed if only one other person is charged with the conspiracy and is subsequently tried and acquitted: DPP vs. Shannon the time, 19th June, 1974.

An act or statement of one Conspirator in furtherance of the common design is evidence against all. Blake (1844) 8 J.P. 596.

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STATUTORY CONSPIRACY:

Indictable Conspiracy is a Common Law Misdemeanour with the following:-

- a) Conspiracy to cause dangerous explosion: Felony, punishable with twenty (20) years imprisonment (Malicious Damage to property Law Chapter 124.
- b) Conspiracy to Fraudulently induce persons to invest money (Misdemeanour) punishable with 7 years imprisonment (Larceny Law Chapter 212).
- c) Conspiracy to Murder (Misdemeanour punishable with ten (10) years imprisonment (Sect. 4 of Offence against the Person Law Chapter 268.
- d) Conspiracy to commit an insurrection Rebellion: Sec. 4 of Chapter 390.

PUNISHMENT:

There is no fixed punishment in respect of Common Law Conspiracy. In R.V. Morris (1951) 180 340, the Criminal Court of Appeal stated that the reasons which had led Courts to confine sentences for Common law Misdemeanours to two (2) years imprisonment no longer operate, and that a Court could fine or imprison at its discretion provided that sentences were not excessive.

AGREEMENT:

Mere intention is not sufficient. So long as the Common design or combining rest in intention only, it is not indictable. Lord Chelmsford once defined agreement as “An act in advancement of the intention which each person, in the conspiracy has conceived in his mind.” The offence is complete as soon as the agreement is made no further act or acts towards the common purpose is necessary.

It may be made in words, writing, and gestures or merely be a tacit understanding between the parties concerned. In an action (civil) for Conspiracy, it may be proved that the aggrieved party has suffered personal injury or damage to his property.

OFFENCES:

1. CONSPIRACY TO COMMIT ANY OFFENCE PUNISHABLE AT LAW:

- a) It is immaterial that the Offence agreed upon is one which one of conspirators could not singly commit. Thus a woman who believing herself to be but not fact, pregnant, conspires with another is liable to be convicted for conspiracy to produce her own abortion. Whitchurch (1890) 54 J.P. 472.
- b) Conspiracy to corrupt public Morals. Shaw vs. D.P.P. (1961) Criminal LR.488 Knulier

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(Publishing) vs. D.P.P. 1972 2 ALL E.R. 898.

2. CONSPIRACY TO CHEAT AND DEFRAUD:

Example:

- a) Conspiracy by false and fraudulent representations that a horse bought by one of the prisoners from the prosecutor was unsound, to induce him to accept a less sum for the horse, than the agreed price.

Carlisle 1854 18 J.P. 280. Deceit is not a necessary ingredient of this Offence. The offence may be committed where persons agree to cause economic loss to private individual by dishonest means, and dishonesty of any kind is sufficient. Scott 1975 Crim. L.R. 94.

- b) Conspiracy to injure individuals by wrongful acts otherwise than fraud.
- c) Conspiracy by Police Officers and other to act contrary to their public duty by not bringing persons before the Courts or by warning persons of charges that were going to be brought. Hammersly and others (1958) Crim. L.R. 470.

Part 13

HOMICIDE

Homicide: Is the killing of a Human Being by a Human Being. The killing may be lawful or unlawful. If it is unlawful it may be murder, manslaughter or infanticide.

Before any question of a person's liability for Homicide can arise it must be established:

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1. That the person killed was a Human Being, i.e. if a newly born child that is, it had an existence independent of its mother at the time it was killed.
2. That the person killed was within the Queen's Peace thus excluding the killing of the Queen's enemies in time of war.
3. That the death of the deceased was caused by the conduct of the accused and occurred within not more than a year and a day of the act or omission by which it is alleged to have been caused.

LAWFUL HOMICIDE: A Homicide is lawful, if it is committed: -

1. Where a Criminal is executed in accordance with his sentence.
2. Where an Officer of the Law, whilst performing his duty has of necessity to kill a person who is resisting or preventing him in the execution of his duty.
3. Where it is committed to prevent a forcible and atrocious crime such as murder or rape etc.
4. By misadventure, i.e. Death resulting from an act done without negligence. E.g. where a person by accident without any intent or harm whilst doing a lawful act in the proper manner.
5. Self Defence: In defending oneself against violence one need not take to his heels, but must demonstrate by his action that he does not want to fight and perhaps make some physical withdrawal. When action such as this has been demonstrated resort may be made to violence against attack. Should such violence result in the death of the assailant, the Homicide is excusable.

N.B. The difference between murder and other homicides is that the former must be with malice afore thought.

Unlawful Homicides (Murder, manslaughter, infanticide, causing death by dangerous driving.)

Murder: (Felony) Murder is where a person of sound memory and discretion unlawfully killeth any reasonable creature in being and under the Queen's Peace with malice afore thought either expressed or implied, death following within a year and a day.

MEANING OF TERMS:

Person of sound memory and discretion:

Does not include children under twelve years old, idiots, imbeciles and lunatics. A person who is abnormal, suffering from diminished responsibilities shall not be convicted for murder, but may be convicted for manslaughter.

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The police should provide the prosecution of all available information about an accused mental condition for the following reasons:-

- The accused without due merit avail himself of a defence of these lines.
- The prosecution shall not unduly resist a clearly proper defence.

Information to cover this subject can only be found after investigation, hence the Police must know the main principles of defences: -

- Every person is presumed to be sane.
- A person under 10 years is of insufficient discretion. Sect. 16(1) C & Y.P. Act 1963.
- A person of 10 years but under 14 years is likewise, but discretion may be proved. Common Law.

UNLAWFULLY KILLETH: When one kills another without justification. It must be proved that the act or omission caused the death of the person within a year and a day of such act.

It is necessary to note that the real guilty conduct (*Actus Reus*) of murder is the actual death of the victim and not the means, (e.g. stabbing, strangling) used to cause death.

This necessity arises only where a child, having lived independently of its mother, dies from deliberate injuries received before it so lived. Since the child was a 'reasonable creature in being' when the death occurred. (Although when the means were used it was not) the killing amounts to Homicide. Had the child died before it lived independently the offence would have been child destruction.

Cause of death- Death following normal treatment employed to deal with a wrongful injury may be regarded as caused by that injury, but that some principle does not apply where treatment employed is abnormal.

Where death occurred at an interval after an attack, if the original wound is still and operating and substantial cause by death, albeit that some other cause is operating.

The significance of the necessity of tracing the death of the victim to be a capable act of the accused again is, related to statements and the tracing of witnesses.

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REASONABLE CREATURE IN BEING:

Means a Human Being with an independent circulation, even though he is in its lowest stage of development both physically and mentally. It lives independently once it is fully expelled from its mother's womb and is alive, the umbilical coil needs not have been broken.

UNDER THE QUEEN'S PEACE:

Every British subject takes with him the Queen's Peace wherever he goes in relation to killing. Except in a lawful act of war, a killing by him will always be of a person under the Queen's Peace.

WITH MALICE AFORE THOUGHT:

Malice is the essence of murder and may be defined as "Foresight Death" would or might be caused. It may be expressed or implied.

Express Malice:- An intention to kill or to cause grievous bodily harm. It is the work of a deliberate mind and formed design. (e.g. Lying in wait, previous threat to kill or injure)

The following intentions prove:

EXPRESS MALICE

- Intention to kill the person who was in fact killed.
- Intention to kill a particular person, but not the one who was killed. (e.g. A shoots at B intending to kill him, misses and kills C)

TRANSFERRED MALICE.

- Intention to kill without selecting any particular individual as the victim i.e. UNIVERSAL MALICE e.g. (A bomb thrown in a crowd).
- Intention to cause grievous bodily harm, but not to kill, by an act resulting in death.

IMPLIED MALICE

Where not expressed or openly indicated the law will imply malice if death occurs as a result of an intentional and unprovoked act on the part of the accused. In other words the law will imply the malice required for murder in such an Act where it is not possible to prove expression of malice.

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(Circumstantial Evidence). i.e. An intention to do something. Unlawful to any person for seeing that death or grievous bodily harm is natural and probably result or to do any willful act foreseeing that death or grievous bodily harm is highly probable.

DEATH OCCURRING WITHIN A YEAR AND A DAY:

When a person sustains an injury and dies of that injury after a year and a day has elapsed, the law presumes that such injury was not the cause of death.

R v Dyson 1908

N.B. Where a person has been charged and convicted of a wounding or of any Assault without such period the assailant may be charged, convicted and sentenced for the killing.

POINTS TO PROVE MURDER

- That some definite person is dead
- That death took place within a year and a day from the Commission of the fatal act.
- That death was otherwise than in the course of nature.
- By whom death caused or accelerated.
- That it was caused by the felonious act or omission of the accused with malice afore thought.

PUNISHMENT (Amendment Act 1992)

Murder is classified in Jamaica as follows, Capital and Non-Capital. The punishment for capital murder is death, by hanging whilst the punishment for non-capital murder is Life Imprisonment.

ATTEMPT TO MURDER

Every person who with intent to commit murder:-

- Administers poison, wounds, causes grievous bodily harm to any person.
- Destroy or damages any building.
- Sets fire to any ship, destroys any ship with intent to murder.
- By other means attempting to commit murder.

MANSLAUGHTER

Is the unlawful and felonious killing of another without murderous malice. It may either be voluntary or Prepared by JCF Reform and Modernization Programme / Strategy Policy and Plans Branch 2007 - 2008

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involuntary.

VOLUNTARY – Those unlawful killing in respect of which there would be a conviction for murder but for -:

- The diminished responsibility of the accused.
- The presence of provocation by things done and or things said which caused a person to lose his self-control.
- The killing being in pursuance of a suicide pact.

INVOLUNTARY – Those unlawful killings in which death is unintentionally caused:

- By an unlawful Act involving an obvious risk of some bodily harm, e.g. Criminal abortion, excessive punishment of a child.
- By failure to perform such legal duty, such failure involving an obvious risk of some bodily harm e.g. neglect to provide food and necessities for a child or infirm person.
- In the course of doing a lawful act e.g. driving a motor vehicle or pointing a firearm at someone in fun with utter recklessness.

N.B. The way in which a person reacts should be proportionate to the provocation offered, Fist vs. deadly weapon. Provocation must be something, which come but suddenly. The time factor should always be considered and the mode of retaliation.

PROVOCATION: Is therefore no excuse if: -

- There is any evidence of any old grudge or previous quarrel so that the killing was consequent of former malice and not of provocation.
- If after the provocation there has been sufficient time for the blood to cool off and for reason to resume its seat, before the mortal wound was given, so that the killing denoted neither the presence of judgement, and reason than of violence and ungovernable passion.

Where sufficient time has elapsed so as to prevent the provocation being recent is a question for the judge.

DIMINISHED RESPONSIBILITY

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The onus is on the defence to prove diminished responsibility. Where a person kills or is party to the killing of another he shall not be convicted of murder. If he was found suffering from such development of the mind or any inherent causes or induced by disease or injury or substantially impaired his mental responsibility for his acts or omissions in doing or being a part to the killing.

Diminished responsibility is abnormality of the mind of a lesser degree than that of insanity, which is a matter for the defence only and if successful, will lead to a conviction of manslaughter when charged with murder.

But a successful defence of this nature by one party shall not affect the Liability of other parties to the killing to be convicted of murder.

POINTS TO PROVE

1. That some definite person is dead
2. That death is due to unnatural cause
3. By whom death was caused
4. That the cause of death was due to: -
 - a. A criminal act or
 - b. Omitting to do some act which should legally have been done, or
 - c. By doing some act, which was quite legal, but with wicked negligence is required not mere lack of care.

McNAGHTEN'S RULE

It must be clearly proven at the time of committing the act the accused was labouring under such defect of reason from disease of the mind, and he did not know the nature of the quality of his acts, or if he did know, he did not know that what he was doing was wrong.

SUICIDE PACT

Means a common agreement between two or more persons, having for its object the death by all of them, whether or not each is to take his own life, but nothing done in pursuance of the pact, unless it is done while he has settled intention of dying in pursuance of the pact.

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1. The surviving member of a Suicide Pact – If he killed the other or was a party to the other person being killed by a third person shall be guilty of manslaughter and not murder (Sect. 4)

BUT

2. This matter of defence; where the surviving member of a Suicide Pact killed or was a party to the killing of another, he would be charged with MURDER.
3. That essential point to be established by the defence is that the act was done by the accused in pursuance of the pact was performed whilst he himself had settled intention of dying.

It will be seen therefore from this that the survivor of a Suicide Pact between two people, where the survivor did not kill the other does not come within the provision of Section 4.

However, whilst it is not an offence to attempt to commit suicide the liability for complicity in another suicide or attempts suicide is provided for by Section 2 of the Suicide act 1961.

Sub-section 1 – A person who aids, counsels or procures the suicide of another, or an attempt by another to commit suicide, shall be liable to imprisonment for a term not exceeding 14 years.

Sub-section 2 – This offence can be an alternative to murder or manslaughter.

N.B. No prosecution should be instituted without the consent of the Director of Public Prosecutions.

Example:-

- a) Jones and Smith agree to commit suicide, Jones shoots Smith and tries to shoot himself, but is stopped before he can do so. He pleads a defence under Section 4, Guilty of Voluntary Manslaughter.
- b) Jones, Smith and Green agree to commit suicide. Jones shoots and kills Smith then himself. Green loses his nerve and is unable to shoot himself. Charged with the murder of Smith being a party to the killing of Smith by a third person. Jones may plead defence under Section 4.
- c) Two men agree to commit suicide by person. Each goes to his separate home and takes poison. One dies the other recovers. Survivor cannot be charged with murder because he did not by his own hand kill or was the other killed by a third party.

Charge: Aid, abet etc. the other to commit suicide, Section 2 of Suicide Act 1961.

CAUSING DEATH BY DANGEROUS DRIVING

Causing death of another person by the driving of a motor vehicle on a road recklessly, or at a speed or

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in a manner which is dangerous to the public, having regard to all circumstances of the case, including the nature, condition and use of the road, and amount of traffic which is actually at the time or which might reasonably expected to be on the road.

N.B. This offence was created because of the reluctance of Juries to convict of manslaughter in motor vehicle accident cases, but it remains possible to charge the accused with manslaughter in appropriate cases.

The issue for the Jury on the question of dangerous driving whether or not under the circumstances prevailing at the time, the accused was driving in the manner which involved danger to other road users.

The dangerous driving must be substantial though not necessarily the sole cause of death. Hennigan (1971) 55 Criminal App. R. 262.

INFANTICIDE

Where a woman by any willful act or omission causes the death of her child, being born under the age of 12 months in circumstances which Prima Facie amount to murder, but at the time of such act or omission the balance of her mind was disturbed by reason of her not having fully recovered from the effects of giving birth to the child or by reason of lactation (Breast Feeding) consequent upon the birth of the child. She is guilty of infanticide an offence punishable in the same way as manslaughter.

POINTS TO PROVE

1. That the accused was the mother of the child.
2. The age of the child.
3. That the balance of her mind was disturbed at the time of the act or omission.
4. The willful act or omission.
5. The cause of death.

COMMON CAUSES OF DEATH

Suffocation - hand or pillow

Strangulation - hand or ligature

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Drown in lavatory or bedpan

Blunt instrument - usually in the head

CONCEALMENT OF BIRTH

This crime is the SECRET disposition of the DEAD BODY of a child in an endeavour to conceal the birth there of, whether such child died before, at, or after the birth.

POINTS TO PROVE

- Birth and identity of body
- Secret disposition after death. Test of this is the probability of the body being found; *child had reached such a state of maturity that it might have been born alive.*

OTHER FACTORS TO NOTE

1. Identity of person delivered of child.
2. Examine body wrappings.
3. Interrogate any suspect.
4. Medical Examination of mother only with her consent.
5. Can be committed by any person all concerned are principals.
6. Proof of viability is matter of Medical Witness.
7. On charge of murder of child, Jury may return verdict of NOT GUILTY but on evidence of concealment may convict.

Part 14

FIREARMS ACT

Introduction

The purpose of the Firearms Act is to regulate and control the importation, exportation, manufacture, possession and use of firearms and ammunitions.

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Definitions:

Firearm: means any lethal barreled weapon from which a shot, bullet or other missiles can be discharged. It also included any restricted weapons; any component part or accessory to any such weapons design or adapted to diminish the noise or flash caused by firing such weapon. It however does not include any air gun, air, pistol, or air rifle of a type and calibre prescribed by the Minister.

Automatic Firearm: means any firearm so designed and adapted so that when pressure is applied to the trigger, missiles continue to discharge until either the pressure is released or the magazine is empty.

Ammunition: means ammunition for any firearm and includes restricted ammunition.

Prohibited Weapon: means any artillery or automatic firearm or any grenade, bomb or other like missiles. N.B. (no licence, certificate or permit shall be granted in respect of any prohibited weapon unless to a person who had a licence for same before the commencement of this law). Except for a juvenile anyone convicted of an offence in respect of a prohibited weapon must be sentenced to imprisonment.

Restricted Weapons: means any weapon design or adapted for the discharge of noxious liquid, gas or other thing. N.B. (no licence, certificate or permit shall be granted in respect of any restricted ammunition except with the prior written approval of the Minister of National Security).

Restricted Person: means any person who is a registered habitual criminal or who has been so declared by a court or any person who has been convicted of any offence involving violence and sentenced to a term of imprisonment exceeding three months with or without hard labour. N.B. no licence, certificate of permit shall be granted to a restricted person except a disposal permit.

Imitation Firearm: means anything which has the appearance of any lethal barreled weapon of any description from which shot, bullet, or other missiles can be discharged and any prohibited weapon or restricted weapon.

Traveller: means any person who arrives in Jamaica as an Officer or as a member of a crew or
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passenger or stowaway upon any vessel or aircraft.

Licences, Permit and Certificates

Types of Licences: -

1. Firearm Manufacturers Licence: This is granted by the Minister of National Security. It entitles the holder to make, buy and sell firearm and ammunition prescribed therein and only on the premises specified therein.
2. Firearm Dealers Licence: This licence is granted by the Commissioner of Police. It entitles the holder to buy and sell firearm and ammunition prescribed therein and only on the premises mentioned therein.
3. Gunsmith's Licence: This is granted by the Commissioner of Police. It entitles the holder to carry on the business of repairing, testing or proving firearms and ammunition but only on the premises mentioned therein.
4. Firearm Users Licence: This is granted by the Chief Police Officer for the parish where the applicant resides or carries on business. It entitles the holder to be in possession of the firearm or ammunition specified therein or to any restriction order made by the Minister.

Types of Permits

A). Firearm Import Permit- This is granted by the Commissioner of Police. It entitles the holder to import into Jamaica the arms or ammunition specified therein.

B). Firearm Users (Special) Permit: This is granted by the Commissioner of Police or the Chief Police Officer for the parish when so authorized in writing by the Commissioner. It entitles the holder to take the firearm and ammunition specified therein into any area, parish, district, town or village specified in any restriction order in force.

C). Firearm Export Permit- This is granted by the Commissioner of Police. It entitles the holder to export from Jamaica the arms or ammunition specified therein.

D). Firearm Transshipment Permit- This is granted by the Collector General. It entitles the holder to transship from one vessel to another the arms and ammunition specified therein.

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E). Firearm Disposal Permit- This is granted by the Chief Police Officer for the parish. It entitles the holder to dispose of the firearm or ammunition mentioned therein and in accordance with the terms specified therein and within 30 days. The owner or any person acting with his bonafide consent may apply for a disposal permit.

CERTIFICATES

Firearm User's (employees) Certificate: This is granted by the Chief police Officer for the parish. It entitles the holder to keep, carry and use his employer's firearm, which is specified therein but only in connection with the business of such employer. The employer must first have a firearm user's licence in respect of that firearm.

Firearm Users (occasional) Certificate: This is not named by the Act but sec. 20 (3) states that the Minister of National Security or a Police Officer authorized by him, may issue on request a certificate allowing any of the following persons to have in their possession firearms and ammunition specified therein for the period so specified.

WHO MAYBE GRANTED FIREARM USERS (OCCASIONAL) CERTIFICATE SEC. 30 (3)

- ◆ Any person taking part in a theatrical performance, or any rehearsal, or in the production of a cinematography television film.
- ◆ Any person present at an athletic meeting for the purpose of starting of races at that meeting.
- ◆ Any person conducting or carrying on a miniature rifle range (whether for a rifle club or otherwise) or shooting gallery, in respect miniature rifle not exceeding 0.23 calibre and ammunition thereof used at such rifle range or shooting gallery.
- ◆ Any other person prescribed under section 48.

APPLICATION FOR LICENCES, CERTIFICATES AND PERMITS SEC. 28

Every application for licences, certificate or permit shall:

- ◆ Be addresses to the appropriate authority.
- ◆ Be on the prescribed form.
- ◆ Contain the prescribed particular.

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- ♦ Be accompanied by the prescribed number (if any) of photographs of the prescribed size of the application.
- ♦ If prescribed, bear upon photograph a specimen of signature of the applicant.
- ♦ Be signed by the applicant.
- ♦ Be accompanied by the receipt for the prescribed application fee (if any) and such other documents that may be prescribed.

N.B. The fee will be refunded if the licence is not granted.

POINTS TO BE CONSIDERED BEFORE GRANTING LICENCES, AND PERMITS

- ♦ Must be in the prescribed form and contain the prescribed particulars.
- ♦ Must bear if necessary, photographs of the prescribed dimension of the holder.
- ♦ Must bear the signature of the holder.
- ♦ Must specify conditions, if any under which same is granted.

N.B. Licences, certificates and permits are subject to the terms and conditions which the Minister or appropriate authority may prescribe therein.

DURATION OF LICENCES, CERTIFICATES AND PERMITS

- ♦ Licences: Every licence, unless revoked shall continue in force for five years from the date of issue.
The appropriate duty however shall be paid at the end of each financial year and not later than 30th April.
- ♦ Certificates: Every certificate shall continue in force until appropriately revoked or until the Act authorized thereby is done.
- ♦ Permits: Every permit, (except firearm user's special) shall continue in force until the act authorized to be done by such permit, has been done, or the expiration of the period specified therein, whichever is the earlier.

N.B. Firearm user's (special) permit continues in force until the revocation or expiration of the order.

OBLIGATION OF MANUFACTURER, DEALER AND GUNSMITH

Manufacturer:

1. Must not manufacture arms and ammunition without licence.
2. Must not manufacture firearm and ammunition elsewhere other than on the premises specified on

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the licence.

3. Must not manufacture prohibited weapons.
4. Must affix and keep affix over one of the principal entrance of the licenced premises a notice board with his full name and the words "Licenced as a Firearms Manufacturer" in letters at least two inches in heights.
5. Must provide and keep a register of all transaction. All entries therein must be made within 24 hours of each transaction.
6. Must require any purchaser or transferee, if not known to him, to furnish sufficient particulars of his identity and make a record of such particulars.
7. Must on demand, allow any member of the Force of and above the rank of inspector, or any custom officer or any Constable authorized in writing by the Chief Police Officer for the parish to inspect register and stock on hand. If the manufacturer requires to see Constable written authority, it must be produced.

Dealer:

1. Must not deal in firearm and ammunition without a licence.
2. Must not deal in any prohibited weapons.
3. Must not deal in firearm and ammunition elsewhere other than on the premises specified in the licence.
4. Must not sell or transfer firearm and ammunition to any person whom he knows or has reasonable cause to believe is a restricted person, or drunk, or of unsound mind, or (at the time) otherwise unfit to be entrusted with such a firearm and ammunition.
5. Must provide and keep register of all transaction. All entries therein must be done within 24 hours of such transaction.
6. Must require any purchaser or transferee, if not known to him, to furnish sufficient particulars of his identity and to make a record of such particulars.
7. Must on demand allow any member of the Force of or above the rank of inspector, or custom officer, or any Constable authorized in writing by the Chief police Officer for the parish to inspect register and stock on hand. If the dealer requires to see the Constable's authority it must be produced.

Gunsmith

1. Must not repair, test, prove firearm and ammunition of another without a licence.
2. Must not accept for alteration or repair etc. firearm or ammunition except on the premises specified in the licence.
3. Must not repair, test, or prove firearm and ammunition for any person whom he knows or has reasonable cause to believe to be a restricted person, or to be drunk, of unsound mind or (at the time) otherwise unfit to be entrusted with such firearm.
4. Must affix and keep affixed over one of the principal entrance of the licensed premises a notice board with his full name and the words “licensed as a Gunsmith” in letters at least two inches in height.
5. Must provide and keep a register of all transactions. All entries must be made therein within 24 hours of such transaction.
6. Must not do any of the following without the prior written approval of the Commissioner of Police:-
 - a. Shorten the barrel of any smooth bore gun to a length of less than 20 inches.
 - b. Convert into a fire, prohibited weapon or restricted weapon anything which is not a firearm, prohibited weapon or restricted weapon.
7. Bound to keep the peace and to be of good behaviour with the condition that he should not possess, use or carry a firearm or ammunition.

N.B. The Court’s certificate only relates to person issued with licences, permits or certificates under this Act.

COURTS DECLARATION OF RESTRICTED PERSON SEC. 3

A court before which a person is convicted under this Act, (other than an offence against sec.4) or under any Act in force before the appointed day on respect of importation, exportation, possession or use in Jamaica of any firearm or ammunition, may declare that person a restricted person for the purpose of this Act.

EXEMPTION FROM LAW SECTION 52

- a. Firearm which belong to the Government of Jamaica.
- b. Person authorized by Government to use Government firearm in connection with such authority.
- c. Firearms (Slaughtering Instruments) property of the K.S.A.C., Parish Council or J.S.P.C.A.

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- d. Persons authorized by the K.S.A.C., Parish Council or J.S.P.C.A. to use that organization's firearm (Slaughtering Instruments) in connection with such authority.

N.B. Slaughtering Instruments means firearm specially designed or adapted for the instantaneous slaughtering or stunning of animals before being slaughtered.

- e. Firearm forming part of any ship, aircraft or airdrome when at or when on such aerodrome, ship or aircraft or when being used by any employee there at.
- f. Firearm and or ammunition forming part of the collection in the Institute of Jamaica for museum purposes.
- g. Members of the Jamaica Constabulary Force, Army and Air Cadet Force, Island Special Constabulary Force or Parish Special Constable when in possession of firearm or ammunition pursuant to that authority.
- h. Firearm and ammunition which is the property of another country when in possession of representatives of Government of such other countries under circumstances specified by the Minister.

EXEMPTION FROM LICENCE SECTION 20 (2)

- a. Holders of Manufacturer's, Dealer's or Gunsmith's licences in respect of the firearm which they make, deal or repair etc.
- b. Executors or administrators of deceased persons property during the administration of the affairs of such person.
- c. Trustee in bankruptcy or liquidator for insolvent persons or company during the administration of the affairs of such persons.
- d. Auctioneers, Court Bailiff or Landlord Bailiff during the period of thirty days after coming into possession.
- e. Customs Officers or Constable handling any firearm or ammunition in accordance with this Act.
- f. Any person to whom a firearm, in sealed package, is entrusted by the Constable for transportation from one place to another.
- g. Any person who has a firearm user's licence for a firearm for which he is not the owner may keep the firearm on request of the owner who is leaving Jamaica but he can only keep same for the duration of the owner's absence plus two (2) weeks or twelve months whichever is the shorter.
- h. Person who have been duly issued with firearm user's (occasional) permit (as defined by these

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notes).

OFFENCES

1. Having prohibited weapons in one's possession except he had a licence for same before the commencement of this Act.
2. Having any other firearm or ammunition in one's possession without a licence.
3. Pawnbrokers taking firearm and ammunition in pawn from any person. Sec. 19
4. Purchasing or acquiring any firearm or ammunition from any other person whom he knows or has reasonable cause to believe to be under 17 years.
5. To sell or transfer any firearm or ammunition to any other person whom he has reasonable cause to believe to be under 17 years.
6. Manufacturer, dealer or gunsmith making false return or false entries in the register.
7. Carrying firearm or ammunition in any public place without having relevant licence, certificates or permit upon his person. Sec. 21 (1).
8. Carrying firearm and ammunition into any area without a firearm user's (special) permit if there is an order in force against firearm in the area. Sec. 23 (3)
9. Having in one's possession any firearm or ammunition with intent by means thereof to endanger life or cause serious injury to property or intent to enable any other person to do so. Felony Sec. 24.
10. Making or attempting to make use of any firearm or imitation firearm with intent to commit or to aid in the commission of a felony. Sec. 25 (1)
11. Making or attempting to make a firearm or imitation firearm with intent to resist or prevent the lawful apprehension or detention of himself or some other prisoner.
12. Having in one's possession any firearm or imitation firearm at the time of commission or apprehension for any offence mentioned in the first schedule of this Act. Sec. 25 (2)
13. Contravening any of the terms or conditions of any licence, permit or certificate issued under this Law.
14. Failing to produce licence, certificate or permit (unless exempted) or fails to permit a Constable to read licence, certificate or permit or to examine firearm or ammunition. Sec. 39 (2).
15. Failing to give name and address or gives false name and address. Sec. 39 (3).
16. Holder of any licence, certificate or permit to lose his firearm to which such licence, certificate, or permit applies.

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17. Contravening any of the terms or conditions of any licence, certificate, or permit under this Act.

POWERS OF POLICE INSPECTION:

A. Of Records and Stocks

It shall be lawful for any member of the Force of and above the rank of inspector or any Custom Officer or any Constable to authorise in writing by the Chief Police for the parish to inspect the register required to be kept by this Act.

Also any Stock on hand of any Manufacturer, Dealer or Gunsmith. If however, the Constable is required to produce his written authority he must do so. Sec. 17 (3)

B. It shall be lawful for any Constable seeing any person carrying firearm or ammunition in any public place to require such person to produce his licence, certificate or permit in respect thereof. If he fails to produce same or to permit the Constable to read or examine the firearm or ammunition he shall be guilty of an offence and the Constable should seize the firearm and ammunition until the case is disposed of. Sec. 39 (20 (b)).

SEARCH AND SEIZURE

Person: It shall be lawful for any Constable to seize and retain the firearm and ammunition of any person who without firearms user's (special) permit is found with same in any area prohibited by an order of the Minister. The firearm must be seized whether the person is arrested or prosecuted. Sec. 82. It shall be lawful for any Constable who suspect that any person is carrying any firearm and ammunition concealed about his person, to ask such person if he is carrying a firearm and if he admits, to request his licence, certificate or permit. If he fails to produce the relevant document or to permit the Constable to inspect the firearm and ammunition or documents, he shall be guilty of an offence and the Constable shall demand his name and address and seize same until the case is disposed of. If he denies that he is carrying such firearm and ammunition, the Constable shall search him and seize and detain arms and/or ammunition. Sec. 40 (1).

Premises: It shall be lawful for any Justice of the Peace or Constable to enter and search without warrant any premises consequent upon the unlawful discharge of any firearm within forty (40) yards of any public road or place and seize any firearm or ammunition found thereon providing he has reasonable cause to suspect that such contravention relates to such premises and that the arms seized are involved or about to be involved in any such contravention. Such arms and ammunition should be Prepared by JCF Reform and Modernization Programme / Strategy Policy and Plans Branch 2007 - 2008

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kept for the duration of the investigation or where necessary until disposal of any case resulting there from. Sec. 23 (2).

Vehicles: It shall be lawful for any Constable to stop and search any vehicle he has cause to suspect that firearm and ammunition is being lawfully conveyed therein also to search the occupant. Failure to stop, intimidating or preventing the driver from stopping, escaping or attempt to escape from such vehicle, constitute an offence. Sec. 42 (1) (2).

Arrest: It shall be lawful for any Constable to arrest without warrant any person who is carrying firearm in any public place and fails to produce licence etc. and weapon for inspection, fails to produce licence etc. and weapon for inspection, fails to give name and address or gives false name and address or if there is any reason to believe he will abscond. It shall be lawful to arrest anyone found with firearm concealed upon his person after he denies that he is carrying same, and it is subsequently found on him if he fails to give his true name and address or there is reason to believe that he will abscond.

Forfeiture: It shall be lawful for any Police to forfeit to the Crown Firearm and ammunition surrendered for a period of twelve (12) months, if the owner neglects to pay the prescribed storage fee within six (6) months at the expiry of twelve (12) months. Sec. 45 (5) (b).

Search Warrant: It shall be lawful for any Justice of the Peace being satisfied on information on oath that there is reasonable cause to suspect that any offence about this Act is committed or about to be committed upon any premises to grant a Search Warrant authorizing any Constable to enter by force if necessary, and search the premises or place, and every person found therein; and

To seize any firearm or ammunition which may be found on the premises or in the place, or on any person, in respect of which or in connection with which he has reasonable grounds for suspecting that which an offence under this Act has been, or about to be committed and to retain such firearm or ammunition for so long as may be necessary for the purpose of any investigation in relation thereto, and where such investigation results in legal proceedings against any person for any such offence, until such legal proceedings are finally disposed of.

The Constable making the search may arrest without warrant any person found on the premises or in the place whom he has reason to believe to be guilty of an offence under this Act other than an offence against section 41.

Procedure Re-delivery of firearm vendor to purchaser (when neither is manufacturer or dealer)
section 11

1. Both must furnish the Chief Police Officer in address
 - a) Particulars of the purchasers name and address.
 - b) Particulars of the vendors name and address.
 - c) Particulars of the firearm and ammunition.
2. The Chief Police Officer for the parish must furnish in writing both vendor and purchaser with particulars of the term and conditions under which delivery will be permitted.
3. The firearm and or ammunition will be delivered to the purchaser when both himself and the vendor have fully complied with all the term and conditions specified by the Police Officer.

Circumstances under which a firearm can be lawfully discharged within forty yards (40) of any public road or place. Sec. 23 (1).

- ◆ In the lawful protection of person or property of self or another.
- ◆ In the lawful shooting of trespassing animals.
- ◆ Under the direction of some civil or military authority, authorized to give such direction.
- ◆ With permission of the Minister.

Revocation, Variation etc. of Licences, Certificates and permits.

- a. Dealers Licences may be revoked by the appropriate authority if he is convicted for any offence under the Custom Act in relation o the importation or exportation of firearm and ammunition.
 - b. The appropriate authority, after giving not less than three days notice in writing to the holder of any licence, certificate or permit, may vary the condition under which same was issued. Such notice must contain the nature of the proposed variation also the date by which the licence must be produced for the variation to be noted therein. Sec. 35
 - c. The appropriate authority, after giving not less than three days notice in writing to the holder of any
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Licence, Certificate or permit, may revoke same if he is satisfied that he is unfit to be entrusted or has fail, on request to produce same for variation. Sec. 36

- d. The appropriate authority may, on the Courts Certificate of Conviction of any person, revoke the licence, certificate or permit of such person. The court should supply such certificate when such a person is :-
- (i) Convicted for any breach of this Act.
 - (ii) Convicted for any crime for which he is sentenced to penal servitude or imprisonment with or without hard labour.
 - (iii) Placed under Police supervision with the condition that he should not possess, use or carry a firearm or ammunition.

APPENDIX `B` TO FORCE ORDERS 2125 DATED FEBRUARY 25, 1981

USE OF FIREARMS BY MEMBER OF THE JAMAICA CONSTABULARY FORCE AND AUXILIARIES

1. FIREARM IN POLICE CUSTODY – (Force Orders 1609)

The provision of Police Orders 88 dated 27th May 1949 and subsequent reproduction thereof and amendments dealing with the issue, use and safe keeping of firearms and ammunition are again brought to the attention of all ranks.

2. Paragraph 2 and 5 of the order under reference states:

The Station Officer at certain larger stations and elsewhere, the Sub-Officer in charge of each station is responsible, under the directions of the Divisional Officer, for the safe keeping and custody and issue, when necessary, of revolvers or pistols and ammunition.

On completion of the duty, the Constable will return the revolver or pistol to the station after extracting the ammunition and (Station Officer or Sub-Officer) will make an entry in the Station Diary of the condition in which they are delivered to him.

3. Despite repeated production of these very important instructions, it appears that no proper supervision are being maintained at many Police Stations; consequently firearms are being lost or

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stolen from Police custody and the loss is not discovered and reported immediately to Head Quarters, nor are sufficient steps being taken to place responsibility and take Disciplinary action against the person (s) responsible.

4. In future, whenever a firearm whether a service firearm or otherwise disappear from police custody, a report must be forwarded immediately to headquarters and steps taken to place responsibility and commence necessary action.
5. It is also clearly understood that branch, Area and Divisional Officers are held responsible for firearms (whether owned by the Police or not) in Police custody under their command and will be held responsible for their safekeeping.

CARE IN THE HANDLING AND USE OF FIREARMS – (Force Orders 1631)

It is alarming to note the frequency with which incidents of “accidental” discharge of firearms are reported by members of the Force.

All members of the Force are trained in the use, handling and care of the .38 revolvers and charged to the department and are expected to adhere to the principles laid down in the training.

If all necessary precautions are taken, it is virtually impossible to have incidents as referred to above occurring. Most Auxiliaries (Special Constables and District Constables are also trained in the use of the firearm.

With effect from the date of this Order, no member of the Force who has not been trained in the use of a particular type of firearm will be issued with such a firearm duty.

It is appreciated that some Divisions and sections have on charge semi-automatic shotguns, rifles and sub-machine guns in addition to the standard .38 revolver. These weapons must not be issued to any member of the Force who has not been formally trained in their handling, care and use.

Officers and Sub-officers are to take a special interest in the safe handling of arms and are to lecture the personnel under their command on this vital subject.

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All ranks are reminded of the provision of the Police Order 88 on the subject on which has been re-published from time to time.

INDISCRIMINATE USE OF FIREARMS – (Force Order 7116)

Force Order, Serial No. 1631, Part I, Sub. No. 2, dated 7th September 1978, refers to the care in the handling and use of firearms by members of the Force and to frequent reports of “accidental discharge of revolver and other weapons”.

On the subject the Director of Public Prosecution in reviewing statements submitted to his office in connection with a fatal shooting by the Police had this to say:

“It appears to me that ‘accidents’ are sometimes made to happen and though it is not a matter for this department perhaps those in charge might seek to take some remedial action to avoid the amount of ‘fatal accidents’ which originate from the barrel of a service revolver”.

The foregoing is published for information and to give all rank an insight into the thinking of others on the subject.

I am also concerned about frequent reports made to members of the Force discharging firearms into the air at scene of incidents and disturbance.

This practice contravenes the provision of Police orders 88 as amended and published in Force Orders No. 1668, dated May 24, 1979 and should cease.

ISSUE AND USE OF FIREARMS – (Force Orders 1976)

It has become necessary to once again remind all members of the Force Orders relative to the issue and use of firearms.

Despite re-publication of the said instructions, frequent reports reaching me indicate that there are still members who seemed to use firearms in indiscriminate manner with gay abandon.

These complaints may and may not be grossly exaggerated in some instances, and this observation is not intended to limit Police in the drive against crime but it is imperative to point out that members of

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the Force should only use their firearms in case of absolute necessity, for example if he/she is attacked by a person with a firearm or other deadly weapon and cannot otherwise reasonably protect himself/herself. Only then should such member resort to a firearm as a means of self-defence.

Recent report in the press and on the electronic media can only serve to tarnish our image in the eye of the public and this is a luxury we can all afford.

Part 15

OBTAINING SPECIMENS – QUESTIONED DOCUMENTS, HANDWRITING AND TYPEWRITING

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The following are for the guidance of investigators:

1. The Handwriting of a person can be proved by a person who saw that person wrote even once before: Archibald's 37th Edition at para. 1262.
2. Specimen should be obtained early from suspects. The Questioned Document is not to be shown to suspects. He should be told what to write.
3. Specimens should be of the same style of writings as those questioned e.g. Script, Cursive or Printed.
4. Specimens are to be written on similar paper to the Questioned Document for example ruled or unrule lined and with, as far as possible, a similar instrument, e.g. pen, ball point pen or lead pencil.
5. In case of signatures the specimen should be written no less than twenty-five (25) times. If it appears that the suspect or suspects are disguising the writings they should be made to write as many as possible. Specimen should also be taken from the complainant.
6. In the case of Letters at least two (2) specimen of the Letter should be provided.
7. Specimens are to be carefully protected by envelopes, etc. to be handed as little as possible, kept free from water, grease, oil and should not be pinned, folded or creased.
8. On each sheet of specimen the following "Certificate" should be written by the person writing the specimen: - "This is a true specimen of my handwriting given voluntarily to the Police at on theday of19....." The investigator should affix his signature as witness to each sheet of specimen writings written by a witness or suspect during his investigation.
9. The result of the case MUST be reported to the Document Examination Section, Forensic Science Laboratory, 2 ½ Hope Boulevard, Kingston 6, for statistical purposes.
10. If the suspect refuses to give specimen writings, known writings of suspect should be obtained, e.g. (1) letter written by suspect, (2) any documents written up or signed at Bank, Hospitals, etc. N.B. These standard writings can be proven by the persons who saw them being written.
11. In the case of signatures that are written in a prescribed area, e.g. on a ruled line, specimens should be taken in like manner i.e. the Investigator should indicate by marking a similar area in distance to the suspect.
12. When typewriting are questioned, the same combination of letters should be reproduced by all

typewrites suspected.

Part 16

COMMUNITY BASED POLICING

1. THE VISION

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1.1 The Jamaica Constabulary Force's Modernization Programme calls for a paradigm shift in our style of policing. It makes it clear that we will move from a traditional paramilitary and reactive style of Policing to one that is more proactive, community based and service oriented called Community Based Policing.

1.2 PURPOSE

1.3 The purpose of this style of policing is to help create 'safe' and 'confident' communities, through the delivery of professional, problem solving and intelligence driven policing in partnership with the community.

2. Definitions

2.1 "Community Based Policing"

Community Based Policing is a style of policing that promotes a commitment between people and their local police to work together to identify priorities and to solve problems of crime, disorder, fear of crime and community decay, thereby improving the overall quality of life for everyone"

2.2 Safe Communities

Safe communities means communities with low levels of crime, fear and disorder; where crimes are properly investigated, cleared up; where the communities support and involve their members each other; and where the police response is sensitive, caring and professional.

2.3 Confident Communities

Confident communities means communities where justice flourishes; where there is a high level of trust in the criminal justice systems; where communities do not feel isolated; and where the communities are actively involved in tackling the causes of crime.

2.4 Professional Policing

Professional Policing means policing that is done in accordance with the rules, regulations and guidelines governing the Jamaica Constabulary Force with respect for the rights of citizens, the upholding of human rights and human dignity and the Constitution of Jamaica.

2.5 Problem-Solving

Problem-Solving as used in this context is best defined as a process in which the police in partnership with the community:

- a. Identify neighbourhood crimes, disorders and fear problems
- b. Understand the conditions that give rise to these problems
- c. Develop and implement short and long term solutions tailored to address the problem
- d. Determine the solution's impact on the problem

2.6 Intelligence Driven

“Intelligence driven” means operations and patrols that are informed by the crime pattern analysis, risk assessment, intelligence analysis and properly processed information.

2.7 Partnership

Partnership means the involvement of “THE BIG SIX” namely: the police, the public, elected officials, the business community, all statutory/voluntary agencies and the media working together to create safe and confident communities.

3. OBJECTIVES

The objectives of the community based policing policy is to provide guidelines to all members of the Jamaica Constabulary Force and its auxiliaries as to how this method of policing is to be integrated into our broad duties as defined in the Jamaica Constabulary Force Act. It is intended to define the roles and responsibilities of individuals in the transformation process as well as a means of evaluation and sustainability.

4. Administration

All members of the Jamaica Constabulary Force and its auxiliaries will be trained in the concept and philosophy of Community Based Policing.

Training will be done in two (2) phases;

Phase 1

Senior managers will be trained through workshops and seminars conducted at the Police Staff College and other appropriate venues in divisions and areas.

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Phase 11

Specialist trainers in the divisions will train Inspectors, Sergeants, Corporals, Constables, Auxiliary members and civilian support staff.

5. DIVISIONAL RESPONSIBILITIES

5.1 It shall be the responsibility of the divisional commander to ensure that proper record and details of training courses are kept. Records of all persons who attended training sessions will be kept and published in the Force Orders. Attendance at these training sessions is non-negotiable.

5.2 Divisional Commanders will be responsible and accountable for training, allocation and deployment of both human and material resources within their divisions.

5.3 It is the responsibility of divisional commanders to collect comprehensive Divisional profiles, and to ensure that proper zoning for patrols (foot and mobile) and deployment of resources is consistent with demand.

5.4 Performance will be measured in a transparent manner. Divisional Commander will be expected to provide sound management information that will enable their teams to solve problems effectively and to account for their performance.

5.5 Divisional commanders will be empowered to develop creative and innovative approaches to solving, preventing and reducing crime, dealing with disorders and maintaining the peace. They will be assessed on the extent to which these initiatives produced the desired results.

6. PARTNERSHIP

6.1 The Community Based Policing Project will be driven by the theme, “Building Safer Communities through Partnership”. The development of sustainable partnership will be one of the main criteria by which divisional and station commanders will be assessed.

6.2 All citizens groups, civic organizations, business entities, the church, government and non-government organizations are essential partners and should be encouraged in the drive to help create ‘safe’ and ‘confident’ communities.

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7. SCHOOLS

7.1 Schools are of special interest for the effectiveness and sustainability of Community Based Policing. Positive, creative, meaningful and well structured programmes must be designed in consultation with the schools' authorities and implemented as ongoing initiatives within the island's schools.

7.2 Special emphasis must be placed on schools in those areas of particular need, where students are more vulnerable and there is the clear potential for conflict. The aim, objectives and methods of delivery of schools programme must be included in the divisional annual policing plan.

8. INTER-LINKING OF UNITS WITHIN DIVISIONS

8.1 All personnel within the geographic divisions including; Traffic; C.I.B. and other small support teams must be part of the Community Based Policing initiatives. Everyone will be expected to work towards the same goal and to help bring the necessary changes required by the new style of policing.

9. TRAINING BRANCH

9.1 It is the responsibility of the Training Branch to ensure that the concept, philosophy and practical application of Community Based Policing are taught at both the Academy and the Police Staff College.

9.2 The Training Branch will research and develop new approaches to the growing crime and disorder trends and conduct appropriate training sessions for managers and operatives to include best practices by divisional command teams.

9.3 The Training Branch should also conduct refreshers training for members who for any reasons have been out of active service for a considerable period of time.

10. OPERATIONS

10.1 Operations within all geographic divisions will move towards being 'intelligence' driven. An effective local intelligence database must be established. The focus will be on intelligence led

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operations and more effective tasking and deployment of resources that is based on proper risk assessment, crime pattern analysis and intelligence analysis.

10.2 Divisional Commanders will appoint competent Station Commanders. Station Commanders will select suitable supervisors as zone leaders. The teams assigned to zones will have responsibility of policing 'their' zones on a twenty-four hour basis.

Area Officers and Divisional Commanders should ensure that persons assigned to zones remain in the area for an extended period in order to gain the trust and confidence of the community and to maximize their local knowledge of the community.

10.3 A tasking group comprising of the Divisional Commander, the Operations Officer, the Administration Officer, the Crime Officer, Station Commanders, the Community Relations Officer, the Divisional Detective Inspector, the Crime Analyst, the Special Branch representative, the Intelligence Analyst, the Community Based Trainer Advisor and the Traffic Sub-Officer will be set up in each division and meet weekly to review the activities of the previous week, and to determine the operational policing priorities for the following week.

10.4 Divisional Commanders are expected to improve the quality of briefing given to personnel going on duty and to introduce a more effective process for debriefing at the end of each duty.

10.5 Briefings should contain information coming out of the meeting of the tasking group and any other current information, which will assist the zone leaders to deploy resources, in an informed way. A special form for debriefing should be completed at the end of each tour of duty.

10.6 Divisional Commanders must ensure that a process for handling volatile conflicts and threats is adopted and the principles of dispute resolution and mediation applied. The training and placement of staff that are skilled in these disciplines are necessary in order to engage the communities and help to develop recognition of the value of 'becoming involved'.

10.7 Divisional and Station Commanders should ensure that citizens within their areas are involved in the strategic policing of their communities, hence the widely publicised meetings must be conducted

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in a manner that will encourage maximum involvement. Good ideas derived from these meetings should form part of the policing plan and results feedback to citizens.

10.8 A detailed process of accountability relevant to inputs, outputs, supervision and reward must be a part of all divisional plans.

11. DEPLOYMENT OF HEADQUARTER'S SUPPORT UNIT

11.1 Headquarters units carrying out operations in geographic divisions will liaise with the appropriate divisional commander or his deputy before, or within twelve hours of the operation, to inform a member of the command team of the nature of the operation, number of persons arrested/detained, where they are being held and who have been assigned to investigate. In the event deadly force is used, the scene should be protected by the local police until the specialist team arrives. Divisional Commanders and Headquarters Units should work in collaboration with each other to ensure that the principles of Community Based Policing are maintained.

12. EVALUATION

12.1 It is the duty and responsibility of Divisional Commanders and station commanders to ensure that all personnel with their divisions/station are aware of the evaluation criteria under Community Based Policing.

12.2 Internal accountability will be evaluated through the assessment of a number of core areas of performance. These will include the following:-

12.3 Operational Review

- Development of partnership with other agencies
- Quality of operational briefings and the use of intelligence to drive deployments, relative to patrols (mobile, beat, motor cycle and bicycle), quick response teams and special operations.
- Professionalism and courtesy
- Extent to which Force policy guidelines are upheld in the execution of duties
- Maintenance of Human Rights and Human Dignity in the performance duties.

12.4 Traffic Management Review

- Personnel deployment – extent to which deployment is demand/problem solving driven
- Extent to which patrols are directed to troubled spots
- How performance is being made visible
- How divisions share useful information, both within divisions and across the island.
- The level of courtesy and professionalism displayed in carrying out normal and routine duties.

12.5 Administrative Review-moral and motivation

- Extent to which front line leaders are empowered and made accountable.
- Extent to which divisional potential and capabilities are reflected and used in operational strategies and tactics.
- Training priorities identified and appropriate training conducted.
- Proper collection, recording and analysis of data on activities within communities.

12.6 Service Quality

- Attitude of personnel to change
- Response time to calls for service
- Citizens attitude towards the police
- Fear of crime surveys
- Business communities' response
- Complaints against the police
- New initiatives introduce
- Commendations for outstanding service

12.7 Crime Review

- Extent to which crime analysis is done in the division
- Establishment of an intelligence database to guide deployments
- Extent to which the data is used to guide deployment and focus of the police resources
- The extent to which crime has been prevented (reduction)
- The extent to which information received from the communities contributed to solving crime

12.8 Community Activities

- Extent to which there have been increase and greater involvement of police in community activities
- Development of staff's knowledge and commitment to Community Policing and Problem-Solving

Part 17

THE FINGER PRINT (AMENDMENT) ACT, 2005

STANDARD OPERATING PROCEDURE (SOP) 2006

These SOPs are developed by the Legal Affairs Division for the knowledge and guidance of members in complying with the provision of the Act. The SOPs outline key areas of the Act necessary for lawfully obtaining fingerprints and photographs of persons.

1.0 Interpretation

- 1.1 Finger Print includes a palm print and a foot print.
- 1.2 Finger Print Form means a piece of paper or cardboard printed in accordance with rules framed under the Finger Print Act.
- 1.3 Only an Authorized Officer can take the finger prints of a person.
- 1.4 An Authorized Officer is, any Officer, Sub-Officer, of the Jamaica Constabulary Force or any Correctional Officer appointed as such by the Minister.

2.0 Persons charged before the courts.

Section 3 (1) of the Act

An authorized officer shall take the finger print or photograph of any person charged before a Circuit Court, the Traffic Court, Children's Court, Family Court or a Resident Magistrate's Court with any offence specified in the First Schedule of this Act. However, the finger prints and photograph *must only* be taken after the Court has made an Order for the prints to be taken.

3.0 Reasonable suspicion

Section 3A (1)

If a person is taken into custody on reasonable suspicion, his finger prints must not be taken, unless he is informed by an Officer not below the rank of a Superintendent of Police or by the Sub-Officer in charge of the Police Station that-

- I. He has the right to refuse to have his finger prints and photograph taken.
- II. If he consents to have his finger print and photograph taken he must:

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- (a) sign the prescribed form, giving his consent; and
- (b) he is to sign the form in the presence of a Justice of the Peace or in the presence of his Attorney-at-Law.

4.0 Persons between the age of 12 & 18 years old.

Section 3A (2)

If the person taken into custody is between the ages of 12 and 18 years old, he cannot give consent for the taking of his finger prints and photograph; consent for such person must be obtained from someone else.

The Authorized Officer must obtain consent from:

- I. the suspect's parents or guardian; or
- II. if the parents or guardian cannot be located then the Children Advocate should be contacted to give consent for the prints to be taken; or
- III. the suspect may be asked to nominate a person in such form and manner as may be prescribed to give consent on his behalf.

The parent, guardian, Children's Advocate or the nominee of the suspect, must sign the prescribed form in the presence of a Justice of the Peace or in the presence of the suspect's Attorney-at-Law, giving consent for the finger prints to be taken.

5.0 If consent is not obtained.

Section 3A (3)

If the consent for taking the suspect's finger print and photograph as stated above is not obtained, then the Authorized Officer must contact the Courts Office (Clerk of the Courts) of the Children's court or family Court, for an application to be made to the court for an Order authorizing the taking of the person's finger prints and photograph.

The Authorized Officer, on obtaining the order from the court, must proceed according to the Court Order.

6.0 No consent required for finger print.

Section 3A (4)

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The finger prints and photograph of a person taken into custody on reasonable suspicion may be taken without his consent or without an Order from the court.

This must only be done on the written authorization of an Officer not below the rank of a Superintendent of Police and can only be done in the following circumstances-

Mental disorder

Section 3A (4) (a)

- I. the Superintendent of Police has a certificate signed by a Medical Practitioner that the suspect who has been diagnosed by a Medical practitioner is suffering from a mental disorder which makes him incapable of giving consent.

Reasonable grounds

Section 3A (4) (b) (i)

- II. the Superintendent of Police has reasonable grounds to believe that the person, has been involved in the commission of an offence specified in the Second Schedule and the taking of the his finger prints and photograph will help to confirm or disprove his involvement therein.

Inaccurate identity

Section 3A (4) (b) (i)

- III. the suspect has given an identity that is not accurate.

7.0 **Taking of finger prints and photograph of deported person**

Section 3B (1)

The finger prints and photographs of a deported person can be taken by an authorized person *only* under the following circumstance-

Section 3B (2)

- I. The deported person must be in Jamaica
- II. He must have been convicted in a foreign state of an offence similar to an offence specified in the First or Second Schedule and must be the subject of a Deportation Order.
- III. He must give his consent for the taking of his finger print and photograph.
- IV. He must give his consent by signing the prescribed form.
- V. He must sign the prescribed form in the presence of a Justice of the Peace or his

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Attorney-at-Law.

8.0 Recording on Finger Print form

Section 4

If the person who is finger printed and photographed is convicted of an offence specified in the First and Second schedule, that conviction and sentence shall be recorded in the space provided for the purpose on the finger print form.

9.0 Destruction of Finger Print Form and Photograph

Acquittal

Section 4A (1)

Where the person who is finger printed and photographed is acquitted of the charge the finger print form and photograph shall be destroyed within *three months* from the date of the acquittal of the person.

The Authorized Officer must give prior notice to the person, his Attorney-at-Law, of the date, time and location of such destruction.

A certificate of destruction should only be given by the Authorized Officer to the person or his legal representative, upon an application in writing for same.

10.0 Persons between the age of 12 & 17 years old

Section 4A (2)

Where a person between the ages of 12 and 17, who is finger printed or photographed is convicted or acquitted of the charge, the finger print form and photograph must be destroyed within three months from the date of acquittal or conviction.

The person or his Attorney-at-Law must be given prior notice of the date, time and location of such destruction.

A certificate of destruction must be given to the person or his Attorney-at-Law, upon a written application for one. This application would be made to the Authorized Officer, who should issue same.

11.0 *Person not charged*

Section 4B (1)

Where a person who is finger printed and photographed –

- (1) is not charged; or
- (2) is charged, but the prosecution does not proceed with the charge or the proceedings are discontinued,

the finger print form and photograph shall be destroyed within three months from the relevant date or from the date on which the prosecution decides not to proceed or the proceedings are discontinued.

The Authorized Officer must give prior notice to the person, his Attorney-at-Law, of the date, time and location of such destruction.

12.0 *Restricted Person*

Section 4B (2)

The finger print form or photograph of a deported person must be destroyed if the person is not a restricted person within six months of the finger print and photographs being taken.

Or if the person is a restricted person, the finger print form and photograph must be destroyed within six months from the date of expiration of the order made under section 54B of the Criminal Justice (Administration) Act.

Prior to the destruction of the finger print form and photograph, the Authorized Officer must give notice in writing to the person or his Attorney-at-Law, of the date, time, and location of such destruction. He must also be advised that he may witness the destruction if he so desires.

A certificate of destruction must also be given to the person or his Attorney-at-Law by the Authorized Officer, upon a written application for one.

13.0 *Applications by the Commissioner of Police*

Section 4A (4)

Where the Commissioner of Police is of the view that the finger print form and photograph of an acquitted person should not be destroyed, the commissioner shall on the acquittal of the person make an application to the court before which the person was acquitted, for the retention of the

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finger print form and photograph.

The Commissioner of Police may also make an application to the court, stating reasonable grounds that caused him to suspect that the person has been involved in the commission of another offence specified in the First and Second Schedule for which he has not been charged.

Section 4B (4)

The Commissioner of Police may also make an application to a Judge of the Supreme Court for the retention of the finger print form and photograph of

- (a) a person who is not charged; or
- (b) a person who is charged, but the prosecution does not proceed with the charge or the proceedings are discontinued.

The application by the Commissioner of Police for the retention of any such finger print and photograph, must state the reasonable grounds on which he suspects that the person has been involved in the commission of an offence specified in the Second Schedule.

This application must be made within six months of the relevant date. The relevant date is the date on which the person was finger printed or photographed. This means six months counting from the date on which the person was finger printed or photographed.

Where the person finger printed and photographed is a deported person, the Commissioner of Police must apply to a Judge of the Supreme Court if he wants to retain the finger print and photograph of such person. The Commissioner must state in his application to the Judge, any reasonable grounds that the person has been involved in the commission of an offence specified in the Second Schedule for which he has not been charged.

The Commissioner must apply within six months of the finger prints and photograph being taken, or within six months of the expiration of any order under section 54B of the Criminal Justice (Administration) Act.

14.0 Finger print form and photograph admissible in evidence

Section 6

6. (1) Where the finger prints on a finger print form, as also the entries on the form is said to have been taken by an authorized officer, (which is any officer, sub-officer of the force or any prison officer) the finger print form shall be admissible in evidence without proof, and shall be *prima*

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facie evidence of the conviction and sentence of the person whose finger prints are impressed on the form.

- (2) Any additional information may be recorded on a finger print form, but this form shall not be evidence of such additional information.
- (3) Any photograph taken in relation to this Act shall be admissible in evidence in any court, subject to the rules of court.
- (4) A photograph taken according to this Act may be used for the purpose of-
 - (a) investigating an offence where
 - (i) the person has refused to take part in identification parade; or
 - (ii) the person's appearance has changed greatly since the offence was committed
 - (b) the photograph may be used for identifying any person who has escaped from lawful custody;
 - (c) for the prevention and detection of crime
 - (d) for the investigation of an offence; or
 - (e) for the conduct of criminal prosecution.
- (5) Where an authorized officer shows photographs to a witness for the purpose of investigating an offence, the following rules shall apply-
 - (a) the witness shall be shown photographs of at least twelve different persons;
 - (b) the persons in each photograph –
 - (i) shall be about the same age and has the same general appearance as the suspect; and
 - (ii) the person in the photograph should not have visible features that are greatly different from those of the suspect as described by the witness before viewing the photographs;
 - (c) There shall not be anything in the photographs that would suggest to the witness that the photographs are of persons in the custody of the police.
 - (d) The authorized person shall not, in showing the photographs, act unfairly towards the suspect or suggest to the witness that a specific photograph is the photograph of the suspect or of a person who the police is looking for in connection with an offence.
 - (e) If practicable, the photograph of a suspect shall be one taken after the person was taken into custody or considered as a suspect.
 - (f) tell the witness that a photograph of the suspect may not be among those seen by him.
 - (g) the authorized officer shall keep, or cause to be kept, a record identifying each photograph

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that is shown to the witness;

(h) he shall also notify the suspect or his lawyer in writing that a copy of the record is available for the suspect;

(i) the authorized officer shall keep the photographs shown and shall allow the suspect or his lawyer, after an application, to inspect the photographs; and

(j) he shall ensure that the suspect's lawyer or Duty Counsel and a Justice of the Peace are present when the photograph are being shown to the witness.

(6) The Minister may amend subsection (5) by order subject to affirmative resolution

[Proof of previous conviction by finger prints](#)

[Section 7](#)

In order to prove a previous conviction of a person accused or convicted of any offence mentioned in the First or Second Schedule a certificate, signed by the Officer in charge of the Finger Prints Bureau, shall be admissible in evidence without proof, and shall be prima facie evidence that the finger prints, previous conviction and sentences referred to by the certificate are of the same person.

[15.0 Rules](#)

[Section 8](#)

(1) The Minister may make rules generally for carrying into effect the purpose of this Act, and for regulating the work of the finger Prints Bureau

(2) Any rules made relating to subsection (1) shall be subject to affirmative resolution

[9.](#) The Minister may by order amend the First or Second Schedule

[10. Penalties](#)

Any person who acts in contravention of-

- i. this Act; or
- ii. the rules relating to section 8

Shall be liable on summary conviction before a Resident Magistrate to a fine not exceeding one million dollars, or to imprisonment for a term not exceeding twelve months or to both such fine and imprisonment.

11. Repeal and replacement of the principal Act

FIRST SCHEDULE

(Sections 3, 3B, 4, 4A, 7 and

1. Any offence against the following sections of the Criminal Justice (Administration) Act -
 - (a) **Section 46** (offences under Part 2 after a second conviction of crime powers of taking such offences into custody).
 - (b) **Section 51** (penalty for harboring thieves);
 - (c) **Section 52** (assaults on police).
2. Any offence against section 15 (penalties for breaches of orders) of the Deportation (Commonwealth Citizens) Act.
3. Any offence against the following sections of the Road Traffic Act -
 - a) **section 34** (driving motor vehicles under influence of drink or drugs);
 - b) **section 34A** (driving or being in charge of a vehicle while blood – alcohol levels exceed prescribed limit);
 - c) **section 45** (Unlawful user of motor vehicle
 - d) **section 46** (fraudulently altering or using any license, licensing or registration mark or plates)
4. Any offence under the Unlawful Possession of Property Act.
5. Any offence against section 29 (prohibition of offensive weapon) of the Public Order Act.
6. Any indictable offence not specified in the Second Schedule.

SECOND SCHEDULE

(Sections 3A, 3B, 4, 4A, 4B, 7 and 9)

1. Any offence under the Dangerous Drugs Act.
2. Any offence under the Firearms Act.
3. Any offence under the Explosives (Control of Manufacture) Act
4. Any offence under the Explosives (Sale of Deposited Stores) Act
5. Any offence under the Gunpowder and Explosives Act
6. Any offence against the following sections of the Offences Against the Person

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Act-(a) section 2 (capital murder) and (non-capital murder); b) section 8 (conspiring or soliciting to commit murder); (c) section 9 (manslaughter); d) section 11 (petit treason); e) section 13 (administering poison, or wounding with intent); (f) section 14 (destroying or damaging buildings with intent to murder); (g)section 15 (setting fire to shop, *et cetera*, with intent to murder); (h)section 16 (attending to administer poison *et cetera*, with intent to murder); (i) section 17 (by other means attempting to commit murder); (j) section 31 (endangering passengers on a train); k) section 33 (genocide); (l) section 44 (rape); (m) section 47 (defilement of female idiot or imbecile); (n)section 48 (carnally knowing a girl under twelve); (o)section 50 (carnally knowing girl above twelve and under sixteen); (p)section 56 (forcible abduction); q) section 57 (abduction of girl under sixteen); (r)section 60 (abduction of girl under eighteen with intent to have carnal knowledge); (s) section 61 (unlawful detention with intent to have carnal knowledge); t) section 70 (kidnapping); (u) section 79 outrages on decency).

7. Treason”

Passed in the House of Representatives this 8th day of March, 2005 with twenty-one (21) amendments

This Standard Operating Procedure was drafted by the Legal Affairs Division this 3rd day of March 2006.

Part 18

STANDARD OPERATING PROCEDURE (SOP)

THE BAIL ACT (2000)

INTERPRETATION

BAIL IN CRIMINAL PROCEEDINGS

- means bail which may be granted in or in connection with proceedings for an offence, to a person charged with or convicted of the offence; or
- in connection with an offence, to a person who is under arrest for the offence or for whose arrest a warrant has been issued. Such a warrant must be endorsed for bail.

CHILD

- means a person under the age of fourteen years.

CONVICTION

Includes – a person being found guilty (*by the court*).

- a finding that a person is not guilty by reason of insanity.
- A conviction of an offence for which an order is made placing the defendant on probation or discharging him absolutely or conditionally
- AND “convicted” shall be construed accordingly.

COURT

- includes a Judge or a Resident Magistrate.

DEFENDANT

- means a person charged with or convicted of an offence.

JUDGE

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- means a Judge of the Supreme Court or the Court of Appeal. OFFENCE
- includes an alleged offence.

POLICE OFFICER

- means an arresting officer or an officer or sub-officer in charge of a police station or lock-up.

SURRENDER TO CUSTODY

- means, in relation to a person released on bail, surrendering himself into the custody of a court or the police at the time and place appointed for him to do so.

VARY

- in relation to bail, means imposing further conditions after bail is granted or varying or revoking conditions imposed in relation to the grant of bail.

YOUNG PERSON

- means a person who has attained the age of fourteen years and is under the age of seventeen years.

References made in sections 3(3) and 4 (1) and (4) to “imprisonment” does not include a committal in default of payment of any sum of money, or for want of sufficient distress to satisfy any sum of money, or for failure to do or abstain from doing anything required to be done or left undone.

ENTITLEMENT TO BAIL

Sec. 3(1)

Every person who is charged with an offence shall be entitled to be granted bail by a Court, a Justice of the Peace or a Police Officer, as the case may require.

A person who is charged with an offence shall not be held in custody for longer than

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twenty-four hours without the question of bail being considered.

Bail shall be granted to a defendant who is charged with an offence which is not punishable with imprisonment. *THIS IS SUBJECT TO THE PROVISIONS OF Sec. 4(4).*

Only a Resident Magistrate or a Judge can grant bail to a person who is charged with murder, treason or treason felony.

On each occasion that a defendant appears before the court, he or his Attorney-at-Law can make an application for bail.

CIRCUMSTANCES IN WHICH BAIL MAY BE DENIED

Sec. 4(1)

A defendant who is charged or convicted for an offence that is punishable with imprisonment; may be denied bail under the following circumstances: -

(a) if the Court, Justice of the Peace or Police Officer is satisfied that there are **substantial grounds** for believing that the defendant, if released on bail would

(i) fail to surrender to custody;

(ii)

(iii) commit an offence while on bail; or

interfere with witnesses or otherwise obstruct the course of justice, whether in

(b) if the defendant is in custody because of a sentence by the Court or any authority acting under the Defence Act.

(c) If the court is satisfied that more time is required to obtain sufficient information to make a decision whether or not to grant bail.

(d) The defendant, who was granted bail in connection with the offence, has subsequently been arrested for absconding bail.

(e) The defendant is charged with an offence alleged to have been committed while he was released on bail.

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- (f) The defendant's case is adjourned for inquiries or a report and it appears to the court that it would be impracticable to complete the inquiries or make the report without keeping the defendant in custody.

FACTORS TO BE CONSIDERED WHEN CONTEMPLATING BAIL

The Court, Justice or Police Officer, must consider the following factors, when in contemplating whether to grant bail or not: -

1. the nature and seriousness of the offence;
2. the defendant's character, antecedents, association and community ties;
3. the defendant's record with regard to the fulfillment of his obligations under previous grant of bail
4. the strength of the evidence of the defendant having committed the offence or having failed to surrender to custody. NB., except, in the case of a defendant whose case is adjourned for inquiries or a report.
5. whether the defendant is a repeat offender, that is to say, a person who has been convicted on three occasions for offences which are punishable with imprisonment; or
6. any other factor which appears to be relevant including the defendant's health profile

GROUND ON WHICH BAIL MIGHT BE DENIED TO A DEFENDANT- FOR OFFENCES PUNISHABLE BY IMPRISONMENT.

Sec. 4 (3).

Defendant's own Protection/ Child or Young Person.

The Court, a Justice or Police Officer, may deny a defendant bail, if they are satisfied that the defendant should be kept in custody for his own protection or, where he is a child or young person, for his welfare.

The defendant must have been charged or convicted for an offence that is punishable by imprisonment.

GROUND ON WHICH BAIL MIGHT BE DENIED TO A DEFENDANT-FOR OFFENCES NOT PUNISHABLE BY IMPRISONMENT.

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Sec. 4 (4)

- (1) If it is made known to the Court or a Justice of the Peace, that the defendant who was granted bail on a previous matter; failed to surrender to custody in accordance with his obligations under the grant of bail, and there are reasonable grounds for believing that, in view of that failure, the defendant if released on bail, would fail to surrender to custody.
- (2) The Court or a Justice of the Peace is satisfied that the defendant should be kept in custody for his own protection or, where he is a child or young person, for his own welfare.
- (3) The defendant is in custody in pursuance of a sentence of a Court or any authority acting under the Defence Act.
- (4) The Defendant having been released on bail in connection with the offence; is subsequently arrested for failing to surrender to custody or otherwise for the offence of absconding bail.

REFERENCES

- References made to previous grants of bail include a reference to bail granted before the 29th, December, 2000.
- Reference, to 'defendant's being in custody or being in custody' includes where a defendant is a child or young person, is being kept in a place of safety or a juvenile correctional center under the Juveniles Act.

OFFENCE PUNISHABLE WITH IMPRISONMENT

The question whether an offence is punishable with imprisonment shall be determined without regard to any enactment prohibiting or restricting the imprisonment of young defenders or first offenders.

CONDITIONS OF BAIL

Sec. 5 (1)

The Court, a Justice of the Peace or Police Officer, shall not impose any of the conditions listed below on a defendant who has been granted bail, unless it appears necessary to do so:-

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By virtue of Sec. 6(2), a Court, Justice of the Peace or Police Officer, may require any person to whom bail has been granted, at his option, such conditions for bail before his release

- (1) a surety to secure his surrender to custody; or
- (2) a payment of such amounts as may specified.

A person to whom bail is granted may be required –

- (1) to surrender his travel documents to the Court;
- (2) to inform the Court if he intends to leave Jamaica;
- (3) to report at specified times and dates to a police
- (4) to comply with such other requirements as appear to the court to be necessary to ensure that the person-
 - (i) surrenders to custody;
 - (ii) does not commit an offence while on bail;
 - (iii) does not interfere with witnesses or otherwise obstruct the course of justice, whether in
- (5) to attend at a bail center at such times as the Court may specify.

NB. The term ‘requirements’ mentioned at # 4 above, may include the imposition of a curfew by the Court on any person to whom bail is granted; requiring such person to remain within specified locations and between such hours as the Court may specified.

JUVENILES

Sec. 6 (5)

A parent or guardian, who consents to be surety for a juvenile, may be required to ensure that the juvenile on bail complies with any condition imposed on him.

In a situation where bail conditions are imposed on a juvenile who would attain the age of seventeen before the time specified for him to surrender to custody; no condition shall be imposed on such parent or guardian sureties.

The parent or guardian (sureties) shall not be required to secure compliance with any condition to

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which his consent does not extend and shall not, in respect of those conditions to which he gave consent, be bound in a sum greater than fifty thousand dollars.

VARY

Sec.6 (6)

Where a Court has granted bail in criminal proceedings, it may on application-

- (a) by or on behalf of the person to whom it is granted; or
- (b) by the prosecutor or a police officer,

vary the conditions of bail or, where bail was granted unconditionally, impose conditions.

Sec 6(7)

Where a person has been granted bail in criminal proceedings, bail shall not be revoked unless such revocation is justifiable by virtue of any of the provisions mentioned above.

RECORD OF DECISION

Sec. 7(1)

Where a Court or police officer grants bail in criminal proceedings;

- (a) a Court or a police officer appoints a time or place or a Court appoints a different time or
- (b) place for a defendant granted bail in criminal proceedings to surrender to custody; or a Court varies any condition of bail or imposes conditions in respect of bail in criminal

The Court or police officer shall make a record of the decision and, where requested to do so defendant, shall cause a copy of the record of the decision to be given to him as soon as practicable after the record is made.

However by virtue of Sec. 7(2), where bail in a criminal proceeding is granted by **endorsing a warrant of arrest**, the police officer who releases on bail the person arrested (**not the Magistrate who issued the warrant**) shall make the necessary record of the grant of bail.

COURT TO GIVE REASONS FOR GRANTING OR REFUSING BAIL.

Sec. 8(1)

A Resident Magistrate's Court shall give reason to a defendant, for refusing bail, imposing or

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varying the conditions of bail.

A note of the reasons in the record of the decision should be given to the defendant or his representative within twenty-four hours after the decision is made.

DEFENDANT TO BE INFORMED

Sec. 9

Where a Resident Magistrate's Court refuses bail to a defendant who is not represented by a Lawyer, the Court shall inform him of the right to appeal such decision.

Sec. 10

A defendant who has been refused bail by the Resident Magistrate's Court may appeal the decision to a Judge in Chambers.

POWER OF JUDGE IN CHAMBERS

Sec. 11 (1)

A Judge in Chambers on hearing the appeal of a defendant who has been refused bail; may grant or refuse bail or vary the conditions.

REVIEW OF CUSTODY CASES

Sec. 12 (1)

Where an application for bail has been refused by a Justice of the Peace or a police officer, such refusal shall be reviewed by the resident Magistrate on the defendant's first appearance in the Court in relation to the relevant offence.

A Resident Magistrate shall carry out, at least once per week, a review of cases involving defendants who were granted bail but were unable to take up such bail.

Offence of absconding by person released on bail

Sec. 14

- (1) Any person who has been released on bail in criminal matters and has failed to (surrender to custody) attend court or to report to the police at the time and place appointed for him to do so is guilty of an offence unless he good reasons.

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- (2) A person shall be guilty of an offence if-
- (a) having been released on bail in criminal matters; and
 - (b) having failed to attend court or report to the police with reasonable cause
- he fails to attend court or surrender to the police at the appointed place as soon after the appointed time as is reasonable practicable.
- (3) The person must prove that he has reasonable cause for failing to attend court or report to the police.
- (4) A person on bail who fails to attend court or report to the police shall not use as an excuse the fact that a copy of the record of the decision in any criminal matter was not given to him.
- (5) In any proceedings for an offence under subsection (1), a document (duly signed by the appropriate officer of the Court to be a true copy of that part of the record) that is said to be a copy of any part of the prescribed record which relates to the time and place appointed for the person named in the record to attend court or report to the police, shall be evidence of the time and place appointed for that person to attend court or report to the police.
- (6) For the purposes of subsection (5) -
- (a) “prescribed record” means the record of the decision of the Court or police officer made pursuant to section 8;
 - (b) “duly certified” means duly certified by the appropriate officer of the Court or by the police officer who took the decision or the police officer in charge of the police station from which the person to whom the record relates was released;
 - (c) “appropriate officer of the Court” means-
 - (i) in the case of a Resident Magistrate’s Court means, the Clerk of the Courts;
 - (ii) in the case of the Supreme Court, the Registrar or Deputy Registrar.

Penalty for absconding

Sec. 15

A person who is guilty of an offence under section 14 (1) is liable on summary conviction before a Resident Magistrate to a fine not exceeding five hundred thousand dollars or to imprisonment for a term not exceeding two years.

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Liability to arrest for absconding or breaching conditions of bail

Sec. 16

16.- (1) A court may issued a warrant for the arrest of a person where he has been released on bail in criminal proceedings and is under a duty to attend court or report to the police and he failed to do so at the time appointed for him to do so,

(2) A court may also issue a warrant for the arrest of a person where such a person has been released on bail in criminal proceedings and he absents himself from court without the leave of the Court, at any time after he has surrendered to the custody of the Court and before the Court is ready to begin or to resume the hearing of the proceedings.

(3) A person who has been released on bail in criminal proceedings may be arrested without warrant by a policeman where-

- (a) the police officer has reasonable grounds for believing that the person is not likely to surrender to custody;
- (b) the policeman has reasonable grounds for-
 - (i) believing that the person is likely to breach any of the conditions of his bail; or
 - (ii) suspecting that the person has breached any of those conditions;
- (c) in the case where the person was released on bail with a surety, the surety notifies the police officer in writing that-
 - (i) the person is unlikely to surrender to custody; and
 - (ii) for that reason, the surety wishes to be relieved of his obligation as a surety.

(4) a person arrested under section (3) shall be brought as soon as practicable (not less than twenty-four hours of his arrest or at least the next sitting of the Court)-

- (a) before a Resident Magistrate for the parish in which he was arrested; or
- (b) where he is arrested within twenty-four hours of the time appointed for him to attend court or report to the police, before that same court at which he is to surrender to custody.

(5) Where the Resident Magistrate before whom a person is brought under subsection (4) is of the opinion that-

- (a) the person is not likely to surrender to custody;
- (b) the person has committed or was about to commit another offence; or
- (c) has breached or is likely to breach any condition of his bail,

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The resident magistrate may remand him in custody or commit him to custody, as the case may require, or grant him bail subject to the same or different conditions, but where the Resident Magistrate is not of any such opinion he shall grant him bail subject to the same conditions, if any as were originally imposed.

Bail with surety

Sec. 17

(1) This section applies where a person is granted bail in criminal proceedings on condition that he provides surety for the purpose of securing his attendance to court or his reporting to the police.

(2) In considering the suitability of a proposed surety referred to in subsection (1) -

a) regard shall be had to such factors as the Court thinks fit, including-

(i) the surety's profession, occupation, trade or business;

(ii) his character and his previous convictions, if any;

(iii) the surety's proximity, whether of kinship, place of residence or otherwise, to the person for whom he is to be a surety;

b) the surety shall be required to make a declaration in the form set out in the Schedule

(3) Where a surety is required, a declaration in the prescribed form shall be made by a Justice of the Peace or a member of the Jamaica Constabulary Force not below the rank of Sergeant, a minister of religion or a principal of an educational institution (not a pre-primary school), as to his knowledge of that surety's address and good character.

(4) A Court, Justice Peace, or police officer shall not refuse a surety unless that surety is exempt based on the regulations made under section 21 or is, in the opinion of the Court, not suitable because of other reasons.

(5) Where a Court, Justice of the Peace or police officer grant a person bail in criminal proceedings under subsection (1) but is unable to release the person because no surety or no suitable surety is available, the Court, Justice of the Peace or police officer shall fix the amount in which the surety is to be bound and subsection (6) and (7) shall apply for purpose of enabling the recognizance of the surety to be entered into subsequently.

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(6) a recognizance of the surety under section (3) may be entered into before such of the persons or description of person as the Court may by order specify, or if it make no such order, before any of the following persons-

(a) a Resident Magistrate or Clerk of Courts (where the decision is taken by a RM court).

(b) where the decision is taken by the Supreme Court or the Court of Appeal, before a Resident Magistrate or Clerk of Courts or where rules of Court provide otherwise, before a person of such other description as is specified in the Rules.

(7) If a surety seeks to enter into his recognizance before any person in accordance with subsection (6) but that person declines to take his recognizance because he is not satisfied as to the surety's suitability, the surety may apply to-

(a) the Court which fixed the amount of the recognizance in which the surety was to be bound; or

(b) a Resident Magistrate's Court in the parish in which the surety resides.

(8) Where under subsection (6) a recognizance is entered into otherwise than before the Court that fixed the amount of the recognizance, the recognizance shall have full force and effect as if it had been entered into before that Court.

(9) A person who in any declaration required under this section, makes a statement which he knows to be false on an important point shall be guilty of an offence and liable upon summary conviction before a Resident Magistrate to a fine not more than 3 million dollars or to imprisonment for a term not more than 2 years or both the fine and imprisonment.

Release of surety or refund of payment

Sec. 19

19. – (1) A surety shall be released from obligation under the recognizance entered into by him, in the following circumstances.

(a) where the Court grants such release on an application made in accordance with subsection (2)

where the Court makes a no order or a nolle prosequi is entered in relation to the defendant who provided the surety;

where the matter in respect of which the surety was provided is adjourned sine die or dismissed, as the case maybe;

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(d) where the defendant concerned is acquitted or convicted, as the case may be. —

(2) A surety who wishes to be released from his obligations under a recognizance—

(a) shall apply in writing for such release to the Court by which such recognizance was taken; and

(b) may attend before that Court for the hearing of such application.

(3) Where a surety is released, the defendant concerned—

(a) shall forthwith be notified of such release; and

(b) may be taken into custody until he provides other surety or sureties.

(4) Any amount paid pursuant to section 6 (2) (b) shall be refunded in any of the circumstances specified in paragraphs (a) to (d) of subsection (1), so, however, that if a fine is imposed on conviction of the defendant that amount may, with the defendant's consent, be applied towards payment of the fine.

20. The Minister may, by order, declare any facility to be a bail centre for the purposes of this Act.

21. —(1) The Minister may make regulations generally for giving effect to the provisions and purposes of this Act.

2. Regulations made under this section shall be subject to affirmative resolution.

22. Where a person who is arrested or detained is not charged within twenty-four hours after such arrest or detention, he shall be brought forthwith before a Resident Magistrate or a Justice of the Peace who shall order that the person be released or make such other order as the Resident Magistrate or the Justice of the Peace thinks fit, having regard to the circumstances:

Provided that where an identification parade is required in relation to that person, the person shall not be brought before a Resident Magistrate or a Justice of the Peace but the matter shall be referred to a Resident Magistrate or a Justice of the Peace who shall make any such order in the absence of that person.

THE BAIL ACT
(REGULATIONS 21)
THE BAIL REGULATIONS, 2001

PAYMENT OF MONEY AS A CONDITION OF BAIL.

Reg. 2(2)

A Justice of the Peace or a police officer shall not specify an amount in excess of four thousand dollars as the payment required of any person as a condition of bail.

A resident Magistrate or Judge is NOT LIMITED as to the amount that he may impose as a condition of bail.

Payment shall be in cash or, if approved by the Court, Justice of the Peace or police officer, as the case may be, by manager's cheque made out to an account.

PAYMENT OF MONEY TO POLICE OFFICER OR JUSTICE OF THE PEACE

Reg. 2 (4)

Where bail is granted by a Justice of the Peace or police officer, the payment *shall* be made at a police station to a police officer. The police officer SHALL issue a receipt for the money collected.

Where bail is granted by the Court, the payment shall be made to an Accountant of the Court. The Accountant SHALL issue a receipt for the money collected.

POLICE TO LODGE PAYMENT WITH COURT ACCOUNTANT

A police officer who has collected payment SHALL, before the expiration of the working day next following the day on which the payment is received, lodge the payment with an Accountant of the relevant Court. Accountant to issue receipt for money received.

ACCOUNTANT TO LODGE BAIL PAYMENT

Every Accountant of the Court for each parish shall lodge all bail payments received by him to a bank account established for that purpose.

PAYMENTS RECEIVED BY POLICE

Suitable arrangements shall be made for-

- (a) the safe-keeping of payments received by police officers during times when it is impracticable for the payment to be lodged with the Accountant; and
- (b) the recording and identification of receipts issued under this regulation.

RELEASE OF TRAVEL DOCUMENTS

A person who has surrendered his travel document under conditions of bail; may apply to the Court for permission to travel and for release of his travel documents for the purpose of such travel.

A court may grant an application, if it thinks fit that having regard to all the circumstances, including whether the person is likely to flee the jurisdiction of the Court or surrender to custody.

The Court will seek to ensure that the person-

- (a) surrenders to custody;
- (b) does not commit an offence while on bail; and

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- (c) does not interfere with witnesses or otherwise obstruct the course of justice, whether in relation to himself or any other person.

An applicant must give the Court the purpose of travel, departure and return dates, and any other information as the Court may require in order determining whether the permission should be granted.

The Court shall issue a receipt for any travel document surrendered to the Court, and any receipt so issued shall be returned in exchange for the release of the document.

If the receipt cannot be produced, the document may be released by an officer of the Court, if such officer is satisfied that the person receiving the document is the holder of it.

The person must acknowledge that he receives the document by signing his signature for it.

Any application made, must be supported by an affidavit given by the applicant.

Where a travel document that was surrendered to the Court by any person cannot be located after it was surrendered; that person shall be entitled to recover, free of charge from the Ministry having responsibility for passports, a replacement of the travel document.

If the loss of the travel document is due to the negligence of any person, the Ministry is entitled to recover the cost of replacing such document from the negligent person.

STATION DIARY

The police must keep a station diary exclusively for the purpose of recording the times and dates of reports made by persons who are on bail and are required by the Court to report to the police.

SURETY

A Court may refuse to accept a surety until it is satisfied that there is sufficient evidence as to-

- (a) the person's identity;
- (b) the person's residential address and the period during which he has resided at that address;
- (c) the person's profession, occupation, trade or business;
- (d) the person's good character,
- (e) the persons relationship, whether by kinship, place of residence or otherwise, to the defendant.
- (f) where the person is required to provide a security for the purpose of securing the defendant's surrender to custody, the ownership of any asset that the person undertakes to produce as security, and
- (g) established that the person is not an exempt person.

EXEMPT PERSONS

The following persons are exempt from providing surety for the purpose of securing the release on bail of any person charged with an offence-

- (a) Resident Magistrate, Judge, a Justice of the Peace who has considered any issue

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- relating to bail in respect of the person charged, or a police officer,
- (b) an Attorney-at-Law on record for that person in relation to the offence;
- (c) a person charged jointly with that person, or charged with conspiring, aiding or abetting in the commission of the offence;
- (d) a person who has a criminal charge pending against him before any court;
- (e) a person who is not resident in Jamaica; and
- (f) a person who is entitled to immunity from legal process in Jamaica.

BAIL CENTRES

Reg. 8 (1)

Every facility that operates as a day training centre under the provisions of the Criminal Justice (Reform) Act is declared to be a bail centre for the purpose of attendance pursuant to an order made under sec. 6(3) of the Act.

Where attendance at a bail center is a condition of the grant of bail to any person, the Court, Justice of the peace or police officer, as the case may be, shall-

- (a) specify the bail center that the person is to attend, being, where possible, within reasonable traveling distance of the place where the person resides or works;
- (b) send a notice in Form 3 of the Schedule and a copy of the record of the decision to the bail center so specified; and
- (c) inform the center of the variation of any condition relating to the person's attendance at the center.

Arrangements shall be made at every bail center for-

- (a) recording the attendance, or failure to attend at a time specified in the notice, of every person with respect to whom a notice is sent under this regulation
- (b) notifying the Court, Justice of the Peace or police officer, as the case may be, of any such failure to attend, within twenty-four hours of such failure.

A person who attends a bail center as a condition of the grant of bail shall furnish to the center such proof of his identity as the center shall determine to be satisfactory for ensuring that the person so attending is the person with respect to whom a notice is sent under this regulation.

Where a Justice of the Peace, police officer or Court refuses bail in criminal proceedings, that Justice, police officer or Court shall-

- (a) inform the defendant of any further right that the defendant has to apply for bail or for a review of the refusal; and
- (b) furnish a copy of the record of the decision to the defendant or his Attorney-at-Law.

FORMS

Sec. 10 (1)

An application by a surety to release from his obligations under a recognizance shall be in Form 4 of the Schedule.

A notice to the defendant concerned, as to the release of a surety, shall be in Form 5 of the Schedule.

GLOSSARY OF LEGAL TERMS

The following words are Latin unless otherwise stated

Ab extra	From outside
Ab initio	From the beginning
Accessories sequitur naturam	An accessory follows the nature of his principal; one who is accessory to a crime cannot be guilty of a more serious crime than the principal offender.
Acta exteriora indicant interior secreta	A man's outward actions are evidence of his innermost thoughts and intentions
Actus non facit reum, nisi mens sit rea	The act itself does not make a man guilty, unless he does it with a guilty intention. (See <i>Young Husband v Luftig</i> [1942] 2 All ER 72). A cardinal doctrine of English Criminal Law.
Actus Reus	A guilty deed (Act)
Ad hoc	For the purpose
Ad infinitum	To infinity; without limit; forever
A fortiori (ratione)	For a stronger reason; by even more convincing reason
Alibi	Elsewhere; at another place
Aliunde	From elsewhere; from other sources
Aliter	Otherwise; the result would be different, if; (also, used of a judge who thinks differently from his fellow judges)
Ante	Before
Amicus curiae	A friend of the Court
Animo (furandi) (possidendi)	With the intention of (stealing) (keeping in one's possession) (returning)
Animus et factum	Intention and act
A posteriori	From effect to cause; inductively; from subsequent conclusions
A priori	From cause to effect; deductively; from previous assumptions or reasoning
Autrefois convict	The defendant has been acquitted of the charge on previous occasion (Norman French)
Bona fide	In good faith; sincere
Bona vacantia	Goods without an owner
Cadit quaestio	The matter admits of no further argument
Certiorari	To be fully informed of. Used to review and quash decision of tribunals. Originally a writ from High Court to an inferior Court.
Cessante ratione legis, cessat lex ipsa	When the reason for its existence ceases, the law itself ceases to exist. See <i>Milangos v George Frank Ltd.</i>

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	(1976) AC 443
Cetris parabus	Other things being equal
Chose in action	Intangible personal property or rights, which can be enjoyed or enforced only by legal action, and no by taking physical possession (eg debts). Norman French
Consensus	By general consent; unanimously
Consensus ad idem	Agreement as to the same things
Contra	To the contrary. (Used of a case in which the decision was contrary to the doctrine or cases previously cited; also of a judge who delivers a dissenting judgement)
Contra bonos mores	Contrary to good morals. See Knuller v DPP (1973) AC435
Cor. (coram)	In the presence of; before (a judge)
Coram non judice	Before one who is not a judge
Corpus	Body; capital
Corpus delicti	The body of the offence
Cur adv. Vult. (curia advisari vult)	The Court wishes to be advised. An abbreviation used in law reports indicating that the Court has not given judgement immediately, but has deliberated further.
Custos morum	A guardian of morals
De dene esse	Evidence or action which a Court allows to be given or done provisionally, subject to further consideration at a later stage.
De bonis asportatis	Of goods carried away
De die in diem	From day to day
De facto	In fact
De future	Regarding the future; in the future; about something which will exist in the future
Dehors	Outside (the document or matter in question); irrelevant. (French)
De integro	As regards the whole; entirely
De jure	By right; rightful
Delagatus no potest delegare	A person who is entrusted with a duty has no right to appoint another person to perform it in his place
De minimus no curat lex	The law does not concern itself with trifles. See R v Anderson (1972) RTR 113
De novo	Anew; starting afresh
Doli incapax	Incapable of crime
Dominium	Ownership
Debutante	Doubting the correctness of the decision. A word found in the law reports indicating that a judge is doubting the correctness of some proposition relating to the decision he has to take

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Ei in cumbit probatio qui dicit, non qui negat	The onus of providing a fact rests upon the man who asserts its truth, not upon the man who denies it.
Ejusdem generis	General words following a list of specific things are construed as relating to things ‘of the same kind’ as those specifically listed
Estoppels	A rule of evidence which applies in certain circumstance and stops a person from denying the truth of a statement previously made to him. (English). Note: there are different forms of estoppels
Et cetera	And other things of that sort
Et seq. (et sequentes)	And subsequent pages – and those which follow
Ex.	From; by virtue
Ex aequo et bono	According to what is just and equitable
Ex cathedra	With with official authority
Ex concessis	In view of what has already been accepted
Ex debito justitiae	That what is due of right; which the Court has no discretion to refuse
Ex dolo malo non oritur action	No right of action arises out of a fraud
Ex facie	On fact of it; ostensibly
Ex gratia	Out of kindness; gratuitous; voluntary
Ex hypothesi	In view of what has already been assumed
Ex officio	By virtue of one’s official position
Ex parte	Proceedings brought on behalf of one interested party without notice to, and in absence of, the other
Ex post facto	By reason of a subsequent act; acting retrospectively
Faciendum	Something which is to be done
Factum	An act or deed
Fait accompli	An accomplished fact. (French)
Felo de se	A felon with respect to himself suicide
Flagrante delicto	In the act of committing the offence
Force majeure	Irresistible compulsion. (French)
Fructus industriales	Cultivated crops
Fructus naturales	Vegetation which grows naturally without cultivation
Fructus officio	Having discharged his duty; having exhausted its powers
Habeas corpus	A writ addressed to one who detains another in custody, requiring him ‘that you produce the prisoner’s body to answer’ to the Court
Ibid. (ibidem)	In the same thing or person
Idem	The same thing or person
Id est (ie)	That is
Ignorantia juris haud (neminem) (non) excusat,	A man may excused for mistaking facts, but not for mistaking the law

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ignorantia facti excusta	
Ignorantia jusi non excusat	Ignorance of the law is no excuse
In camera	In private
In delicto	At fault
Indicia	Signs; marks
In esse	In existence
In extensor	At full length
Infra	Below; lower down on a page; later in a book
In futuro	In the future
Injuria	A wrongful act for which the law provides a remedy
In lieu of	In place of. (Angelo-French)
In limine	On the threshold; at the outset
In loco parentis	In the place of a parent
In omnibus	In every respect
In pari material	In an analogous case or position
In pleno	In full
In praesenti	At the present time
In propria persona	In his own capacity
In re	In the matter of
In situ	In its place
In specie	In its own form; not converted into anything else
In statu quo ante	In the condition in which it, or a person was before
Inter alia	Amongst other things
Inter alios	Amongst other things
Interest reipublicae ut sit finis	It is in the interest of the community that every lawsuit should reach a final conclusion (and not be re-opened later)
Interim	In the meanwhile; temporary
Inter partes	Between (the) parties
In terrorem	As a warning; as a deterrent
Inter se	Between themselves
Inter vivos	Between who are alive. (during the lifetime of)
In toto	In its entirety; completely
In transit	In passage from one place to another
Intra vires	Within the powers recognised by law as belonging to the person or body in question
In vacuo	In the abstract; without considering the circumstances
Ipsissima verba	‘The very words’ of a speaker
Ipso facto	By the very fact
Jus	A right which is recognised in law
Jus naturale	Natural just
Loc. Cit (loco citato)	In the passage previously mentioned
Locus in quo	Scene of the event

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Locus standi	Recognised position of standing; the right to appear in Court
Magnum opus	A great work of literature
Mala fides	Bad faith
Mandamus	We command. Originally a writ from the High Court ordering performance of a public duty. Used to compel hearing of an appeal by an inferior tribunal
Mansuetae naturae	Animals which are normally of a domesticated disposition. (tame by nature)
Mens rea	A guilty mind
Mesne	Intermediate; middle; dividing. (English)
Mutatis mutandis	With the necessary changes of detail being made
Ne exeat regno	A writ to ensure that 'He shall not leave the kingdom'
Nemo dat quod non habet	No one can give a better title than he has
Sit pro una ed eadem causa	No one ought to be harassed with proceedings twice, if it appears to the Court that it is for one and the same cause
Nexus	Connection; bond
Nisi	Unless; (also used of a decree or order which will later be made absolute 'unless' good cause be shown to the contrary).; provisional.
Nisi prius	Cases which were directed to be tried at Westminster only if the juries of assize should 'not' have tried them in the country 'previously'
Nolle prosequi	To be unwilling to prosecute (i.e. withdrawal of the prosecution case)
Non compos mentis	Not of sound mind and understanding
Non constat	It is certain
Non est factum	It is not his deed
Non sequitur	It does not follow; an inconsistent statement
Nullum crimen sine lege (poena legali)	No one shall be found guilty of a crime unless he has contravened a (penal) law which was in existence at the time of the offence
Obiter dictum (dicta)	Things said by the way; opinions expressed by judges in passing; on issues not essential for the question in case
Onus probandi	Burden of proof
Op cit (opera citato)	In the book referred to previously
Orse	Otherwise
Par delictum	Equal fault
Pari passu	On an equal footing; in step with
Pari ratione	By an equivalent process of reasoning
Parol	By word of mouth, or unsealed document. (Norman French)

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Per	By; through; in the opinion of a judge; as stated by
Per curiam	In the opinion of the Court
Per incuriam	Through want of care. See Young v. Bristol Aeroplane Company Limited (1944) 2 All ER293
Per minas	By means of threat or menaces
Per quod	By reason of which
Per se post	After; mentioned in a subsequent passage or page
Post mortem	After death
Prima facie	At first sight; (on the face of it)